

FIXON Partner Programme

The full content of the distribution, exposure and storage support programme.

PARTNERSHIP PROGRAMME FIXON Distribution Program with Product Exposure and Guaranteed Warehouse Access

1.1. Nature of the FIXON Partnership Programme

The FIXON Partnership Programme is a document setting out the principles of participation of Partners in the system of commercial, distribution, exhibition and warehouse cooperation organized by FIXON.

The FIXON Partnership Programme is an annex to the FIXON Partnership Agreement and an implementing document specifying the principles of cooperation insofar as the Agreement refers to the Partnership Programme, Program Documents, current product lists, price lists, exposure standards, storage support rules, discount system, strategic powers and status of the FIXON Demonstration Centre.

The FIXON Partner Programme is a document made available to the Partners for inspection and consultation, in particular through publication on the FIXON website or transmission in documentary form.

Public provision of the Programme aims to ensure transparency of cooperation rules, to enable potential partners to familiarise themselves with the FIXON distribution model and to facilitate the uniform application of the Programme rules to participants in the partner network.

The FIXON Partnership Programme lays down general principles of cooperation and does not replace individual trade arrangements concluded with the Partner.

Individual terms of cooperation, in particular the discounts granted, the range of stocks, the list of products covered by storage support, the scope of the exposure, the awarded Strategic Powers, the status of the Strategic Partner, the status of the FIXON Demonstration Centre and the special commercial conditions, are set out in the FIXON Partnership Agreement or separate documents, in particular in the Partner Charter, the Strategic Powers Charter, the FIXON Demonstration Centre Charter, the List of Products Covered by Storage Support, the Catalogue Price List or other Program Documents.

Signing the FIXON Partnership Agreement means accepting the current version of the FIXON Partnership Programme, unless the Parties expressly agree otherwise.

The FIXON Partnership Programme should be interpreted together with the FIXON Partnership Agreement and other Program Documents.

In the event of a discrepancy between the FIXON Partnership Programme and the FIXON Partnership Agreement, priority shall be given to the provisions of the FIXON Partnership Agreement unless the Parties expressly agree otherwise.

In the event of a discrepancy between the FIXON Partnership Programme and the individual document granting the Partner certain terms of cooperation, priority shall be given to the individual conditions confirmed in such a document, unless they infringe the provisions of the FIXON Partnership Agreement.

1.2. Objective of the FIXON Partnership Programme

The FIXON Partner Programme aims to build a professional, stable and long-term distribution network for FIXON products.

The program was created to allow Partners to expand their offer with specialist FIXON tools without the need to create a full, costly and distributed warehouse.

The programme is intended to enable Partners to sell FIXON products in a manner adapted to their existing business model, in particular by:

sales of products in the partner's stock,

sales of products available from the catalogue,

sales of delivered products directly from the Supplier,

sale of products to individual customers,

the sale of products together with building, paving, road or other products offered by the

Partner,

presentation of products through physical exposure, marketing materials, test tools, e-catalogue and demonstration materials.

The program is intended to provide the final customer with easier access to professional tools, and the Partner can increase sales value, expand offer and build competitive advantage.

The FIXON Partnership Programme shall in particular pursue the following objectives:

increasing the availability of FIXON products on the market,

creation of a controlled distribution network,

enabling Partners to sell tools without having to fully stock each facility,

optimising logistics costs,

support the sale of basic materials offered by the Partner,

improving the quality of work with materials sold by the Partner,

shortening the working time of executive teams by using appropriate tools,

increase the attractiveness of the Partner's offer in the eyes of contractors and end

customers,

the development of FIXON products based on market feedback,

FIXON value protection,

building long-term commercial relations with Partners.

The program assumes that professional tools are not only an additional sales product, but an element supporting the entire process of construction, paving, road and related work.

Sales of FIXON tools can benefit the Partner not only through margin on the tools themselves, but also by increasing the value of the basic offer. In the case of manufacturers or distributors of materials, the use of appropriate tools may improve the quality of the work with these materials, reduce the number of executive errors, reduce crew working time and increase the satisfaction of end customers.

The FIXON Partnership Programme is intended to support Partners who have real access to contractors, tabloid companies, construction companies, road companies, wholesale customers, investors and other customer groups that can benefit from FIXON products.

1.3. FIXON cooperation model

The FIXON Partner Programme is based on a distribution model combining sales, product exposure, warehouse support, catalogue sales, direct deliveries and partner development within a specific cooperation hierarchy.

The Program model assumes that the Partner does not need to maintain the full stock of all FIXON products.

The partner can start cooperation with the agreed starting warehouse, marketing materials, demonstration tools and access to FIXON e-catalogue products.

Products not included in the starting warehouse may be offered to customers from the catalogue, including as products available immediately with delivery from the Supplier, products available on order or products available on individual terms.

With the development of sales, the Partner can gain increasing access to warehouse stocks, additional demonstration tools, special products, commercial benefits and Strategic Rights.

The programme provides for three levels of cooperation:

Authorised Partner FIXON,

Strategic Partner FIXON,

FIXON Demonstration Center.

Each level of cooperation corresponds to a different scope of involvement of the Partner and a different level of benefit.

Authorised Partner FIXON receives basic tools to launch sales, in particular marketing materials, access to offers, the possibility of using the Warehouse States Support Program and the possibility of using demonstration tools.

The Strategic Partner FIXON may receive specific Strategic Entitlement if its sales model, customer base, market activity, need to protect the sales channel, above average results, sell products on order or participate in product development justify granting additional terms of cooperation.

The FIXON Demonstration Centre is the highest level of cooperation and can serve as a showroom, a demonstration facility, a regional test point, a direct sales point, a special order handling post and a place to which customers are directed requiring full presentation of FIXON products.

1.4. Public nature of the Programme and individual conditions of the Partner

The FIXON Partnership Programme may be publicly available as it describes the overall model of cooperation and the principles of participation in the FIXON Partnership Network.

The public nature of the Programme does not mean that each Partner automatically has all the benefits, statuses, allowances, discounts, storage limits or special conditions described therein.

The granting of certain benefits depends on the Supplier's decision, the provisions of the Partnership Agreement, current Program Documents and individual arrangements with the Partner. In particular, a public description of elements such as Strategic Partner, Additional Strategic Discount, Market Protection, Extended Warehouse States Support Program, Product Exclusive, Premier Exclusive or FIXON Demonstration Centre does not constitute an obligation Suppliers to grant such benefits to each Partner.

The individual conditions of the Partner must be confirmed in the relevant document, in particular:

The FIXON Partnership Agreement,

Partner card,

The Strategic Power Charter,

The FIXON Demonstration Centre card,

Lists of products covered by storage support,

Catalog Pricelist,

a separate agreement between the Parties,

another Program Document.

If a Partner benefits from a specific benefit but has not been individually confirmed, the Partner shall be deemed to benefit exclusively from the basic scope of the Programme or the Agreement, unless the Parties have expressly decided otherwise.

1.5. Principle of not worsening the conditions of the Partner

The FIXON Partnership Programme may be updated with the development of the offer, the change of the distribution model, the change of the exposure rules, the change of technical documents, the development of e-catalogues, the change of supply organisation, the introduction of new products or the change of the partner network development strategy.

The Programme updates should not impair the individual conditions of the Partners resulting from existing Partnership Agreements or individually confirmed Program Documents.

The change in the public content of the Programme does not automatically result in the loss of individually granted conditions if they are confirmed in the Agreement, the Partner Charter, the Charter of Strategic Powers or any other document in force between the Parties.

If the update of the Programme requires the individual conditions of the Partner, The Supplier shall communicate to the Partner the change as provided for in the Agreement or Program Documents.

Changes to the Programme and Program Documents shall apply from the date indicated by the Supplier, but not earlier than the next Settlement Period.

Technical changes or benefits to the Partner shall also apply from the date indicated by the Supplier, but not earlier than the subsequent Settlement Period, unless the Parties individually decide otherwise in acceptable form.

The current version of the FIXON Partnership Program can be published on the FIXON website.

Partners may be informed of changes to the Programme by the Supplier or Mediator, in particular via e-mail, communicator, CRM system, B2B system or other document form.

1.6. Principle of cooperation based on real market access

The FIXON Partnership Programme is aimed primarily at Partners with real access to end customers, contractors, tabloid companies, construction companies, road companies, installation companies, infrastructure companies, wholesale customers, investors or other professional customers.

FIXON does not build the Program based on accidental and uncontrolled sales, but on cooperation with Partners who can actually support market development, product presentation, customer feedback and implementation of new solutions.

Partner's access to the market may be due in particular to:

having its own sales facilities,

the holding of partner distribution points,

holding a network of commercial representatives,

operating executive companies,

wholesale customer service,

the operation of investments,

the sale of building, paving or road materials,

supplies to final customers,

organisation of demonstrations, trainings or industrial events,

cooperation with designers, investors or contractors.

Partner participating in the Program should use their own sales and customer contact channels to promote FIXON products in accordance with the Programme, the Agreement and brand protection rules.

A particularly important value for FIXON is the Partner's ability to provide feedback from the market. This information may concern the needs of contractors, problems arising from construction, expected product parameters, missing solutions, new tools and customer response to products already available in the offer.

A partner actively participating in the development of products whose feedback will lead to the creation or implementation of a new product may obtain specific conditions for cooperation in the field of that product, in particular Premiere Exclusive or other Strategic Entitlement as defined in the Programme.

1.7. Principle of optimization of sales and logistics

One of the basic principles of the FIXON Partner Programme is to allow Partners to sell professional tools without having to fully store the entire offer in each facility or channel of distribution.

The programme involves using several parallel forms of product availability:

starting warehouse,

Warehouse States Support Program,

products available immediately with delivery from the Supplier,

products available on request,

demonstration products,

test products,

Prime products,

products available on individual terms.

Thanks to this, the Partner can develop the sale of FIXON products in a gradual manner, proportional to the real interest of customers and without having to over-involve its own resources in stocking the entire offer.

This model is particularly beneficial when FIXON products are sold together with the basic

materials offered by the Partner. In this case, the delivery of tools can be combined with the delivery of material to the final customer, which allows to reduce the unit cost of logistics. Optimization of logistics increases the attractiveness of the Partner's offer and can facilitate the sale of both FIXON tools and basic materials offered by the Partner. The use of appropriate tools by the contractor may have a positive impact on the pace and quality of work, which indirectly supports the reputation of the materials provided by the Partner and increases the chance for repetitive orders.

1.8. Principle of development by results, market needs and feedback

The FIXON Partnership Programme foresees the development of the Partner based on actual results, potential for cooperation, the needs of the sales channel and feedback from the market.

The development of the Partner may result from both permanent, repetitive sales results and from a one-time but significant business event that creates a strategic value for FIXON.

Such an event may in particular be:

acquisition of a large wholesale customer,
creation of a database of permanent recipients,
development of a significant sales channel,
participation in the development of a new product,
providing feedback leading to the implementation of the new solution,
justification for the need to protect a particular sales channel,
the purchase of custom-made products on a scale justifying the storage of such products,
creating the conditions for launching the FIXON Demonstration Centre.

The program does not treat the Strategic Partner solely as a prize for sales volume. Strategic status may also be due to the role of the Partner in market development, product development, customer service, optimization of the sales channel or construction of a new product category. Granting a certain status or Strategic Powers is intended to ensure the cost-effectiveness of cooperation for both parties, rather than merely one-sided bonusping of the Partner.

The Supplier may grant the Partner such Strategic Entitlement, which best corresponds to the source of value created by the Partner.

If the Partner prefers a different Strategic Entitlement than proposed by the Supplier, the Parties may agree on a different cooperation model if it is in accordance with the FIXON interest and objectives of the Programme.

1.9. Principle of brand protection and network stability

The FIXON Partner Programme assumes the development of sales while protecting brand value, stability of commercial conditions and profitability of partner cooperation.

FIXON does not support a sales model based solely on aggressive price competition that could lead to a reduction in the perceived value of products, destabilization of the partner network or a reduction in professional customer service.

Partners participating in the Programme should promote FIXON products as professional tools supporting productivity, ergonomics and quality of work.

Partners should present products according to their actual characteristics, application, parameters and materials made available by FIXON.

Any promotional, marketing, exhibition and sales activities should be carried out in accordance with the Agreement, Program, FIXON Brand Policy and other Program Documents.

1.10. Importance of the Programme to the Partner

Participation in the FIXON Partner Programme allows the Partner to develop an additional product category without the need to build the entire product, marketing, exhibition and training system.

The partner is given the opportunity to sell products responding to the real needs of contractors and professional customers.

The program allows Partner:

increase the purchase basket value of the customer,
extend the offer without excessive handling,
use existing sales channels,
combine tool sales with material sales,
use e-catalogue and demonstration materials,
develop sales through exposure and testing tools,
to obtain additional business conditions with the development of cooperation,
create the basis for gaining strategic partner status,
apply for the status of the FIXON Demonstration Centre in the long term.

The program was designed so that the Partner could start cooperation with a simple sales model and then develop it depending on the real potential of the market, sales results, activity of the facilities and involvement in product development.

1.11. Importance of the Programme to FIXON

FIXON Partner Programme allows FIXON to develop a controlled distribution network based on Partners with real contact with the executive market.

The program allows FIXON to increase the availability of products, conduct exposure at partner sales points, test new products, collect feedback and develop the offer based on actual customer needs.

The partners who:

have access to economic operators,
support significant volumes of material sales,
have developed distribution channels,
are able to conduct exposure and presentation of products,
provide feedback from the market,
develop the sale of FIXON products in a manner consistent with the brand's interest,
may participate in tests and prime ministers of new products,
have the potential to launch the FIXON Demonstration Centre.

The programme is intended to allow FIXON to gradually develop cooperation with Partners without having to grant all participants the same conditions, discounts, warehouses or exclusivity.

1.12. Basic interpretative assumption

The FIXON Partnership Programme should be interpreted in accordance with its objective of developing a professional, stable and controlled distribution network for FIXON products.

The specific provisions of the Programme shall be applied in such a way as to support:
development of sales,

availability of products,

FIXON brand protection,

optimising logistics costs,

quality of customer service,

product development based on feedback,

long-term viability of cooperation for Partner and FIXON.

The scheme should not be interpreted in such a way as to lead to the automatic right of the Partner to obtain a certain status, discount, storage limit, exclusivity, market protection or other benefit if such benefit has not been granted to the Partner in the relevant document.

At the same time, the Programme should be applied in a transparent, coherent and predictable manner so that the Partner can understand the principles of the development of cooperation and the conditions that may lead to a higher level of partnership or additional powers.

2.1. Addressees of the FIXON Partnership Programme

The FIXON Partnership Programme is aimed at entities with real access to the implementing, distribution, wholesale or investment market, in which FIXON products may complement a basic offer or a stand-alone sales category.

The programme may be addressed in particular to:

producers of tabloid materials,
manufacturers of building materials,
manufacturers of concrete elements,
manufacturers of road and infrastructure materials,
construction warehouses,
construction warehouses,
tabloid compositions,
distributors of building and tabloid materials,
networks for the sale of building materials,
markets and trading points serving contractors,
companies supplying works, construction, road and garden,
hire tools and equipment,
companies operating investments,
entities selling B2B,
other entities having access to customers who can benefit from FIXON products.

The programme is not limited solely to Partners with an extensive network of facilities. The Programme may also be attended by an entity with a single point of sale, a commercial channel, a network of representatives, logistics facilities, relations with contractors, relations with investors or other effective means of reaching final customers.

It is not only the scale of its activities, but above all the real possibility of developing the sale of FIXON products, professional customer service and the ability to operate according to the rules of the Programme.

FIXON assumes cooperation with Partners who are able to introduce products into the actual commercial circulation, not just formally put them in a catalogue or offer.

Especially important partners are entities that have regular contact with performers, as FIXON products are created as a response to practical problems during work.

The partner participating in the Programme may sell FIXON products to different customer groups, in particular to:

tabloid companies,
construction teams,
road companies,
garden and landscape companies,
companies performing earthworks and infrastructure works,
wholesale customers,
investors,
subcontractors,
local distributors,
individual customers carrying out construction or tabloid work,
other recipients interested in professional tools.

The program was designed to operate both in the structures of large producers and distribution networks, as well as in smaller Partners with a strong local position or specialized access to contractors.

2.2. Basic market need

In many channels of sale of building, paving and road materials, the main offer of the Partner includes material, while specialist tools remain an additional category, often unavailable from the moment of delivery or occasionally ordered.

In practice, this means that the customer who buys the material often has to look for tools elsewhere, order them separately, bear additional delivery costs or use random and makeshift solutions.

The FIXON Partner Programme responds to this problem by creating a model in which the Partner can offer FIXON tools without the need to maintain the full stock of the entire offer.

The partner may start selling FIXON products based on:

starting warehouse,

the underlying exposure,

test tools,

marketing materials,

e-catalogue,

products available immediately with delivery from the Supplier,

products available on request,

commercial and training support.

This enables the Partner to include FIXON products in its offer without having to bear high initial costs and without the risk of over-stocking products that have not yet been confirmed.

This model allows the Partner to check the actual interest of customers, collect feedback, develop sales gradually and expand the warehouse only if the sale of a given item justifies its constant availability.

2.3. Sales model without large own storage

One of the basic objectives of the Programme is to enable the Partner to sell FIXON tools without having to maintain a large own warehouse.

The program assumes that the full offer of FIXON can be presented to the customer in various forms, in particular by:

physically available warehouse products,

physically available test tools,

marketing exposure,

e-catalogue,

demonstration materials,

training films,

QR codes,

trade consultation,

order of the product with delivery from the Supplier.

The partner does not need to keep all products at all points of sale or in all distribution channels.

The program allows a model in which only part of the products are in stock with the Partner, and the other products are offered from the catalogue as products available immediately with delivery from the Supplier or as custom products.

The aim of this model is to reduce the entry barrier for a Partner who has customers and sales channels, but does not want to create a full tool warehouse immediately.

Sales without a large own warehouse may be particularly beneficial for Partners who: have material sales facilities, but do not run an extensive tool warehouse,

have a network of sales representatives,

support material orders with delivery to the customer,

conduct investment sales,

they sell wholesale,

want to test the potential of the new product category,

They want to increase the value of sales without heavy stocking.

With the development of sales, the Partner may receive increasing warehouse support, in accordance with the rules set out in the Programme, the Contract and the Product Lists covered by the Warehouse Support.

2.4. Tool model with material

One of the leading uses of the FIXON Partner Programme is the sale of FIXON products together with materials offered by the Partner.

This applies in particular to the situation where the Partner sells to the customer building, paving, road or other basic material, while at the same time offering tools to facilitate its proper assembly, transport, laying, profiling or processing.

In such a model, FIXON tools become a natural supplement to the material order.

The benefit for the customer is the ability to purchase material and tools in one place, without the need to search for additional solutions.

The benefit for the Partner is the possibility of:

increase the value of the purchasing basket,

extend the offer without the need to build a full tool warehouse,

offer the customer a complete solution,

improving the quality of contractor service,

increase customer loyalty,

distinguishing from competition,

the use of existing material logistics.

If the Partner carries out the delivery of the material to the final customer, FIXON products can be delivered together with this material, provided that logistical arrangements, availability of products and the way in which the order is carried out allow.

The combination of tool supply and material supply may reduce the unit logistics cost and increase the attractiveness of the price presented to the customer.

In the case of products available with delivery from the Supplier, the price presented to the Customer may take account of the cost of delivery according to the terms specified in the Price list, e-catalogue or other Program Document.

The sales model together with the material is of particular importance in the tabloid industry, where the quality and pace of the contractor's work influence the final reception of the entire investment.

Tools for improving ergonomics, precision and organization of work can indirectly support sales of Partner's materials because the customer receives not only the basic product, but also solutions to facilitate its professional use.

2.5. Partner benefits of the FIXON model

The FIXON Partner Programme was designed to provide the Partner with commercial, organisational, logistical and image advantages.

One of the main benefits of the Partner is the possibility to launch the sale of FIXON products without the need to create a full own warehouse.

The partner can start cooperation with the use of starting warehouse, exposure, marketing materials, test tools and e-catalogue.

The programme allows the Partner to gradually increase its commitment to the sale of FIXON products as real demand is confirmed.

The partner can gain the following benefits:

extend the offer to professional tools,

increase the value of sales to existing customers,

the possibility of selling additional products together with basic material,

reduction of logistical costs,

marketing support,

Exposure support,
training support,
the possibility of using an e-catalogue,
the possibility of selling products available immediately with delivery from the Supplier,
possibility to sell products on order,
the possibility of development to the level of the Strategic Partner,
the possibility of additional Strategic Entitlements,
the possibility to apply for the status of the FIXON Demonstration Centre.

The program can also strengthen the Partner's relationship with final customers, as the Partner provides not only material or basic product, but also practical solutions to improve the performance of the contractor.

In the case of manufacturers of construction, paving and road materials, the sale of FIXON tools may support the quality of the work with these materials.

If the contractor uses tools to improve ergonomics, precision or pace of work, the end result may be better and the implementation process more predictable.

The contractor's satisfaction with the complete solution can translate into greater loyalty to the Partner and increase the repeatability of orders.

2.6. Benefits for the final customer

The FIXON Partner Programme was also designed for the final customer, who expects simple access to professional tools, product advice and solutions that meet real working conditions. The final customer can use the FIXON offer through the Partner, who already buys materials, receives orders or uses commercial advice. Thus, purchasing tools does not require the customer to seek a separate supplier, to place a separate order or to arrange an additional delivery.

For the final customer, the most important benefits of the Programme are:

possibility to purchase tools together with material,
access to professional tools for the tabloid, construction, road and executive industries,
the possibility to get acquainted with products through exposure, test tools, e-catalogue,
demonstration materials or commercial consultation,
the possibility of placing an order from the catalogue also when the product is not physically located in the Partner's facility,
the possibility of using the supply of tools together with the basic material,
access to special, test, premiere or custom-made products through Strategic Partners or FIXON Demonstration Centres,
the ability to better select tools for the type of work done,
reducing the risk of buying an accidental or mismatched tool.

FIXON products should be presented to the final customer, not as an accidental addition to the sale of material, but as part of a complete implementation process. The customer who buys the cube, slabs, curbs, concrete elements or other materials needs not only the material itself, but also tools that allow for more efficient, more precise and less burdensome assembly.

In communication with the final customer, the trader should stress that FIXON products are professional tools, made for intensive work under construction conditions. The manufacturer indicates that FIXON tools are made of stainless steel in Poland, and their aim is to save time, increase precision and improve the quality of work.

One of the key benefits for the final customer is to reduce the physical effort of employees. In many tabloid and construction works, the waste of time and fatigue are not due to large operations only, but to thousands of repetitive, minor activities: bending to the ankle, improving elements, moving plates, setting edges, profiling substrates or using makeshift solutions made on construction.

FIXON products should be presented as tools to help reduce the number of such repetitive

loads. For the contractor, this means a practical benefit: the worker is less tired, he returns more quickly to the next activity, and the team can maintain a better pace of work for the longer part of the day.

The trader can explain to the customer that the tool does not need to replace a large machine to actually improve the performance of the work. Often the biggest effect is given by tools that improve small but constantly repeated activities. If any such activity takes less time, requires less force or is performed more accurately, the entire team gains time during the working day.

The second important advantage is to increase the precision of work. The tools used to guide, profile, capture, carry or set the elements reduce improvisation on construction. Instead of using random boards, rods, ropes, washers or hand-made solutions, the contractor can use a tool designed for a specific operation.

Precision matters not only for the contractor, but also for the final customer and Partner selling the material. The better the work done, the less risk of complaint, amendment, inequality, material damage or investor discontent. FIXON tools can therefore indirectly support the quality of performance made using materials purchased from the Partner.

The third advantage is better organisation of work. A performer who has the appropriate tools may limit the number of interruptions, corrections and "on-the-tense" activities. For the customer, this means a more efficient implementation and for the Partner the opportunity to present the offer as more complete and professional.

In the case of tools for grasping, carrying and setting elements, the trader should emphasize in particular:

- a stronger and more secure grip,
- greater control of the component,
- lower load on hands, back and knees,
- less risk of accidental drop,
- faster pace of operation with repetitive operations,
- more comfortable work with heavier elements,
- better stability during handling and setting.

For example, the product description of the GRIX HOLD gripper points to a strong, precise grip, stability when moving the ankle and heavy concrete plates, resistance to corrosion and intensive operation, and real acceleration of the working speed. Such arguments should be used by traders as a concrete answer to the customer's question: 'Why do I need this tool?'.

In the case of tools for profiling, running and levelling the area, the trader should emphasize in particular:

- replacing makeshift solutions,
- repeatability of settings,
- greater control of the end result,
- shortening the preparation of the workstation,
- limitation of amendments,
- easier to maintain an equal level,
- greater predictability of team work.

In the case of specialist tools or system kits, the trader should stress that the customer does not buy a single gadget, but a solution to a specific implementing problem. If the product reduces working time, reduces fatigue and improves precision, its value for the contractor is not due solely to the purchase price, but to the saving of time and quality of work on subsequent orders.

The durability of products is also an important commercial argument. FIXON tools should be presented as solutions for regular, professional work rather than as disposable or seasonal equipment. Information about stainless steel and the manufacturer's emphasis on durability and quality of performance strengthen the message that the customer invests in a tool for long-term use.

The trader should avoid bringing the conversation only to the price of the tool. The right argument should focus on the total benefit for the contractor, i.e. how much time, force, amendment and improvisation can be reduced by using the appropriate tool. For the contractor, the most important question is not only "how much does the tool cost?" but also:

how many times a day do I perform a given activity,

How much time I waste repeating it,

how much force it costs workers,

how many errors occur by improvisation,

how many amendments can be avoided,

whether the tool will allow the crew to work faster and more equally,

whether the tool will improve the comfort of work,

whether this will make me move on to the next stage of the work.

From the final customer's point of view, FIXON products can therefore fulfil several functions simultaneously:

sales tool - because you can buy it together with material,

organizational tools - because they order construction work,

ergonomic tools - because they reduce the load on workers,

qualitative tool - because it helps perform work more precisely,

economic tools - because they can reduce working time and the number of amendments,

Image tool - because a team using professional equipment looks more credible in the eyes of the investor.

The final customer does not need to know the whole structure of the FIXON Partner Programme.

From its perspective, the most important thing is that the Partner can offer a solution tailored to work needs, available in a simple purchasing model, with the possibility of presentation, order or delivery together with the material.

The program is intended to make it easier for Partners to conduct sales so that the end customer understands that FIXON tools help solve specific implementation problems: fatigue of employees, waste of time, temporary adjustment of elements, difficulty in precision, need for adjustments and dissipation of purchases between many suppliers.

The most effective commercial argument should start with the problem of the customer, not the product itself. The trader should first determine whether the customer is doing the work of tabloid, construction, road, transport or assembly, and then indicate which FIXON tool can simplify the specific activity performed by his crew.

An example of the logic of a trade conversation may be as follows:

"Does the team often move ankles, plates or heavier pieces by hand?"

"Do you waste a lot of time improving settings, levels or driving?"

"Does it happen that on construction you make temporary extras?"

"Do you want to buy the material itself, or a set of solutions that will facilitate its efficient installation?"

"This tool is not an addition to the order - it can speed up work with material you are already buying."

From the point of view of the Partner, it is particularly important that a well-chosen tool can increase customer satisfaction with basic material. If the contractor works faster and more accurately with the purchased material, it is better to evaluate the entire purchase process, not just the tool itself.

FIXON products should therefore be presented as part of a complete offer for the contractor: material, tool, working method and end result. Such a sales model increases the value for the final customer and at the same time strengthens the Partner's position as a supplier of practical solutions, not just the material sales point.

If the final customer is not ready for immediate purchase, The partner may refer it to an e-catalogue, demonstration materials or QR code. This allows the customer to return to the product later, compare applications, consult the purchase with the team or place the order in the next stage.

In the relationship with the final customer, the most important message should be: FIXON products help work faster, more accurately, more convenient and more professional, and their purchase by the Partner allows you to combine tools with material, logistics and consulting in one place.

2.7. Role of market feedback

FIXON develops products based on the observation of real problems of contractors and feedback obtained from Partners and final customers.

Partners with direct contact with performers are an important source of information about: customer needs,

difficulties arising during work,

missing tools,

expected dimensions or variants of products,

logistical problems,

purchasing preferences,

customer reactions to products available in the offer,

new product proposals.

Feedback from the Partner may form the basis for developing new products, modifying existing products or introducing new options.

If a new product or a new product variant is created on the basis of feedback provided by the Partner, The Partner may obtain specific conditions for participating in its implementation.

Specific conditions may include in particular:

testing priority,

access to test copies,

Only the Prime Minister,

the possibility of establishing selected sales channels,

participation in promotional action,

other conditions specified by the Supplier.

The FIXON Partner Programme does not limit the role of the Partner to sales only. The partner can also be a source of market knowledge, a test participant and a co-founder of the directions for the development of the offer.

2.8. Distribution channels covered by the Programme

The FIXON Partner Programme can be implemented in various distribution channels.

Distribution channels may include in particular:

Partner's trading facilities,

partner offices of the Partner,

wholesale,

sales to contractors,

investment sales,

sales by commercial representatives,

catalog sales,

e-catalogue-backed sales,

sales using QR codes,

sale via the FIXON Demonstration Centre,

sales during industry events,
sale of promotional shares,
direct sales to customers identified or operated under the agreed model.

The Partner shall retain the freedom of internal organisation of its own distribution, provided that it complies with the Agreement, Program and Program Documents. FIXON shall not interfere in the internal division of products, exposures or marketing materials between the Partner's premises, unless the Parties individually agree otherwise. The status of the Programme is generally granted to the Partner as a company rather than a single facility, unless Program Documents or individual arrangements provide for a specific designation of the selected facility, in particular as the FIXON Demonstration Centre. If the Partner has multiple facilities, the way in which products, exposures, test tools and marketing materials are deployed is the Partner's, taking into account the objectives of the Programme and standards agreed with the Supplier or the Mediator.

2.9. Model of cooperation with Partner with multiple facilities

A partner with multiple facilities may use the FIXON Partner Programme in a manner adapted to its own organisational structure.

FIXON grants materials, exposure, test tools and storage support to the Partner, and the Partner decides on their internal deployment unless the Parties agree otherwise.

The partner may allocate part of the facilities for primary service, part for extended presentation, and one selected facility or initiative to serve as the FIXON Demonstration Centre if such status is granted.

However, this does not create an automatic obligation for the Partner to run a specific hierarchy of establishments.

The partner is responsible for ensuring that the model of distribution chosen by him enables the implementation of the objectives of the Programme, in particular the availability of products, the presentation of the offer, proper reporting and customer service.

If the Partner uses common marketing materials, a common QR code or common sales tools for multiple establishments, the rules for their application may be specified in separate Program Documents.

In the future, FIXON can implement a model of individual QR codes assigned to each facility, enabling identification of the source of client interest, an analysis of the sales funnel and an examination of purchasing preferences.

2.10. Model of e-catalogue and QR codes

The FIXON Partner Programme may use e-catalogues, QR codes, online demonstration materials and other digital tools supporting sales.

The QR code may in particular lead to:
an e-catalogue of FIXON products,

product pages,

demonstration materials,

training films,

the query form,

the order form,

partner or facility pages,

another resource indicated by FIXON.

In the initial phase of the Programme, QR codes may be common in nature and serve primarily to direct customers to information materials, e-catalogues or product presentations.

In the future FIXON can implement QR codes assigned to Partners or individual facilities.

QR codes assigned to a Partner or a facility may serve in particular to:

identification of the source of client interest,

assigning a query to a Partner or a facility,

analysis of exposure effectiveness,

testing of customers' product preferences,
analysis of the global sales funnel,
supporting settlements and commercial activities,
direct customers to the right purchase path.

Detailed rules for the operation of QR codes, e-catalogues and digital tools may be specified in separate Program Documents.

2.11. Partner autonomy

The Partner shall maintain its independence in the organisation of its own sales, distribution, internal logistics, exposure distribution and customer service, provided that these activities comply with the Agreement, Program and Program Documents. FIXON defines the principles of the Programme, products supported, brand standards, exposure rules, reporting model and conditions for using benefits, but does not manage the internal organisational structure of the Partner.

In particular, the Partner decides:

internal distribution of products between establishments,
distribution of marketing material,
location of test tools,
how staff are involved,
the use of own sales channels,
organisation of customer service,
internal circulation of information on FIXON products.

However, the partner should organise his own business so as not to impede the achievement of the objectives of the Programme, in particular sales, reporting, exposures, settlements, complaints and FIXON brand protection.

If the Partner benefits from the status of Strategic Partner or the FIXON Demonstration Centre, the scope of its autonomy may be clarified in the Charter of Strategic Powers, the Charter of the Demonstration Centre or other individual Program Document.

2.12. Summary of the distribution model

The FIXON distribution model is based on the assumption that the Partner can effectively sell professional tools without having to fully stock all products from the first day of cooperation.

The program combines several elements:

starting warehouse,
catalogue sales,
direct deliveries from the Supplier,
the underlying exposure,
test tools,
e-catalogue,
marketing support,
discount system,
development of partner status,
Strategic powers,
FIXON Demonstration Center.

Such a model allows the Partner to start sales in a secure way, develop the offer according to real demand and gain additional benefits with the increase in the importance of FIXON products in its operations.

This model allows FIXON to build a distribution network based on Partners with real access to customers and contractors while maintaining control over product availability, brand, exposure

and offer development.

3.1. Structure of Partnership Levels

The FIXON Partnership Programme is based on a three-step cooperation structure aimed at enabling the Partner to gradually develop the sale of FIXON products, increase the availability of tools for end customers and build an increasingly advanced model of cooperation with the Supplier.

The FIXON Partnership Programme has the following levels of partnership:

Authorised Partner FIXON,

Strategic Partner FIXON,

FIXON Demonstration Center.

Each level of partnership corresponds to a different scope of cooperation, a different level of involvement of the Partner and a different range of benefits available under the Programme. The structure of the Programme was designed in such a way that the Partner could start cooperation with a simple sales and exposure model and then develop it depending on the results, market needs, the nature of the customers served, the commitment to product development and the cost-effectiveness of further expanding cooperation for both parties. Partnership levels are not treated exclusively as a trading reward system. The higher level status may result from both the volume of sales and the role of the Partner in market development, the operation of a specific sales channel, the acquisition of an important client, active feedback, support for the implementation of a new product, or the creation of conditions for demonstration of FIXON products.

The award of a higher level of partnership shall not take place automatically unless the Partnership Agreement, the Partner Charter or other Programme Paper expressly provides otherwise.

The decisions on granting, maintaining, limiting, suspending or withdrawing a higher level of partnership shall be taken by the Supplier taking into account the interest of the FIXON brand, the course of cooperation, the potential of the Partner and the cost-effectiveness of the cooperation model for both parties.

3.2. The nature of the development path of the Partner

The development path of the Partner in the FIXON Partner Programme is gradual.

As a general rule, Partner starts cooperation as Authorised Partner FIXON.

A partner who meets the conditions justifying the extension of cooperation can obtain FIXON Strategic Partner status.

The Strategic Partner, who has adequate demonstration, commercial, organisational or market potential, can obtain FIXON Demonstration Centre status.

The standard development path is as follows:

Authorised Partner FIXON,

Strategic Partner FIXON,

FIXON Demonstration Center.

However, the programme does not exclude a situation where the Partner already at an early stage of cooperation has specific potential to justify the faster granting of extended conditions, if this is due to the nature of its activities, the scale of the distribution channel, access to customers, the planned promotional action, the service of a large wholesale customer or the participation in product development.

Each award of higher status requires confirmation in the relevant document, in particular in the Partner Charter, the Strategic Powers Charter, the FIXON Demonstration Centre Card or other Program Document.

The mere fact that a particular sales result has been achieved, that exposures are conducted, that many establishments are held or that they are involved in promotion activities does not create an automatic claim for a higher status, unless the Parties expressly agree otherwise.

3.3. Status awarded to the Partner as an entity

The status of participation in the FIXON Partnership Programme is generally granted to the

Partner as a company, not a single trading facility.

The partner retains the freedom of internal organization of its own distribution, including the freedom to decide in which establishments, sales channels, reception points, commercial teams or promotional initiatives will use FIXON products, marketing materials, test tools and exposure.

FIXON does not interfere in the internal division of tasks, products, marketing materials and exposures between the Partner's premises unless the Parties individually agree a specific cooperation model.

If the Partner has multiple facilities, marketing materials, exposure, testing tools, starting warehouse and warehouse-supported products are awarded to the Partner as an entity. The way they are distributed and used within the organization of the Partner belongs to the Partner.

The Partner shall be responsible for ensuring that the internal distribution organisation enables the implementation of the basic obligations arising from the Programme, in particular: proper reporting of sales,

proper reporting of stock,

maintaining brand protection standards,

correct use of marketing materials,

proper storage of products,

complaint handling,

proper use of test and demonstration tools,

cooperation with the Supplier or Mediator.

The exception to the principle of granting the status of the entire company may apply to the FIXON Demonstration Centre, which may be linked to a specific facility, showroom, demonstration zone, sales initiative or other agreed presentation of products.

Even in the case of the Demonstration Centre, the status is granted to the Partner, while its implementation can be assigned to a specific location, facility, channel or form of action indicated in the FIXON Demonstration Centre Charter.

3.4. Authorized FIXON Partner - Basic Level

Authorised FIXON Partner is the basic level of participation in the FIXON Partner Programme.

The status of Authorised Partner FIXON is obtained by an entity that concludes the FIXON Partnership Agreement and is allowed to participate in the Program.

Authorised FIXON Partner is given the opportunity to start selling FIXON products in a model adapted to its own business, without the need to fully store the entire offer.

The goal of the Authorized Partner level is to allow the Partner to safely launch the sale, check customer interest, implement the basic exposure and start reporting sales results.

Authorised FIXON Partner may use in particular:

the current offer of FIXON products,

Catalogue Pricelist,

marketing materials,

e-catalogue,

QR codes, if made available,

test tools or tools to the extent agreed with the Supplier,

the launch warehouse,

Warehouse States Support Program,

the basic discount system,

product training,

sales consultations,

the complaint procedure,

Delivery or Mediator support.

Authorised Partner FIXON agrees with the Supplier or Mediator on the range of materials needed to launch the sale, in particular:
the type and quantity of marketing material,
type of test tools,
the structure of the starting warehouse,
the use of e-catalogue,
method of communication of offers in outlets or sales channels,
how to report sales and stock.

The Authorized Partner does not automatically obtain Strategic Rights, market protection, product exclusivity, extended warehouses or FIXON Demonstration Centre status.
The Authorised Partner may, however, develop cooperation towards a Strategic Partner if the course of cooperation, sales results, market activity, access to customers or participation in product development warrant a higher level of partnership.

3.5. Role of Authorised Partner in the Programme

The Authorized Partner has a fundamental commercial, exhibition and information role in the Programme.

It shall in particular:

actively offering FIXON products to customers,
presenting products as a practical complement to the basic offer,
use of marketing material made available,
directing customers to an e-catalogue or demonstration material,
enabling customers to familiarise themselves with the test tool, if provided,
submission of sales reports,
alert reporting,
providing information on customer needs,
making complaints in accordance with the procedure,
taking care of the image of FIXON brand.

The Authorized Partner should treat FIXON products as part of a complete offer for the final customer rather than as a random catalogue addition.

In the case of Partners selling construction, tabloid, road or related materials, FIXON products should be presented as tools to support the more efficient use of these materials in practice.

The Authorized Partner does not need to have an extensive tooling department or full storage facilities. The program was designed to allow sales to start with limited stocking and support of the Supplier.

The well run level of the Authorized Partner allows to collect the first data on sales, customer preferences, product rotation and the appropriateness of further stock increases.

3.6. FIXON Strategic Partner - Extended Level

The FIXON Strategic Partner is the second level of cooperation in the Programme.

The status of the Strategic Partner may be granted to the Authorized Partner whose cooperation with FIXON justifies the granting of an additional Strategic Authority.

The status of the Strategic Partner is not just a reward for repetitive turnover. It may also result from a single but significant business event or a specific role of the Partner in market or product development.

The Strategic Partner may be established in particular in the following situations:

The partner built a database of regular customers generating above average purchasing volumes,
Partner has acquired or operates a significant wholesale customer,
the viability of market protection or sales channel has emerged in the particular sales channel,

The partner achieves stable, above average sales results justifying the increase in stock,

The partner regularly sells custom-made products on a scale justifying their provision of warehouse support,

The partner contributed to the creation of a new product through feedback from the market,

The partner has special access to a group of customers, investments, industry channel or local market,

The partner carries out activities that create an important strategic value for FIXON.

The Strategic Partner must meet the basic conditions for proper cooperation, in particular:

properly report sales and stock,

timely payment,

respect the principles of brand protection,

use FIXON materials as intended,

implement the obligations arising from the Agreement and the Programme Documents,

conduct exposure on a general basis, unless its Strategic Power requires a specific exposure.

The status of Strategic Partner is granted by the Supplier.

The Partner shall not be entitled to a claim to grant, maintain, extend or change the status of a Strategic Partner unless a separate document expressly provides otherwise.

3.7 Strategic powers of the Strategic Partner

The Strategic Partner may receive one leading Strategic Authority.

Strategic power is a special benefit granted to the Partner due to the nature of his cooperation with FIXON.

Basic Strategic Entitlements include:

Additional Strategic Discount,

Market protection,

Extended Warehouse States Support Program,

Product exclusive or Premier exclusive.

As a general rule, the Supplier offers Partner Strategic Entitlement best suited to the source of value created by the Partner.

The Partner may propose different Strategic Rights than those indicated by the Supplier.

The final scope of Strategic Powers is agreed individually and confirmed in the Strategic Powers Charter or other Program Document.

If the Partner has one leading Strategic Entitlement, this does not preclude the granting of additional benefits of another kind if the Supplier considers it justified.

Additional benefits may be limited to the benefits of the Partner for which the given Strategic Authority is the lead.

For example, a Partner whose main Strategic Entitlement is Additional Strategic Discount may receive limited market protection or a selected expansion of stocks, if this is justified by the model of cooperation. However, this does not mean that it has the full scope of these powers.

Any Strategic Entitlement may be restricted, suspended or revoked in the cases specified in the Programme, the Agreement, the Charter of Strategic Power or any other Program Document.

3.8. Character of the Strategic Partner by source of advantage

The FIXON Partner Programme assumes that the Strategic Partner may have different sources of advantage.

Depending on the source, the Partner can develop in one of several strategic profiles.

The discount profile refers to a Partner who has built a regular customer base or serves customers generating above average purchasing volumes. In this case, Additional Strategic Discount may enable Partner to build his own loyalty model, serve wholesale customers, create individual offers or increase competitiveness in large orders.

The market profile concerns a Partner whose channel of sale, territory, industry, customer group, project or investment justifies granting Market Protection. Protection may be granted when its application is cost-effective for both parties and avoids distortions of cooperation by excessive competition in the same channel.

The warehouse profile concerns a Partner who generates fixed, above average sales results or regularly sells products available on request. In this case, expanding storage support can reduce logistics costs, shorten customer service times and increase product availability.

The Product or Premier Profile concerns a Partner whose feedback from the market has led to the creation of a new product or an important product variant. In such a case, the Partner may obtain an Exclusive Premiere or other specific conditions for the implementation of the product.

Strategic profiles are used to describe the logic of granting allowances. They are not a closed catalogue of cases where the Supplier can grant the Partner the status of Strategic Partner.

In future, the Supplier may develop additional strategic profiles if this justifies the development of the offer, market or cooperation model.

3.9. FIXON Demonstration Centre - Highest Level

The FIXON Demonstration Centre is the highest level of cooperation in the FIXON Partnership Programme.

The status of the FIXON Demonstration Centre may only be granted to the Strategic Partner.

The FIXON Demonstration Centre is an agreed form of sale, exposure, demonstration, testing and handling of FIXON products under unique commercial conditions.

As a general rule, the FIXON Demonstration Centre takes the form of a physical showroom, a demonstration facility or a separate space in which customers can read the full range of FIXON products.

However, the programme also allows other forms of the Demonstration Centre, in particular: mobile demonstration centre,

cyclic field shows,

the demonstration zone at the Partner's facility,

seasonal show centre,

sector events carried out cyclically,

another initiative accepted by the Supplier.

The FIXON Demonstration Centre may have:

the exposure of all products offered or agreed part of the tender,

test samples of products,

stock of standard products,

warehouse stocks of products available from other partners only on order,

access to special products,

possibility to handle unique orders,

specific conditions for direct sales,

support for training, lead, material, exposure and promotion activities.

The FIXON Demonstration Centre may be the place to which customers are addressed requiring a fuller presentation of the product, tool test, special product handling, custom order or technical consultation.

The status of the FIXON Demonstration Centre, its scope, specialisation, impact area, special terms and conditions of cooperation with other Partners are defined by the FIXON Demonstration Centre Charter or other individual Program Document.

3.10. Report from the Centre for Strategic Entitlements

The FIXON Demonstration Centre does not replace the Strategic Powers previously granted to the Strategic Partner.

The partner acquiring the status of the FIXON Demonstration Centre retains the main benefit of its leading Strategic Powers, unless the Charter of the Demonstration Centre or other document provides otherwise.

The Demonstration Centre may at the same time benefit from a limited range of benefits appropriate for other Strategic Entitlements.

This means that the FIXON Demonstration Centre may combine elements:
additional discount conditions,

the protection of the market or of a specific area of impact,

extended storage support,

access to special, test, premiere or custom-made products,

Exposure support,

managing customers and lead.

The scope of these benefits may vary depending on the profile of the Demonstration Centre.

A partner whose leading Strategic Entitlement was the Additional Strategic Discount can retain the strongest discount from the Demonstration Centres.

A partner whose leading Strategic Entitlement was Market Protection may retain the strongest range of market protection among Demonstration Centres.

A partner, whose leading Strategic Authority was the Extended Warehouse States Support Program, can retain the widest range of warehouse support among Demonstration Centres.

A partner whose leading Strategic Entitlement was Product Exclusive or Premiere may retain the widest access to premiere, special, test or developed products with its participation.

The detailed scope of the benefit of the Demonstration Centre does not automatically arise from the Programme itself and requires individual determination.

3.11. No automatic exclusivity and no claim

To describe a level of partnership in the Programme does not mean to automatically assign this level to the Partner.

To describe a given Strategic Power does not mean to automatically grant this Power to a Partner.

The status of the Strategic Partner, the FIXON Demonstration Centre and Strategic Powers are individual and require the Supplier's decision.

The partner shall not be entitled to a claim for:

granting strategic partner status,

granting the status of the FIXON Demonstration Centre,

granting an Additional Strategic Rabat,

granting market protection,

granting the Extended Storage States Support Programme,

granting Product Exclusive or Premier Exclusive,

the maintenance of a certain range of benefits, unless otherwise provided by the Programme Documents.

The lack of an automatic claim does not mean the application of the Program. The supplier should make decisions in accordance with the objectives of the Programme, the interest of FIXON brand, the course of cooperation and the cost-effectiveness of the solution for both parties.

3.12. Changing the level of partnership

The level of partnership may be changed in the event of a change in the nature of cooperation, sales results, partner activity, market needs, product development or a legitimate organisational need.

The level change may consist of:

granting the status of Strategic Partner,

granting the status of the FIXON Demonstration Centre,

changing Strategic Powers,
extending the scope of cooperation,
limiting the scope of cooperation,
suspension of certain status,
withdrawal of a certain status.

The Partner may request a higher level of partnership or a change of Strategic Power.

The Partner's request does not bind the Supplier, but should be considered taking into account the circumstances presented by the Partner.

The supplier may also offer the Partner a change in the level of cooperation or a specific Strategic Power.

When changing the level of the partnership, the Supplier may take into account in particular:
the result of the sale,

quality of reporting,

timeliness of payments,

quality of operational cooperation,

Partner access to customers,

the potential of the sales channel,

the quality and effectiveness of the exposure,

Partner participation in product development,

economic justification for granting additional conditions,

compliance of the activities of the Partner with the interests of FIXON.

3.13. Limitation, suspension or withdrawal of status

The status of the Strategic Partner, of the FIXON Demonstration Centre or specified Strategic Entitlement may be restricted, suspended or revoked in the cases specified in the Agreement, Program, Partner Charter, Strategic Powers Charter, Demonstration Centre Charter or other Program Document.

Restriction, suspension or withdrawal of status may occur in particular in the case of:

violation of the Partnership Agreement,

violations of the FIXON Partnership Programme,

violations of the principles of brand protection,

breach of confidentiality rules,

non-term reporting,

late payment,

non-cooperation in settlements,

lack of cooperation in inventory,

actions destabilising the sales network,

non-use of assigned Strategic Powers in accordance with its objective,

loss of economic justification for the maintenance of the power,

changes in market conditions,

changes in the development strategy of the FIXON network.

In the case of product exclusivity or preliminary exclusivity, the specific basis for the loss of entitlement may be the lack of the required feedback on the test, launch or development product with the Partner.

Losing a certain Strategic Power does not necessarily mean losing the status of a Strategic Partner if the Supplier considers that the Partner can use another Strategic Power or continue to cooperate on a changed basis.

In the event of the loss of Product Exclusive or Premiere due to the lack of the required

feedback, the Strategic Partner may choose another Strategic Entitlement, provided that the Supplier accepts this choice and considers the continued maintenance of the Strategic Partner status to be justified.

Withdrawal of the status of the Demonstration Centre does not necessarily mean the automatic loss of the status of the Strategic Partner, unless the reasons for the withdrawal also justify a change in the strategic status.

3.14. Importance of partnership levels for customers

Partnership levels are important not only for the relationship between Partner and FIXON, but also for the way final customers are served.

The Authorized Partner may allow the customer to purchase FIXON products, get acquainted with the basic exposition, use the e-catalogue and order the products available in the offer.

The Strategic Partner may serve customers requiring specific commercial conditions, specific channel protection, larger volumes, custom-made products or products covered by a specific Strategic Authorisation.

The FIXON Demonstration Centre can support customers requiring a test, full presentation, consultation, special product, premiere product, custom product or direct sales in an extended model.

In certain situations, customers may be directed to the FIXON Demonstration Centre by the Supplier, Mediator, Partner or other Partners not holding the status of the Demonstration Centre.

Examples of situations where the client can be referred to the FIXON Demonstration Centre are: the need to test the product before buying,

interest in a physically unavailable product in an ordinary facility,

the need for consultation on the selection of tools,

wholesale or non-standard contracts,

interest in a special or premiere product,

the need to compare several tools,

operating a contractor planning a larger investment,

the need to demonstrate the product for the implementing team,

request for enhanced technical support,

a promotional action in a specific region.

Partners who do not have the status of a Demonstration Centre may support the Centre's operation by informing customers about the possibility of testing products, participating in shows or obtaining extended consultation.

The rules for directing customers to the Demonstration Centre may be specified in the Charter of the Demonstration Centre, Program Documents or separate arrangements.

3.15. The importance of partnership levels for FIXON network organisations

The three-stage partnership structure allows FIXON to develop the distribution network in an orderly and flexible manner.

Authorized Partners provide basic product availability, market contact, catalogue sales, basic exposure and first information about customer interest.

Strategic partners allow you to develop special sales channels, handle larger volumes, protect selected areas of cooperation, implement custom-made products to store and develop new products.

FIXON Demonstration Centers create the highest level of presentation and service of products, allowing customers to test, compare and purchase tools in an extended formula.

Such a structure allows the network to develop without having to grant all partners the same conditions and at the same time gives each Partner a clear path of development.

The aim of the Programme is not to create accidental competition between Partners, but to build a network in which individual entities can play different roles depending on their potential, sales channel and engagement.

3.16. Summary of Partnership Level Principles

The FIXON Partnership Program includes three levels of partnership: Authorized Partner, Strategic Partner and FIXON Demonstration Centre.

The Authorized Partner is a basic level that allows you to start selling and use the core tools of the Program.

The Strategic Partner is an extended level associated with the granting of Strategic Powers resulting from the nature of cooperation, results, sales channel, participation in product development or other strategic value.

The FIXON Demonstration Centre is the highest level of cooperation, enabling showrooms, demonstrations, tests, direct sales, special products and unique orders.

The status is generally granted to the Partner as a company and not to individual facilities, subject to specific arrangements for the FIXON Demonstration Centre.

The partner retains the freedom to organise its own distribution, but is responsible for the proper implementation of the obligations arising from the Programme, Agreement and Program Documents.

Granting higher status and Strategic Rights requires a decision Suppliers and confirmations in the relevant document.

Each level of partnership is to support a common objective: to develop the sale of FIXON products, to increase the availability of professional tools for end customers, to protect the brand and to build a stable and cost-effective distribution network.

4.1. The status of Authorised Partner FIXON

Authorised FIXON Partner is the basic level of participation in the FIXON Partner Programmeme. The status of Authorized Partner FIXON is obtained by an entity that has concluded the FIXON Partnership Agreement and has been allowed to participate in the Program on the terms specified by the Supplier.

The status of the Authorized Partner enables the Partner to start selling FIXON products in a distribution model supported by product exposure, e-catalogue, marketing materials, test tools and Warehouse States Support Program.

The Authorized Partner does not need to have a full FIXON product warehouse or an extensive tool department. The program was designed so that Partner could start sales with limited stocking and gradually develop the scope of cooperation based on actual sales results.

The purpose of Authorised Partner status is to enable Partner:

- launching the sale of FIXON products,
- presenting the offer to final customers,
- testing sales potential in their distribution channels,
- start reporting sales and stock,
- collecting first feedback from customers,
- establishing the basis for a possible strategic partner status.

The Authorized Partner is a full participant in the Program, but does not automatically use Strategic Powers, market protection, product exclusivity, extended warehouses or FIXON Demonstration Centre status.

Granting the status of Authorized Partner does not mean exclusivity to the Partner for the sale of FIXON products, protection of the territory, protection of the sales channel and the right to specific commercial conditions, unless this is due to a separate document.

4.2. Authorised Partner Level Purpose

The Authorized Partner level was created as a practical stage in the implementation of FIXON products to the Partner's offer.

At this stage, the Partner should receive the tools needed to start the sale, but without having to bear the full organisational and storage burden associated with the construction of a complete product category.

The Authorised Partner level is intended to enable you to check:
which products are of greatest interest to customers,

which sales channels of the Partner respond best to FIXON offer,
the questions and needs of customers,
which products should be kept in storage,
which products can be effectively sold from the catalogue,
whether there are grounds for increasing stock,
whether the Partner has the potential to gain higher status.

The level of the Authorized Partner is also intended to reduce the risk of excessive stocking. The partner does not need to maintain a broad list of products at once, but can develop sales gradually, based on actual market interest.

For FIXON, the Authorized Partner level is a stage to evaluate the quality of cooperation, timely reporting, the Partner's ability to serve customers, sales potential and the usefulness of the distribution channel.

For the Partner, it is a stage where he can check how FIXON products supplement his offer and whether their sales support the sale of materials, services or other basic products.

4.3. Authorized Partner Startup Package

After the conclusion of the FIXON Partnership Agreement, the Authorized Partner may receive a launch package allowing the sale of FIXON products to be launched.

The launch package is agreed individually with the Supplier or Mediator, taking into account the scale of the Partner's activities, the number of establishments, sales channels, customer profile, the available exhibition space and the expected sales potential.

The launch package may include in particular:
marketing materials,

FIXON brand markings,

banners, roll-ups, stickers, information boards or other identification elements,

catalogues, leaflets, product cards or information material,

QR code leading to e-catalogue or demonstration materials,

one test tool from the master exposure pool,

access to the FIXON e-catalogue,

Current Price list

the current product range,

access to sales materials,

product or sales training,

implementation consultation,

launch warehouse in the range agreed with the Supplier.

The scope of the launch package should be tailored to the real needs of the Partner. The programme does not provide an identical package to each Partner regardless of its business model.

If the Partner has multiple facilities, the launch package can be selected in the amount necessary to launch sales in subsidiary facilities or other sales channels of the Partner.

The manner in which the elements of the starting package are placed between the premises, commercial departments or sales channels of the Partner belongs to the Partner unless the Parties agree otherwise.

The launch package is implemented and serves to start sales. Its transfer does not mean that the Partner is granted the status of Strategic Partner or the FIXON Demonstration Centre.

4.4. Marketing materials in the start package

The Authorized Partner can receive a basic package of marketing materials to enable customers to notice the FIXON offer and get to know the basic product information.

Marketing materials may include in particular:
banners,

roll-ups,
stickers,
indications of shelves or zones of sale,
directories,
leaflets,
information plates,
QR codes,
product graphics,
materials for use in online communication,
demonstration materials,
other elements agreed with the Supplier or Mediator.

The type and number of marketing materials are agreed with the Partner. The selection of materials should correspond to the nature of the facilities, sales channels, available space and the real exhibition opportunities of the Partner.

The basic marketing package is provided to the Partner free of charge in scope agreed with the Supplier or Mediator.

Marketing materials shall remain the property of FIXON unless the Parties agree otherwise.

The partner is obliged to use marketing materials according to their intended purpose and take care of their technical and aesthetic condition.

The partner is not entitled to modify marketing material, change markings, change graphics, delete elements of brand identification or use of materials in a way that may affect FIXON's image.

In the event of termination of the Partner's Agreement, marketing materials may be settled in the final settlement at a value equivalent to 50% of the documented cost of their production, unless otherwise agreed by the Parties.

Detailed rules for the exposure, use and settlement of marketing materials may be specified in the Standards of Exposure, Brand Politics or other Program Document.

4.5 QR and e-catalogue code in Authorized Partner model

The Authorized Partner may use the QR code leading to e-catalogue, demonstration material, product page or other resource indicated by FIXON.

The QR code is a tool supporting sales in a situation where the customer wants to get acquainted with a wider offer, see how the product works, check the available variants, or return to the offer when the conversation with the trader is over.

In the initial phase of the Program, the QR code can be common and serve primarily to direct customers to the e-catalogue and FIXON information materials.

In future, FIXON can implement the reference QR codes assigned to Partner, facility, sales channel or specific campaign.

The reference QR code may in particular serve:
identification of the source of client interest,

assigning a query to a Partner or a facility,

analysis of exposure effectiveness,

testing customer preferences,

analysis of the sales funnel,

supporting settlements or commercial activities,

measuring the effectiveness of marketing material.

The partner should place the QR code in locations visible to customers, in particular at exposures, marketing materials, catalogues, sales area or other points of contact with the client.

The QR code does not replace the trade conversation but is intended to supplement it. Its task is to enable the client to access more complete information when the trader does not

physically present the entire offer.

If the customer returns to purchase after time, the QR code may allow you to re-enter the offer and maintain contact with the product.

Detailed rules for the use of QR and e-catalogue codes may be specified in a separate Program Document.

4.6. Authorized Partner Test Tool

The Authorized Partner may receive one test tool from the primary exposure pool.

The test tool is primarily used to present performance quality, ergonomics, method of operation and practical benefits of the product.

The aim of the test tool is not to replace the full exposure of all products, but to allow the customer to physically contact the selected product and build confidence in FIXON brand quality.

The type of test tool is agreed with the Supplier or Mediator, taking into account the profile of the Partner's activities and typical customers served by the Partner.

The test tool shall remain the property of FIXON, regardless of the status of the Partner, unless the Parties agree otherwise.

The test tool can only be sold to the customer with the consent of the Supplier.

In case of normal use of the test tool, the Partner may request the Supplier or the Mediator to replace it.

Normal use of the test tool resulting from its demonstration function is not considered as a damage on the part of the Partner.

In case of loss, destruction or damage to the test tool from Partner's fault, the tool can be cleared with the Partner using a 50% discount from the catalog price or otherwise agreed by the Parties.

The partner can obtain additional test tools outside the basic pool on the terms specified in the Program, Exposure Standards or individual arrangements.

The Authorized Partner may purchase additional test tools or exposure elements with a 50% discount, if the Supplier makes this possible.

The Strategic Partner may receive additional test or exposure tools for the warehouse with final settlement and with a 50% discount on the catalogue price on the day of transfer.

The FIXON Demonstration Centre may receive test or exhibition tools free of charge in the agreed range.

4.7. Authorized Partner Launch Magazine

The Authorized Partner may receive a starting warehouse within the scope specified in the Agreement, Program, Product Lists covered by Storage Support or individual arrangements.

The starting warehouse shall be awarded to the Partner as an entity and not to individual facilities unless the Parties agree otherwise.

The way the products are divided from the starting warehouse between the premises, sales channels or sales teams of the Partner belongs to the Partner.

The goal of the starting warehouse is to enable the Partner to start selling selected products available immediately without the need to include the full offer of FIXON stock.

The starting warehouse does not have to and will in principle not cover the full list of products covered by storage support.

The structure of the starting warehouse is selected by the Partner from the product pool proposed by FIXON.

The partner may propose to include the starting warehouse of the product outside the starting pool, but this requires individual agreement with the Supplier.

The supplier may refuse to include in the starting warehouse a product which is not included in the proposed product pool or whose availability at this stage of cooperation is not justified.

Products covered by storage support but not included in the starting warehouse may be offered from the catalogue in the first period as products available with delivery from the Supplier or custom products.

If the product is offered from a delivery catalogue from the Supplier, its price presented to the customer may take account of the cost of delivery according to the terms specified in the

Price list or e-catalogue.

At the time of acceptance of a given product into the Partner's warehouse, the catalogue price may be adjusted to a level that does not include the cost of delivery of a single package, if such a mechanism is provided for in the Pricelist or other Program Document.

Detailed rules of the launch warehouse are described in the Chapter on the launch warehouse and the Warehouse States Support Program.

4.8. Authorized Partner Training

The Authorized Partner should be implemented in the basic rules for the sale of FIXON products.

The purpose of the training is not to create a complex sales system requiring a large involvement of each employee of the facility, but to provide basic information enabling effective customer interest in the product and direct it to further materials.

The FIXON sales model should minimise the burden on partner sales teams, in particular by using:

simple sales messages,

e-catalogue,

QR codes,

demonstration materials,

product films,

test tools,

consultation with the Supplier or Mediator.

Basic training can be conducted by FIXON or Mediator.

Training may take the form of:

online training,

fixed training,

product presentation,

training materials,

sales consultation,

implementation meeting.

In principle, FIXON or the Mediator may organise two training dates for all the sites of the Partner or for persons designated by the Partner.

The partner should ensure the participation of those responsible for sales, customer service, exposure or coordination with FIXON.

Each partner institution may obtain an individual sales consultation where the nature of the establishment's activities, the customer profile or the manner in which the exposure is organised so requires.

The partner may conduct further internal training on the basis of the materials provided by FIXON or the Mediator.

The partner is responsible for ensuring that those selling FIXON products have the basic knowledge necessary to properly submit the offer to the client.

4.9. Obligations of the Authorized Partner

The Authorized Partner undertakes to sell FIXON products in accordance with the Agreement, Program and Program Documents.

The core duties of the Authorized Partner include:

actively offering FIXON products to customers,

use of marketing material as intended,

keeping the test tools and materials transferred in good condition,

conducting sales using the current Pricelist,

reporting of sales within the required time limits,

reporting of stocks,
reporting the achievement of alert thresholds,
making complaints in accordance with the procedure,
information on differences in stock,
taking care of the positive image of FIXON brand,
not misleading customers about the parameters, the destination, origin or availability of products,
compliance with the rules on marketing materials and FIXON,
timely settlement of accounts receivables.

The partner should use the products, materials and tools provided under the Programme to develop the sales, presentation of products and customer service.

The Partner should not use materials, test tools or products covered by the Programme in a way contrary to their intended purpose or likely to undermine FIXON's interest.

The Partner should provide the Supplier or the Mediator with information relevant to the development of cooperation, in particular regarding customer interest, product questions, implementation problems, demand for new products and comments from the market.

4.10. Minimum sales commitment

The Authorized Partner should demonstrate core activity in the sales and presentation of FIXON products.

This activity does not have to consist in creating a separate tool sales department, but should include the actual inclusion of FIXON products in the Partner's offer.

The minimum sales commitment may include in particular:

placing marketing materials in agreed places,
providing customers with information on products,
use of the QR code or e-catalogue,
presentation of the test tool,
offering FIXON products for the sale of basic materials,
forwarding customer queries,
submission of sales reports,
reporting of the need to supplement the warehouse,
participation in training or implementation consultation.

The absence of any sales activity, lack of reporting or lack of cooperation on settlements may result in a reduction of support, a suspension of storage supplements, a change in the scope of cooperation or a termination of the Agreement on the terms specified therein.

4.11. The Authorized Partner's Report to the Warehouse States Support Program

The Authorized Partner may participate in the Warehouse Support Program on the terms set out in the Agreement, the Program and the Product Lists covered by the Warehouse Support Program.

Participation in the Storage States Support Program does not mean that the Partner automatically receives storage stocks of all FIXON products.

The range of stocks depends on:

the launch warehouse,
the product pool proposed by FIXON,
sales results,
availability of products,
the history of cooperation,
the principles set out in the List of Products for Storage Support,
individual findings.

Products that are not in the Partner's warehouse can still be offered from the catalogue as products available with delivery from the Supplier, custom products or products available on individual terms.

Sales of catalogue products and order products may affect the Sales Result in accordance with the rules set out in the Programme.

Regular sales of a particular product may give rise to storage support for subsequent periods where the rules set out in the Programme are met.

4.12 Authorised Partner relationship to Strategic Partner

The Authorized Partner can develop cooperation towards becoming a Strategic Partner.

The grounds for considering the status of Strategic Partner may be in particular:

building a permanent recipient base,

above average sales volumes,

acquisition of a significant wholesale customer,

the cost-effectiveness of protecting a particular sales channel,

the achievement of fixed results justifying an increase in stock,

regular sale of products on order,

Partner participation in the development of a new product,

providing feedback leading to the implementation of the new product,

specific activity in product promotion and demonstration,

Another strategic value for FIXON.

The Authorized Partner does not automatically acquire Strategic Partner status after achieving a certain level of sales, unless a separate document explicitly provides for such a mechanism.

The decision to grant the status of Strategic Partner belongs to the Supplier and needs confirmation in the relevant document.

The Authorized Partner may declare interest in gaining the status of Strategic Partner, indicating business justification, the proposed direction of development of cooperation and the preferred Strategic Entitlement.

4.13. Advantages of Authorized Partner

Participation in the Program as Authorized Partner gives the Partner the opportunity to start selling FIXON products in a low entry threshold model.

The main benefits of the Authorized Partner are:

the possibility of selling professional FIXON products,

access to the offer and the catalogue price list,

the possibility of using marketing materials,

the possibility of using e-catalogue and QR codes,

the possibility of receiving a test tool,

the possibility of launching the starting warehouse,

the possibility of selling delivery products from the Supplier,

possibility to sell products on order,

the basic discount system,

training and consultation,

the possibility of development to the level of the Strategic Partner,

the possibility of participating in product development through feedback.

The Authorized Partner may use FIXON products to increase the value of the customer's basket and build a more complete offer for contractors.

In the case of Partners selling construction, tabloid or road materials, FIXON products can be a natural complement to material sales and support the customer in more efficient work.

For the Partner, this means the possibility of selling an additional product without the need

to build a tool system from scratch.

4.14. Summary of Authorised Partner Level

Authorised FIXON Partner is the basic but key level of the Program.

At this level, the Partner receives the tools needed to start the sale: marketing materials, access to the offer, e-catalogue, testing tool, training, the possibility of starting warehouse and participation in the Warehouse States Support Program.

The Authorized Partner retains the freedom to organise its own distribution, but is responsible for correct reporting, billing, brand protection and proper use of the materials provided.

The Authorized Partner level is used to test the sales potential, collect market data and build the basis for possible transition to Strategic Partner level.

A well conducted cooperation at the level of the Authorized Partner is the foundation of the entire FIXON Partnership Programme, as it is at this stage that the first sales results, first feedback from customers and the first decisions about further development of cooperation are created.

5.1. Objective of exposure of FIXON products

The exhibition of FIXON products is one of the basic elements of the FIXON Partnership Program.

The purpose of the exposure is to allow the final customer to familiarise themselves with the FIXON brand, the basic function of the products, their use and the benefits of using professional tools in the executive work.

The exhibition does not have to rely on physical presentation of the entire FIXON product offer in each Partner facility.

The programme shall include a mixed exposure model, including in particular: marketing materials,

FIXON brand markings,

QR code leading to e-catalogue or demonstration materials,

one test tool from the master exposure pool,

selected products available in the starting warehouse,

access to a fuller offer through a catalogue, e-catalogue or commercial consultation,

the ability to refer the client to the FIXON Demonstration Centre if such a Centre functions in a particular cooperation model.

The exhibition is intended to support sales but at the same time should not overburden the partner's organisational facilities.

The FIXON exhibition model is designed to enable sales even in facilities that do not have a separate tool section or a large exhibition space.

The main purpose of the exhibition is to draw the client's attention to the fact that the Partner can buy not only material, but also tools to facilitate working with this material.

The exposition should help traders to start a conversation with the customer and direct it to the right purchase path: a product available in stock, a product from a catalogue, a custom product, a test tool or a Demonstration Centre.

5.2. Exposure function on sale

The exhibition of FIXON products serves as information, sales, demonstration and image.

The information function is that the customer learns about the availability of FIXON products from the Partner.

The sales function is that the exposure increases the chance to purchase the tool together with the basic material or as a standalone product.

The demonstration function is that the customer can see or test the selected tool, and in the absence of a physical exposure of the full offer he can view demonstration materials online.

The image function is that the Partner presents himself as a provider of complete solutions for contractors, not just as a point of sale of material.

The exposition should help the client understand that FIXON tools respond to practical work problems, such as:

- fatigue of workers,
- repeated bending and moving of components,
- difficulty in precise adjustment of materials,
- makeshift construction solutions,
- waste of time on ancillary activities,
- the need for amendments,
- no specialised tools available at the time of purchase of the material.

A properly prepared exposure should shorten the customer's path from interest to purchase. The customer should easily notice the FIXON brand, understand the basic use of the product and be able to move to more complete information through QR code, e-catalogue, conversation with the trader or test tool.

5.3. Basic exhibition and marketing package

Authorised FIXON Partner can receive the basic exhibition and marketing package necessary to launch the sale of FIXON products.

The basic exhibition-marketing package shall be agreed individually with the Supplier or Mediator, taking into account:

- the nature of the Partner's activities,
- number of outlets or sales channels,
- customer profile,
- the available exposure area,
- how to conduct sales,
- the possibility of presenting products,
- the range of the starting warehouse,
- the planned promotion activities.

The basic exposure-marketing package may include in particular:

- banners,
- roll-ups,
- stickers,
- markings of shelves or sales zones,
- information plates,
- directories,
- leaflets,
- product cards,
- product graphics,
- QR codes,
- POS materials,
- Internet communication materials,
- video material or links to demonstration material,
- other materials agreed with the Supplier or Mediator.

Not every Partner has to receive an identical set of materials. The scope of the materials provided should correspond to the actual way in which they are sold and the possibilities of using them.

The basic exhibition and marketing package is provided free of charge to the extent agreed with the Supplier or Mediator.

The free transfer of the basic package does not mean that the Partner acquires its property

unless the Parties expressly agree otherwise.

Elements of the basic package should only be used to promote, present and sell FIXON products.

5.4. Aggregation of exposure range

The scope of the exposure is determined between Partner and Supplier or Mediator.

If the Partner has multiple facilities, the arrangements can be conducted collectively for the whole organization of the Partner.

FIXON does not require that each partner facility has an identical exposure.

The Partner shall decide on the internal distribution of the transferred exposure elements, unless the Parties agree on specific requirements for specific materials, products or promotional activities.

The internal circulation of the exposure elements, their distribution between the facilities and the transfer between the sales points belongs to the Partner.

However, the partner should ensure that the materials provided are used in a manner consistent with their intended use and that they effectively support the sale of FIXON products.

If the Partner considers that the transferred materials do not meet the conditions of the facility or the sales channel, he may notify the Supplier or the Mediator of the need to change the type of materials.

The supplier or intermediary may propose a different type of exposure, better suited to a specific model of Partner sales.

5.5. Property of marketing and exhibition material

The marketing and exhibition materials provided to the Partner by FIXON shall remain the property of FIXON unless the Parties expressly agree otherwise.

The Partner is obliged to use the materials as intended and cannot use them in a way contrary to FIXON's interest.

The partner cannot without the consent of the Supplier:

remove FIXON brand markings,

change the content of materials,

modify the schedule,

use materials to promote products of other brands,

transfer of material to third parties outside the scope of cooperation,

use materials after the end of the cooperation,

destroy or permanently process materials in such a way as to prevent further use.

The partner should take care of the proper technical, aesthetic and usability of the materials.

In case of natural consumption of materials resulting from normal use of the exposure, the Partner may report the need to exchange them.

In the event of damage, destruction, loss or misuse of material from Partner's fault, The supplier may include their value in the final settlement.

In the event of termination of the Agreement through Partner's fault, marketing and exhibition materials may be sold to the Partner in the final settlement for an amount corresponding to 50% of the documented cost of their production, unless the Parties agree otherwise.

The above rules shall apply mutatis mutandis to the materials provided under the basic exposure-marketing package and additional exposure elements, unless otherwise provided in the Programme Documents.

5.6. Basic exposure test tools

Depending on the profile of the Partner's activities and the arrangements with the Supplier or Mediator, the Partner may receive one test tool from a pool of tools available in the basic exposure.

The test tool is intended to enable the customer to physically contact the product and evaluate its quality, ergonomics, operation and practical application.

The test tool should be considered as an element supporting sales rather than as a product intended for the free use of the internal Partner.

The partner should organise access to the test tool so that it can support trade talks, presentations, consultations or demonstration activities.

The test tool shall remain the property of FIXON, regardless of the status of the Partner, unless the Parties agree otherwise.

The test tool can only be sold to the customer with the consent of the Supplier.

The normal use of the test tool resulting from its demonstration function does not burden the Partner.

In case of normal use of the test tool, the Partner may request the Supplier or the Mediator to replace it.

In case of loss, damage or destruction of the test tool from Partner's fault, the tool can be settled with the Partner using 50% discount on the catalog price.

Detailed rules for the use, exchange and settlement of test tools may be specified in the Exposure Standards or other Program Document.

5.7. Additional exposure elements

A partner may wish to equip his sales organisation with additional exposure elements, additional test tools, expanded marketing materials or other exposure modules.

Additional exposure elements may include in particular:

additional test tools,

additional demonstration products,

extended stand,

additional POS materials,

additional visual indications,

Mobile exposure elements,

promotional material,

equipment for the demonstration area.

The rules for the transfer or settlement of additional exposure elements depend on the status of the Partner.

The Authorized Partner may acquire additional exposure elements with a discount of 50% from the catalogue price or other value indicated by the Supplier, if the Supplier makes this possible.

The Strategic Partner may receive additional elements of the exposure to the warehouse, including them in the final settlement and with a 50% discount compared to the catalogue price in force on the day of transfer.

The FIXON Demonstration Centre may receive additional exposure elements free of charge to the extent agreed with the Supplier.

The transmission of additional exposure elements requires agreement on the scope, purpose and manner of use.

The self-notification by the Partner of the intention to receive an additional exposure does not oblige the Supplier to transfer it.

The supplier may refuse to submit an additional exposure if he considers that its scope is not justified by the Partner's profile, sales results, available space, planned activities or programme principles.

5.8. Physical exposure and digital exposure

The FIXON Partnership Programme assumes parallel use of physical exposure and digital exposure.

Physical exposure shall include in particular:

marketing materials placed at the place of sale,

FIXON brand markings,

test tool,

products available in the starting warehouse,

additional exposure elements,

the presentation zone or the place of conversation with the client.

The digital exposure shall include in particular:

e-catalogue,

QR code,

online demonstration materials,

product films,

product cards,

photos,

training materials,

request forms,

other digital tools made available by FIXON.

The purpose of the digital display is to allow the customer to familiarise themselves with products that are not physically available in a given facility or channel of sale.

Digital exposure is particularly important in a model in which the Partner does not keep a full tool warehouse, but offers some products with a catalog or delivery from the Supplier.

The partner should treat the QR code and the e-catalogue as a tool to extend the exposure rather than as a substitute for active product offering.

The trader should be able to tell the customer where the QR code is, what information can be obtained after scanning it, and how to request or order a product.

5.9. Mandatory display equipment

Marketing and information elements agreed with the Supplier or Mediator are mandatory equipment of the Partner under the Programme.

Mandatory exhibition equipment may include in particular:

FIXON brand designation,

basic product information,

QR code or e-catalogue information,

selected graphic materials,

test tool, if given,

other elements agreed in the implementation.

The obligation to maintain the exhibition equipment does not imply the obligation to place identical materials in each Partner facility unless the Parties agree otherwise.

The partner is responsible for ensuring that the presented exhibition elements are used in a way that allows customers to actually get acquainted with the FIXON offer.

If the material has been transferred to the Partner but not used, The supplier or intermediary may request an explanation of how they are used or propose to modify the exposure model.

Long-term lack of use of the transferred material may be taken into account when assessing cooperation, granting further benefits or clearing of exposure elements.

5.10. Exposure and the role of the trader

The exposition should facilitate the work of the trader, not replace the sales conversation entirely.

The trader does not need to know all the technical details of each product, but should understand the basic logic of the FIXON offer:

products are intended to improve executive work,

part of products reduces physical effort,

some products improve work precision,

part of the products replaces temporary construction solutions,

products may be sold together with material,

the full offer can be shown by e-catalogue or QR code.

The minimum role of the trader is to:
note that the customer is doing work where FIXON products can be useful,
indicate to the client that the Partner has a FIXON tool offer,
show the test tool, if available,
direct the client to the QR code or e-catalogue,
forward the request to the person responsible for cooperation with FIXON,
propose the purchase of the tool together with the material, if appropriate.

The FIXON sales model is intended to minimise the burden on the Partner's staff, therefore the exposure, QR code, e-catalogue and demonstration materials should support the trader when it does not carry out specialized tool sales.

The supplier or intermediary may provide the Partner with simple business conversation scenarios, training materials, product application descriptions or other sales support tools.

5.11. Exhibition a Exhibition Centre FIXON

The FIXON Demonstration Centre conducts an extended exposure.

The exhibition of the Demonstration Centre may cover all FIXON products or an agreed part of the offer, depending on the extent of the status granted.

The Demonstration Centre may have:

- more test tools,
- exposure of special products,
- exposure of products available from other Partners only on order,
- Test and premiere products,
- demonstration zone,
- training materials,
- additional marking elements,
- tools for conducting demonstrations and consultations.

The Demonstration Centre may receive exposure elements free of charge to the extent agreed with the Supplier.

The exhibition of the Demonstration Centre should enable the client to get a fuller understanding of the offer than the basic exposition of the Authorized Partner.

Partners without the status of a Demonstration Centre may direct customers to the nearest Centre in situations where the customer requires a product test, a comparison of several tools, a special order service or a technical consultation.

5.12. Exposure and products on order

Products available on order may be presented to the customer through digital exposure, printed materials, catalogues, films, QR codes or commercial consultation.

The lack of physical presence of the product in Partner's warehouse should not preclude its active offer to customers.

The partner should use e-catalogues and demonstration materials to present products he does not have in stock.

In the case of higher value products, specialized products or products requiring a broader discussion, the customer may be directed to the Supplier, Mediator, Strategic Partner or Demonstration Centre.

If a particular product starts to sell on a regular basis, this may justify providing storage support in accordance with the rules of the Programme.

In the case of products made exclusively on order and requiring a longer delivery date, regular sales may be the basis for considering granting partner strategic status and extended storage support for a given product.

5.13. Updated materials and exposures

The supplier can update marketing materials, graphics, product cards, catalogues, e-catalogue

content, demonstration films, QR codes and other exposure elements.

Updates may result in particular from:

the introduction of new products,

changes in product parameters,

price changes,

changes in the sales model,

implementation of new graphic materials,

modification of the test or launch offer,

development of the FIXON Partnership Programme.

The Partner should use the current materials provided by the Supplier or Mediator.

A partner should not use outdated materials if they may mislead customers about price, availability, product characteristics, contract terms or sales rules.

If updated materials are received, the Partner should replace them within a reasonable period of time if the Supplier or the Mediator indicates such a need.

If the material update requires the exchange of physical elements, the manner of exchange and settlement shall be determined either individually or in accordance with the Exposure Standards.

5.14. Exposure control and verification

The supplier or intermediary may verify the use of marketing materials, test tools and exposure elements.

Verification may be as follows:

talks with Partner,

requests for information,

analysis of photos sent by the Partner,

visits of the representative,

assessment of the effectiveness of materials,

analysis of data from QR or e-catalogue codes,

checks in relation to divergences in states or settlements.

The verification of exposures should be carried out in an excessive manner and in line with the objectives of the Programme.

The supplier or intermediary may request the Partner to send pictures of the exposure, if this is justified by the need to assess the use of the materials provided, prepare new materials or explain the discrepancies.

Where verification concerns stock, stock value control or divergence, the rules set out in the Chapter on the Storage States Support Programme shall apply.

If incorrect use of materials is found, the Supplier or Mediator may call on the Partner to change the exposure method or propose another solution.

5.15. No exposure maintenance

If the Partner does not use the marketing, testing or exposure tools provided as intended, The supplier or intermediary may request an explanation from the Partner.

If no exposure is due to organisational reasons, The partner may propose another way of using the materials.

If the lack of exposure persists despite a call or prevents the achievement of the objectives of the Programme, The supplier may:

limit the transmission of further materials,

suspend the transmission of additional exposure elements,

refuse to transfer further test tools,

take this into account when assessing the Partner,

refuse to grant or extend Strategic Rights,

amend the conditions for further cooperation on exposure.

Non-maintenance of the exposure may be of particular importance when assessing the Partner applying for Strategic Partner status or the FIXON Demonstration Centre.

If the Partner has a Strategic Entitlement requiring a specific exposure, the lack of such an exposure may form the basis for limiting, suspending or withdrawing a given rating.

5.16. Exposure as a tool for the development of sales

The exposure of FIXON products should be treated as a tool for the development of sales rather than merely as a visual element.

Its task is to direct customer attention to a practical problem that the product solves.

The most effective exposure should answer customer questions:

what the product is used for,

what kind of work can help,

whether it reduces the worker's effort,

whether it accelerates the operation,

whether it improves work precision,

whether it replaces makeshift solutions,

whether it can be purchased with material,

whether the product is available immediately, from the catalogue or on request.

The exhibition should help the Partner to sell FIXON products as part of a complete offer for the contractor.

The well-used exposure allows the Partner to increase the value of the order, improve the quality of customer service and build the image of the supplier of practical implementing solutions.

The aim of the Programme is to organise the exhibition so that the final customer easily notices the FIXON offer, understands its application and can proceed to purchase or further consultation without unduly burdening the partner's staff.

5.17. Summary of exposure rules

Exposure of FIXON products is a mandatory element of the Programme in scope agreed with the Supplier or Mediator.

The basic marketing package is provided to the Partner free of charge in the agreed scope.

Marketing and exhibition materials shall remain the property of FIXON unless the Parties agree otherwise.

One test tool from the core exposure pool may be transferred to the Partner to support sales.

Additional exposure elements may be transferred or accounted for on the basis of the status of the Partner.

The Authorized Partner can purchase additional exposure elements with a 50% discount.

The Strategic Partner may receive an additional exposure to the warehouse with a final settlement of 50% discount.

The FIXON Demonstration Centre may receive additional exposure free of charge to the extent agreed with the Supplier.

The partner retains the freedom to place the exposure in its organisation, but is responsible for its proper use.

The detailed exposure rules, including material types, visual requirements, logo usage rules, presentation standards and update procedures, may be specified in a separate document: FIXON Exposure Standards.

6.1. Target of the launch depot

The launch warehouse is one of the basic tools for starting cooperation between the Supplier and Partner.

The aim of the starting warehouse is to enable the Partner to start selling selected FIXON products available immediately, without the need to immediately store the full product offer.

The launch warehouse is implemented. This means that its task is to start sales, to examine

customer reactions, to check the rotation of selected products, and to create a basis for later determination of storage support levels based on actual sales results.

The starting warehouse is not the full target warehouse of the Partner and should not be treated as a constant, unchanged level of handling.

The starting warehouse allows the Partner to start selling FIXON products in a way that reduces the risk of over-contribution, while at the same time providing customers with the opportunity to purchase selected products without waiting for a catalogue order.

The launch warehouse is also of sales and exhibition importance. Products located in the starting warehouse can be used as instant products, products supporting the commercial conversation and products confirming the real availability of FIXON offer from the Partner.

The goal of the starting warehouse is to create the first point of contact of the client with FIXON products and to allow the Partner to move from a catalogue presentation to actual sales.

6.2. Nature of the launch depot

The starting warehouse is awarded to the Partner as an entity and not to the individual sites of the Partner, unless the Parties individually agree otherwise.

If the Partner has multiple facilities, the method of dividing the products covered by the starting warehouse between the premises, sales channels, sales representatives or other organizational units is the Partner's.

The supplier does not interfere in the internal distribution of the products of the starting warehouse at the Partner, as long as the Partner ensures proper reporting of sales, stock stocks, returns, complaints and possible discrepancies.

The starting warehouse is based on the agreed budget, the proposed product pool and the expected sales potential of the Partner.

The starting warehouse does not have to include all the products in the FIXON offer.

The starting warehouse does not need to include all products on the Product List covered by the Storage Support.

As a rule, the launch warehouse will only cover selected products from the starting pool proposed by the Supplier or Mediator.

Products not included in the starting warehouse may still be offered to customers from the catalogue, e-catalogue, QR code or demonstration materials.

The launch warehouse is the first stage in the construction of the real availability of FIXON products from Partner. In subsequent Settlement Periods, stock levels are already established in accordance with the rules of the Warehouse Support Program.

6.3. Start storage value limit

In the first Settlement Period, the Supplier may grant the Partner a starting warehouse of a total value not exceeding the limit set in the FIXON Partnership Agreement.

According to the model adopted in the Programme, the basic starting warehouse limit is up to PLN 15,000 gross for the whole Partner, unless the Agreement, the Partner Card or other Program Document provides for a different limit.

The starting warehouse limit concerns the total value of products transferred to the Partner within the starting warehouse.

The limit shall not be calculated separately for each Partner's facility unless the Parties individually agree on such a model.

If the Partner has multiple facilities, the total starting warehouse limit can be distributed by the Partner between the Facility according to its internal needs.

The supplier may propose a starting warehouse structure corresponding to the typical profile of the Partner's customers, but the final selection of products from the available starting pool is made in agreement with the Partner.

The granting of the launch warehouse at maximum height is not automatic. The supplier may grant the starting warehouse at a lower value if this is justified by the nature of the cooperation, the scale of the Partner's activities, the expected product turnover, the availability of goods or the implementation phase of the Programme.

The Partner may request a specific structure of the starting warehouse, but the Supplier retains the right to refuse to include in the starting warehouse products which are not included in the proposed product pool or whose transfer requires individual arrangements.

6.4. Starting pool of products

The starting pool of products means the group of products proposed by the Supplier or Mediator as recommended products to start sales with the Partner.

The starting pool may include products that according to the Supplier are best suited to start sales in the standard partner model.

When determining the starting pool The supplier may include in particular:

product versatility,

ease of explanation to the customer of the application of the product,

expected rotation,

the attractiveness of the product to contractors,

storage availability on the supplier's side,

ease of presentation in the Partner facility,

the possibility of selling together with the basic material,

the educational value of the product in conversation with the client,

previous sales experience of FIXON.

The Partner selects the structure of the starting warehouse from the product pool proposed by the Supplier or Mediator.

The partner may propose to include in the starting warehouse a product outside of the starting pool, but this requires separate approval of the Supplier.

The supplier may refuse to include in the starting warehouse a product outside the starting pool if the product:

is special,

is performed only on order,

has limited availability,

requires additional logistical arrangements,

requires training or additional demonstration,

is intended for Strategic Partners or Demonstration Centres,

is not recommended for the first stage of implementation.

Refusal to include a product outside the starting pool in the starting warehouse does not mean that the product cannot be offered to customers in the catalogue, e-catalogue or in the order model.

6.5. Structure of the starting warehouse

The structure of the starting warehouse should be determined in such a way as to enable sales to start and at the same time limit the risk of maintaining the products without a proven interest of the customers.

In determining the structure of the starting warehouse, the Parties may take into account in particular:

Partner client type,

the most sold basic materials,

the nature of the work performed by the Clients of the Partner,

the potential to sell products for capture, transfer, profiling, levelling or organisation of work,

number of sites of the Partner,

method of delivery to final customers,

seasonality of sales,

planned promotional actions,

Partner's exposure opportunities,

availability of products on the Supplier's side.

The structure of the starting warehouse should include products that can actually be offered to customers in the first stage of cooperation.

The starting warehouse should not be created solely as a formal stock. It should match the real model of Partner sales.

If the Partner sells primarily to tabloid contractors, the starting warehouse should take into account products that may naturally be offered when selling cubes, plates, curbs or other tabloid elements.

If the Partner operates a wider construction market, the starting warehouse can be selected for products with more universal application.

If the Partner has a wholesale channel, the starting warehouse may include products that are easy to show and fast duplicate in the orders of subsequent customers.

The final structure of the starting warehouse should be confirmed in the List of Products Covered by Storage Support, Partner Card, Transfer Protocol or other Program Document.

6.6. Products outside the starting warehouse

Products that have not been included in the starting warehouse can still be offered to customers by the Partner.

Such products may be presented in particular by:
e-catalogue,

QR code,

printed catalogue,

product cards,

demonstration films,

trade consultation,

Product materials provided by the Supplier or Mediator.

Products outside the starting warehouse may have one of the following statuses:
available immediately with delivery from the Supplier,

available on order with delivery from the Supplier within the specified time limit,

available on individual terms,

available as test products,

available as premiere products,

available as special products,

not available for a given period.

Products covered by storage support but not included in the starting warehouse are generally offered from the catalogue as delivery products from the Supplier or custom products during the first period.

This model allows the Partner to offer a wider product catalog without the obligation to store the entire offer in the first stage of cooperation.

If the sale of a particular product outside the starting warehouse reaches a level justifying its continued maintenance, the product may be covered by the Storage States Support Scheme on the basis of the Programme.

6.7. Prices of non-start warehouse products

Products outside the starting warehouse, offered with delivery from the Supplier or as custom-made products, can be presented to the customer at prices that take account of delivery costs.

If the product is sold from the catalog and carried out by the Supplier, the price presented to the customer may include the cost of such delivery.

In such a model, the cost of delivery is not individually reimbursed to the Partner as it is included in the purchase price or product settlement model.

The supplier bears the cost of delivery of the package and the Partner settles the purchase of

the product according to the price provided for the particular availability model.
If the product is accepted as a Partner's warehouse, the catalogue price may be adjusted to a level that does not include the unit cost of the parcel delivery, if such a mechanism is provided for in the Catalogue Pricelist or other Program Document.
The Catalogue Pricelist can therefore predict different price models for the product depending on whether the product:
is located in Partner's warehouse,
is available immediately with delivery from the Supplier,
is available on order with delivery from the Supplier,
is a special product,
is an individual product.

The partner should present prices to the customer in accordance with the current Catalog Pricelist, e-catalogue or other document provided by the Supplier.

6.8. Start Magazine and Catalog Sales

Start warehouse and catalog sales should operate in parallel.
Products in the starting warehouse allow the Partner to immediately sell selected items.
The products available from the catalogue allow the Partner to present a wider offer of FIXON without having to fully stock it.
Partner's trader should understand that the lack of a product in the starting warehouse does not mean that it cannot be sold.
In case of interest in a product outside the starting warehouse, the trader shall:
show the product in the e-catalogue,
clarify the method of availability,
check delivery date,
inform the customer about the price according to the current catalogue,
accept the contract or submit the request in accordance with the Partner procedure,
consult the Supplier or Mediator if necessary.
Cataloguing sales allow the Partner to explore the interest of products not yet in its warehouse.
Cataloguing sales data can be used to determine which products should be covered by permanent storage support in the future.

6.9. Start Magazine a e-catalogue and QR code

The launch warehouse should be supported by e-catalogue and digital materials.
The e-catalogue allows the customer to get acquainted with products that are not physically located in the Partner's warehouse.
The QR code can be used as a tool to direct the client to a full offer, demonstration materials or product information.
In the initial phase of the Programme, the QR code may be of a common character and need not allow direct procurement of the product.
In future, the QR code can be developed into a tool to identify the Partner, the facility, the source of the query, customer preferences or the sales funnel stage.
Products in the starting warehouse should be presented as products available from the partner's hand, while the remaining offer can be presented by e-catalogue.
Such a combination reduces the need to maintain a wide warehouse and at the same time allows the customer to identify fully available solutions.

6.10. Start Magazine and Reporting

Products covered by the starting warehouse shall be reported in accordance with the rules of the Programme.
The partner should report the sale of the products from the starting warehouse in the monthly sales report.

The report shall enable the Supplier or the Mediator to determine:

which products have been sold,

the quantity sold,

the current stock,

whether there have been phrases,

whether there have been complaints,

whether there has been damage,

whether the alert threshold has been reached,

whether the product should be kept in storage.

The sale of products from the starting warehouse affects the Sales Result in accordance with the rules set out in the Program.

Data from the first Clearing Period may form the basis for establishing the levels of storage support for subsequent periods.

The absence of a report makes it impossible to properly settle the products, calculate the discount, assess sales and supplement the warehouse.

6.11. Launch warehouse and product ownership

Products delivered to the Partner as a starting warehouse remain owned Suppliers until their sale, settlement or other event provided for in the Agreement or Program.

The Partner is entitled to sell products in the starting warehouse to final customers or other buyers in accordance with the rules of the Programme.

The Partner shall not be entitled to set up a lien, overproprietary, security, lease, lease or dispose of products covered by the starting warehouse in a manner other than the sale of such products in accordance with the Programme.

From the moment of the release of products to the Partner until their sale, return or settlement, the Partner shall be responsible for their loss, destruction, damage or theft, subject to rules on complaint and product defects.

Products lost, destroyed or damaged by Partner's fault shall be accounted for in accordance with the rules laid down in the Agreement, Program and Program Documents.

Products sold by the Partner are reported and invoiced in accordance with the accounting rules in force in the Programme.

6.12. Change the structure of the launch warehouse

The structure of the starting warehouse may be changed if this is due to sales, customer needs, seasonality, availability of products or the assessment of the effectiveness of the first stage of cooperation.

A change in the structure of the starting warehouse may consist in particular of:

increasing the number of units of the product concerned,

reduction in the number of units of the product concerned,

replacing the poorly rotated product with another product,

adding a product outside the original starting pool,

temporary exclusion of the product,

change the presentation of the product from warehouse to catalogue.

Changing the structure of the starting warehouse requires agreement with the Supplier or Mediator.

The supplier may refuse to change the structure of the starting warehouse if the proposed change is not justified by the results of the sale, availability of the product, the nature of the cooperation or objectives of the Programme.

After the completion of the first Clearing Period, further stock determination shall be carried out on the basis of the Storage States Support Programme.

6.13. Start magazine and development of cooperation

The launch warehouse is the first step in verifying the potential of FIXON sales with Partner. The results achieved in the starting warehouse may affect:

- further levels of storage support,
- the decision to support further products,
- assessment of the potential of the Partner,
- the granting of additional exposure materials,
- granting additional test tools,
- the possibility of becoming a Strategic Partner,
- the possibility of granting Strategic Powers.

The starting warehouse should be treated by the Partner as an active sales tool rather than a passive inventory of products.

The partner should aim to ensure that the products covered by the starting warehouse are actually offered to customers, presented in trade talks and used to build interest in FIXON. The lack of sales of products from the starting warehouse is not an automatic breach of the Program, but may form the basis for changing the warehouse structure, limiting states or moving parts of products to the catalogue model.

If the sale of the products from the starting warehouse is developing dynamically, this may justify an increase in stock during subsequent periods in accordance with the rules of the Programme.

6.14. Launch warehouse and custom products

On order, products need not be included in the starting warehouse.

Only custom-made products or longer-term products may be offered to customers in the catalogue model.

The sale of such products may be taken into account in the Sales Result in accordance with the rules for converting sales value into Sales Units.

If a Partner regularly sells a particular custom-made product, this may constitute the basis for considering placing the product under storage support.

In the case of custom-made products, the provision of warehouse support may require the status of a Strategic Partner or the award of an Extended Storage States Support Programme.

Products available immediately with delivery from the Supplier may enter storage support on a general basis if they achieve the required level of sales.

6.15. Summary of Start Magazine Principles

The launch warehouse is used to launch the sales of FIXON products with Partner.

The starting warehouse is awarded to the Partner as an entity, and the way in which it is divided between the facilities remains the responsibility of the Partner.

The basic starting warehouse limit is up to PLN 15,000 gross for the whole Partner, unless the Agreement or individual documents provide otherwise.

The Partner selects the structure of the starting warehouse from the product pool proposed by the Supplier or Mediator.

Products outside the starting pool may be included in the starting warehouse only after agreement with the Supplier.

The starting warehouse does not cover the full offer of FIXON and does not in principle cover the full list of products covered by storage support.

Products outside the starting warehouse can be offered to customers from the catalogue, e-catalogue or as custom products.

Prices of delivery products from the Supplier may include the cost of delivery according to Price list or e-catalogue.

The products from the starting warehouse remain owned Suppliers until the sale, settlement or other event provided for in the Agreement or Program.

The results of the launch warehouse sale form the basis for the further development of the Warehouse States Support Program.

7.1. Purpose of the Warehouse States Support Program

The Warehouse States Support Program is one of the basic mechanisms of the FIXON Partner Programme.

The aim of the Warehouse States Support Program is to provide Partner with the ability to conduct the current sale of selected FIXON products without the need to finance the full product warehouse independently.

The program is intended to enable the Partner to maintain warehouse stocks of those products whose sales have been confirmed by the real interest of customers.

The Warehouse States Support Program shall serve in particular:

increasing the availability of FIXON products with the Partner,

limiting customer waiting time on the most sold products,

optimization of logistics costs,

limitation of accidental handling,

matching warehouse level to real sales,

supporting the active sale of FIXON products,

construction of a predictable model of state replenishment,

reducing the storage risk on the partner's side.

The scheme is based on the assumption that fixed stock should be maintained primarily for products whose sales have reached a level justifying their availability from the outset.

The scheme is not a one-time transfer of a large warehouse, but a cyclical adjustment of stock levels to sales results and actual market demand.

7.2. Scope of the Warehouse States Support Program

The Warehouse States Support Scheme may include the products indicated by the Supplier in the Storage Support List.

The list of products covered by Warehouse Support is determined individually for each Partner.

The list shall not be determined separately for each Partner's facility unless the Parties decide otherwise individually.

If the Partner has multiple facilities, the way in which the products covered by the storage support are placed between the Facility belongs to the Partner.

The programme may include in particular:

products available in the starting warehouse,

products available in storage support,

products available immediately with delivery from the Supplier,

products available on order with delivery from the Supplier,

products available on an individual basis,

test or premiere products, if covered by the Programme,

exhibition or demonstration products, if so marked,

operating products excluded from the Sales Result if they are listed for information.

The mere placement of the product in the FIXON offer does not automatically mean that the product is covered by storage support from a given Partner.

The scope of the Programme for a Partner is based on the current Product List covered by Warehouse Support and other individual Program Documents.

7.3. Conditions for placing the product under storage support

After the first Clearance Period, the product may be subject to storage support if, in accordance with the rules of the Programme, the number of units allocated to that product is at least 5.

The number of units allocated is calculated as 40% of the highest Sales Result of a given item achieved by the Partner in one Settlement Period from up to twelve previous Settlement Periods.

The result of the calculation shall be rounded up to the full piece.

This means that, in principle, the minimum monthly Sales result of a given item, which

warrants the commencement of continuous storage support for that item, is 11 units. If the product has not reached the result justifying the granting of at least 5 warehouse support units, it may continue to be offered to customers from the catalogue, e-catalogue, delivery from the Supplier or as a custom product. The supplier may grant storage support for a product which does not comply with the above condition only in specific cases where this is justified by the strategy of product implementation, promotion action, customer character, partner status, status of the Demonstration Centre or individual arrangements. The granting of such support shall be individual and shall be recorded in the Product List covered by Storage Support or other Programme Document.

7.4. Principle of calculation of stock level

After the first Settlement Period, the level of stock for each Product range item is determined on the basis of the actual Sales Result. The basic level of storage support is 40% of the highest Sales result of a given position achieved by the Partner in one Settlement Period from up to twelve previous Settlement Periods. The calculation shall be made separately for each Productive Position. The result of the calculation shall always be rounded up to the full piece. Technical example:
if the highest Sales result of the item was 11 units, the level of support shall be 5 units,
if the highest Sales result of a given item was 20 units, the level of support shall be 8 units,
if the highest Sales result of a given item was 50 units, the level of support shall be 20 units.

These examples are explanatory and do not replace the individual List of Products covered by Storage Support.

The level of storage support may be changed in subsequent Settlement Periods if the result of sales, availability of products, Partner status or the scope of the allowances granted changes.

7.5. Best score of up to twelve Settlement Periods

The basis for establishing the stock level is the best sales result of the item from up to twelve previous Settlement Periods. The principle of the best result is to support the development of sales and limit the situation where a one-off drop in sales immediately reduces the availability of the product with the Partner. This mechanism allows the stock to be maintained at a level corresponding to the best proven sales, rather than just the last month. At the same time, the Programme does not provide for an unlimited stock where demand for the product ceases to be confirmed for subsequent periods. The supplier may analyse sales history, product rotation, seasonality, order structure and other factors affecting the reasonableness of storage. Where sales of the product are seasonal, The supplier may take seasonality into account when updating the List of Products covered by Storage Support. If the product ceases to rotate or if further storage is not justified, The supplier may change its status to a catalogue product, a custom product or a product available on individual terms.

7.6. Emergency threshold

For each Product range item covered by the Storage States Support Program, an Emergency Threshold is set. The Alarm threshold is 25% of the allocated stock level, not less than 2 units. The Alarm threshold means the level at which the Partner should report the need to replenish the stock.

The Alarm threshold is set for each position separately.

The Alert threshold should be visible in the Storage Support Product List.

Technical example:

if the level of storage is 8 units, the Alert threshold is 2 units,

if the level of storage is 20 units, the Alert threshold is 5 units,

if the level of storage is 40, the Alert threshold is 10.

The Emergency threshold is to provide time to replenish the products before the entire stock is exhausted.

The achievement of the Alert Threshold by one item triggers the possibility of reporting completion of the entire warehouse to the levels allocated at the beginning of the given Settlement Period.

7.7. Alert

The Partner may submit an alert at any time of the Settlement Period if at least one Product range reaches the Alarm Threshold.

An emergency notification should contain the current storage status of all items covered by the Storage States Support Program.

The requirement to indicate the status of all items results from the fact that after an emergency notification the Supplier may supplement the entire warehouse to the levels granted at the beginning of the relevant Settlement Period.

An emergency notification should enable the Supplier or the Mediator to determine:
which position reached the Emergency threshold,

what are the current states of other positions,

what quantity of products is needed to replenish storage,

whether there are differences in the state,

whether there are damaged, lost, advertised or withdrawn products from current sales.

An alert may be filed in a form agreed with the Supplier or Mediator, in particular by email, form, sheet, CRM system, B2B system or other document form.

An emergency notification shall not replace a monthly sales report unless the Supplier or the Mediator expressly decides otherwise.

If the emergency call is incomplete, The supplier or intermediary may call on the Partner to supplement it before completing the complementary delivery.

7.8. Stockfill

After receiving a proper emergency call The supplier can complete the partner's stock.

The supplement may include the entire warehouse covered by the Warehouse Support Scheme and not just the product that reached the Emergency Threshold.

The objective of this model is to reduce the number of partial deliveries and optimise logistics costs.

The supplement shall be made in principle to the stock levels granted at the beginning of the relevant Settlement Period.

Complementary deliveries may be made no more than once over seven consecutive calendar days.

The reduction in the frequency of deliveries is aimed at maintaining a rational logistics model and avoiding excessive fragmentation of supplies.

If, within the same seven-day period, the next position reaches the Alert Threshold, The supplier may decide to supplement it with another intended delivery unless the Parties agree otherwise.

The supplier may make the delivery of the complementary supply subject to proper sales reporting, lack of late payment and the absence of significant stock differences.

7.9. Limitation or temporary interruption of additions

The supplier may temporarily refuse or modify the volume of the complementary supply in the event of justified circumstances.

Such circumstances may include in particular:

production shortages,
warehouse restrictions on the supplier's side,
logistical delays,
an exceptional increase in demand,
restrictions on subcontractors,
temporary withdrawal of the product,
change of product parameters,
the need to update the price list,
the need to clarify significant storage gaps,
no sales report,

Partner's payment arrears.

If the limitation of additions is due to production, logistics or storage deficiencies on the part of the Supplier, the restriction should not last longer than 30 days unless exceptional circumstances or Higher Power occur.

In case of temporary restriction of product availability The supplier should provide the Partner with a temporary update of the catalogue, price list, list of products covered by warehouse support or other information indicating the current status of the product.

A temporary update may specify in particular:

no availability,
the expected availability date,
product replacement,
change the way you order,
change the status of the product to be available on request,
temporary suspension of additions.

The limitation or temporary interruption of additions does not mean an automatic breach of the Programme by the Supplier if it is due to legitimate circumstances and has been notified to the Partner.

7.10. Quarterly inventory

The partner shall carry out inventory of products covered by the Warehouse Support Programme at least once a quarter.

The purpose of the inventory is to confirm the compliance of the actual stock with sales reports, alarm reports and the list of products covered by Warehouse Support.

In particular, inventory should include:

products physically located with the Partner,
products sold but not yet accounted for,
returned products,
advertised products,
damaged products,
products lost,
exhibition and demonstration products where they are included in the records.

The Partner should provide the result of inventory of the Supplier or Mediator in a form agreed between the Parties.

The inventory result may be used for:

verification of sales reports,
the establishment of discrepancies,
state adjustments,
updating the list of products covered by storage support,

determination of liability for products lost or damaged,
evaluation of further participation of the Partner in the Programme.

7.11. Storage discrepancy

Storage discrepancy means the difference between the status of the reports, documents or Product List covered by Storage Support and the actual status of the products remaining with the Partner.

The Partner shall immediately inform the Supplier or the Mediator of any discrepancies found.

Divergences may arise in particular from:

reporting errors,

late sales entry,

returns,

complaints,

damage,

loss of product,

internal transfers between Partner's facilities,

theft,

errors when the product is accepted or issued.

If the discrepancy exceeds 5% of the value of the warehouse covered by the Warehouse Support Program, The Supplier or Mediator may require the Partner to send photographic documentation confirming the condition of the magazine.

If the discrepancy exceeds 15% of the value of the warehouse covered by the Warehouse Support Program, The supplier or intermediary may carry out an on-the-spot check after prior agreement with the Partner.

On-the-spot checks should be carried out in an excessive and limited manner to clarify discrepancies, state verifications and to ensure the proper functioning of the Programme.

Where discrepancies arise from reporting errors, The Parties should seek to clarify and correct them.

If the discrepancies arise from the loss, damage or destruction of Partner's products, these products shall be accounted for in accordance with the Agreement and the Programme.

7.12. Liability for products covered by storage support

Products covered by the Storage States Support Scheme remain owned Suppliers until they are sold, settled or any other event specified in the Agreement or Program.

The Partner shall be entitled to sell these products to final customers or other buyers in accordance with the rules of the Programme.

The Partner shall be responsible for the products from the moment they are delivered to the Partner until they are sold, returned or settled.

In particular, the Partner shall be responsible for:

loss of product,

destruction of the product,

product damage,

product theft,

incorrect storage,

unauthorised use,

Product regulation in a way incompatible with the Programme.

The Partner may not establish a lien on products, over-propriety, third party rights or dispose of products in a manner other than the sale according to the Programme.

Products lost, destroyed or damaged from Partner's fault shall be invoiced in accordance with the settlement rules set out in the Programme.

The settlement of the lost, damaged or damaged product from Partner's fault is not treated as

a Sales Result building a discount unless the Supplier expressly decides otherwise.
The above rules do not limit the producer's liability rules as recognised claims concerning product defects.

7.13. Exhibition and demonstration products under the Programme

Exposure and demonstration products may be registered under the Warehouse States Support Programme or a separate exhibition record.

These products are primarily used for presentations, demonstrations and sales support.

Normal consumption of exposure or demonstration products resulting from their destination shall not be treated as Sales Result.

The normal consumption of exhibition or demonstration products shall be the cost of operation of the Programme and shall be charged to the Supplier unless otherwise agreed by the Parties.

The damage, loss or destruction of the exposure or demonstration product due to the Partner shall be settled in accordance with the rules applicable to the exposure elements.

If the exhibition or demonstration product is to be sold to the customer, this requires the consent of the Supplier.

The sale of the exhibition or demonstration product may be accounted for on an individual basis.

7.14. Purchased products and storage support

Products made exclusively on order or products available on order with a longer delivery date are generally not automatically covered by the Standard Storage States Support Program.

Such products can be offered to customers by a Partner from a catalogue, e-catalogue or on individual terms.

Sales of products on order may be included in the Sales Result by converting the value of sales into Sales Units, in accordance with the Sales Result Chapter.

Regular sale of a custom-made product may constitute the basis for considering placing this product under storage support.

If a custom-made storage support product requires an individual model, this may form the basis for granting partner strategic partner status and permissions in the form of an Extended Storage States Support Program.

Products available immediately with delivery from the Supplier may enter storage support on a general basis if their sales meet the quantitative conditions set out in the Programme.

The FIXON Demonstration Centre may have warehouse stocks of products available from the other Partners only on order, if this is due to the Charter of the Demonstration Centre or other individual arrangements.

7.15. Products excluded, in service and special

Certain products may be excluded from or covered by the Warehouse States Support Programme under special conditions.

This applies in particular to:

operating articles,

spare parts,

service products,

only custom-made products,

test products,

Prime products,

special products,

products with reduced availability,

products available on individual terms.

Operational articles may be included on the List of Products covered by Storage Support only in information or as products excluded from the Sales Result.

The supplier may indicate in the Pricelist, Product List or other Program Document products excluded from the Sales Result or from the standard storage support rules.

Special products may be provided with storage support from the Strategic Partner or the Demonstration Centre if the cooperation model so warrants.

7.16. Update of the List of Products for Storage Support

The list of products covered by Storage Support is the basic operational document defining the scope of storage support of the Partner.

The list shall be updated at each Clearance Period in which the size of the allocated stock of at least one article changes.

The update of the List shall apply from the new Settlement Period unless the Parties individually agree otherwise in acceptable form.

The list is set separately for each Partner.

The list does not need to be set separately for each Partner facility.

The list shall indicate in particular:

product name,

the catalogue price,

number of units available in the starting warehouse,

number of pieces available in storage support,

the number of items available for exposure,

whether the product is available immediately with delivery from the manufacturer,

whether the product is available on order with delivery from the manufacturer and within what time,

whether the product is available on an individual basis,

whether the product is an in-service product excluded from the Sales Result,

Emergency threshold,

other information relevant to the sale or settlement.

The list does not need to contain an SKU code unless the Supplier deems it necessary in a given operating model.

The list can be transmitted to the Partner in document form, spreadsheet, PDF file, email, B2B system, CRM system or other agreed form.

7.17. Change Product Status on List

The status of the product on the Product List covered by Storage Support may change.

The product may be designated in particular as:

available in the starting warehouse,

available in storage support,

available for exposure,

available immediately with delivery from the manufacturer,

available on order with delivery from the manufacturer within the specified time limit,

available on an individual basis,

operating product excluded from the Sales Result,

the product is temporarily unavailable,

the withdrawn product,

Test or Premier Product.

A change in the status of a product may be due in particular to:
sales results,

product availability,

price changes,

implementation of a new product,

withdrawal of the product,

changes to the logistics model,
Granting Strategic Powers to the Partner,
granting the status of the Demonstration Centre,
the Supplier's decision resulting from the development of the Programme.

The change in the status of the product should be reflected in the update of the Product List covered by Storage Support or other Program Document.

7:18. No report and storage support

Correct reporting of sales and stock stocks is a condition for the operation of the Warehouse States Support Program.

No monthly report prevents:

correct calculation of the discount,
the correct issuing of the invoice,
correct assessment of the Sales Result,
updating stock levels,
implementation of storage supplements.

In the absence of a monthly report, the Supplier or Mediator may call on the Partner to submit it.

Until a proper report has been submitted, the completion of the warehouse shall be suspended.

If the Partner fails to report within 30 days of the request, The Supplier may terminate the Agreement on the terms specified therein, with the collection of the warehouse at the expense of the Partner and the final settlement of the actual stock.

In the absence of cooperation of the Partner in the reception of the warehouse The supplier may settle the entire warehouse transferred without applying a discount.

Detailed reporting rules shall be defined by the Reporting Chapter or a separate Reporting Procedure.

7.19th Warehouse States Support Program and Strategic Partner

The Authorized Partner uses the Storage States Support Program on basic principles.

The Strategic Partner can get the Extended Warehouse States Support Program as one of the Strategic Rights.

The main benefit of the Extended Storage States Support Program may be to increase the level of state replenishment from 40% to 80% of the highest Sales Result of a given item with a maximum of twelve previous Settlement Periods.

The extended programme may apply to all products, parts of products, selected categories, custom products or special products.

The increased limits should be indicated in the Storage Support Product List.

A partner using the Extended Warehouse Support Program shall be subject to general supplement rules unless the Supplier expressly decides otherwise.

FIXON does not, in principle, provide for a separate breakdown of the categories of warehouse supplies according to the status of Partner, unless the individual document provides for a specific solution.

7.20th Warehouse States Support Program and Demonstration Centre

The FIXON Demonstration Centre may have a wider range of warehouses than the Authorized Partner and Strategic Partner.

The Demonstration Centre may maintain the stock of all products offered or the agreed part of the offer, including products available only on order from other Partners.

The Demonstration Centre may have:

standard products,
products available on request,
special products,
test products,

Prime products,
demonstration products,
Exposure products,
products subject to individual conditions.

The detailed range of warehouses of the Demonstration Centre is determined by the Demographic Centre Charter or another Program Document.

The Demonstration Centre can serve as a place to which customers are directed interested in the product not available in the regular Partner facility, custom product, special product or test possibility.

7.21. Summary of the Warehouse States Support Program

The Warehouse States Support Program serves to ensure the availability of FIXON products from the Partner in a way proportional to actual sales.

After the first Clearing Period, the basic level of storage support shall be 40% of the best sales result of the item from up to twelve previous Settlement Periods.

The product shall be subject to continuous storage support where the calculated level of support is at least 5 units.

The result of the calculation shall be rounded up to the full piece.

The Alarm threshold is 25% of the level awarded, not less than 2 units.

The achievement of the Alarm Threshold by one position may trigger the completion of the entire warehouse to levels awarded at the beginning of the Settlement Period.

Complementary deliveries shall be made no more than once every 7 days.

The partner performs quarterly inventory.

Photographic documentation may be required for discrepancies exceeding 5% of the warehouse value.

An on-the-spot check may be carried out with discrepancies exceeding 15% of the warehouse value.

The absence of a monthly report suspends additions and prevents proper settlement.

The detailed scope of the Partner's storage support results from the current Product List covered by the Warehouse Support.

8.1. Purpose of the discount scheme

The FIXON Discount System is one of the basic mechanisms of the FIXON Partnership Program. The aim of the discount system is to premium partners who develop the sale of FIXON products, increase their availability for final customers and actively use their distribution channels to build the market.

The discount system is progressive. This means that the level of the Partner's discount increases with the increase in the Sales Result.

The system was designed to be as simple as possible operationally, transparent to the Partner and linked to the actual sales volume of FIXON products.

The discount is not treated exclusively as a reduction in the purchase price. It is a tool for developing cooperation to enable the Partner:

- building an attractive offer for customers,
- increasing trade margins,
- developing the sale of FIXON products,
- handling larger orders,
- development of relations with permanent recipients,
- gradual transition to higher levels of cooperation.

The discount system should support sales partners, but should not lead to destabilization of the distribution network or aggressive lowering of FIXON brand value.

Discounts are charged in accordance with the Agreement, Partner Programme, Catalog Pricelist, Sales Results and other Program Documents.

8.2. Basic assumptions of the discount scheme

The discount system is based on the Sales Result achieved by the Partner.

The Sales result shall be determined together for FIXON products covered by the Programme, taking into account the rules on warehouse products, custom products, returns, complaints and exemptions.

The discount is determined on the basis of the best Sales Result achieved by the Partner in up to twelve previous Settlement Periods.

This means that a temporary decrease in sales in one Settlement Period does not automatically result in a loss of the discount level if the Partner has previously achieved a higher score qualifying for a higher threshold.

The discount system serves to stabilise cooperation and encourages Partner to build long-term sales, instead of focusing solely on the result of one month.

The discount granted on the basis of the best Sales Result shall apply for the next Settlement Period, unless the Agreement, Pricing, Partner Card or other Program Document provides otherwise.

The discount applies to all FIXON products unless Pricelist, Product List, Program, Contract or other Program Document provides for the exclusion of a particular product, product group or additional costs.

Delivery costs shall not be discounted if they are listed in the Pricelist or included as a separate element of the price calculation.

If the product catalog price presented to the customer takes account of the delivery cost from the Supplier, the method of settling such cost results from the Price list, invoice or other Program Document.

8.3. Discount thresholds

The basic discount thresholds in the FIXON Partnership Programme are:

5 to 20 pieces - 5%,

21 to 100 pieces - 10%,

101 to 500 pieces - 15%,

from 501 pieces and more - 20%.

Discount thresholds are established on the basis of the Sales Result.

The Sales result may cover both the number of warehouse items sold and the Sales Units calculated on the basis of the sale of the products on order.

A partner that has reached a specific discount threshold shall benefit from the discount assigned to that threshold in the next Settlement Period.

If the Partner has achieved a higher Sales Result in the past over a period of up to twelve previous Settlement Periods, the best result applies to the determination of the discount level.

The supplier may grant additional bonuses, bonuses or special conditions to the Partner if the Partner performs above average sales results, operates a particularly valuable sales channel, supports significant customers or meets other conditions specified in the Program or individual Program Documents.

Additional bonuses, bonuses or special terms are not granted automatically and require the Supplier's decision.

8.4. Sales result

Sales result is the basis for establishing the Partner discount level.

The Sales result shall mean the Partner's total result determined for the relevant Settlement Period, taking into account the rules set out in the Programme, the Agreements and Program Documents.

The Sales result is counted together for all FIXON products covered by the Programme, unless Pricelist, Product List, Partner Card or other Program Document provides a special rule for certain products.

The Sales Result shall include in particular:

sold pieces of warehouse products,

sold items from the starting warehouse,

sold pieces of products covered by the Storage States Support Programme,
Sales units calculated from the value of sale to order of products,
returns if the sale was originally made and reported,
complaints if the sale was originally made and subject to reporting.

The Sales Result shall not include in particular:

normal consumption of exposure products,

normal use of test tools,

products damaged by Partner's fault,

products lost from Partner's fault,

products destroyed by Partner's fault,

products cleared solely because of the responsibility of the Partner,

operating articles,

other products indicated by the Supplier as excluded from the Sales Result.

The Sales result does not cover delivery costs if the cost of delivery is listed as a separate element of the price or settlement.

If the cost of delivery is included in the catalogue price of the product available with delivery from the Supplier, the way in which it is excluded or taken into account when calculating the discount may result from the Pricelist or invoice.

The Sales result should reflect the real business activity of the Partner rather than events arising solely from loss, damage or settlement of liability for the product.

8.5. Sales result and warehouse products

Storage products are included in the Sales Result by number of items sold.

The warehouse product is a product located with Partner in the starting warehouse or covered by the Storage States Support Program.

The sale of the storage product should be shown in the monthly sales report.

For the purposes of the Sales Result, one sold piece of the warehouse product corresponds to one unit of the Sales Result, unless the Supplier indicates a different rule for certain products.

Storage products sold to end customers, contractors, wholesale customers or other buyers are included in the Sales Result if the sales have been properly reported.

Products released, lost or damaged without sale to the customer do not include the Sales Result, even if they are invoiced to the Partner due to liability for the product.

8.6. Sales result and custom products

The custom products include the Sales Result by converting the value of their sales into Sales Units.

The conversion mechanism of products to order is intended to allow for the inclusion in the discount system of sales of products that are not counted by a simple number of items in the standard warehouse of the Partner.

This applies in particular to products:

made exclusively on individual order,

accessible with a longer deadline,

available on an individual basis,

not available as standard in Partner magazine,

with a higher unit value,

introduced to the offer in the procurement model.

The value of sales of products on order shall be converted to Sales Units by dividing the total net value of sales of such products in a given Settlement Period by the current catalogue net price of the most expensive product covered by the Warehouse States Support Program of the Partner.

The result of the conversion shall be rounded down to the full integer.

Technical example:

if the total net sales value of the products on order is PLN 12,000,

and the net price of the most expensive product covered by the Warehouse Support Programme is PLN 3 000,

the conversion result is 4 Sales Units.

If the result of the conversion does not give a full Sales Unit, the incomplete part does not increase the Sales Result.

This mechanism aims to maintain the proportion between the sale of standard products and custom products.

If the Partner is just beginning to cooperate and has a small range of warehouse support, the sale of a more expensive product on order may have a stronger impact on the Sales Result.

If the Partner has an extensive warehouse range, the same mechanism reduces the risk of excessive distortion of the result Sales by single expensive order.

8.7. Products available immediately with delivery from the Supplier

Products available immediately with delivery from the Supplier may be part of the Warehouse States Support Program and the catalogue offer.

If such a product is sold by the Partner to the customer and the Supplier makes the delivery, the sales may be taken into account in the Sales Result in accordance with the rules provided for the product.

If the product available immediately with delivery from the Supplier reaches the level of sales justifying the holding of warehouses with the Partner, the product may enter storage support on a general basis.

In that case, the product may be included in the Storage Support Product List with the level of storage granted.

The price of the product available immediately with delivery from the Supplier may include the cost of delivery according to e-catalogue or Catalog Price list.

If the product is later accepted for the Partner's warehouse, the Pricelist may provide for a price adjustment up to a level that does not take into account the unit cost of the parcel delivery.

8.8. Reimbursements and Complaints in Sales Result

Reimbursements and complaints shall be included in the Sales Result if the sales of the product were actually made and reported.

This principle is based on the assumption that the Partner has made sales activity, which should be visible in the history of cooperation.

The inclusion of return or complaint in the Sales Result does not automatically mean that the product will be invoiced or billed in the same way as the sales completed without return or complaint.

The financial consequences of returns and complaints shall be determined in accordance with the Agreement, the Complaint Procedure, Price list and billing documents.

If the complaint is recognised and the defect is not due to Partner's fault, the Partner shall not bear the cost of the accepted complaint.

The complaint risk of the product shall be borne by the manufacturer in accordance with the rules of the Complaint Procedure.

The refund or complaint should be shown in the monthly report in order to allow for a proper settlement of sales, stock and Sales Result.

8.9. Products damaged, lost and accounted for by Partner

Products damaged, lost, destroyed or accounted for by the Partner shall be invoiced in accordance with the rules laid down in the Agreement, Program and Program Documents.

The settlement of such products does not constitute the Sales Result.

This means that the product can be invoiced to the Partner, but does not increase the discount level, does not build the sales result and does not constitute a basis for increasing stock.

This principle concerns in particular:

products lost,

destroyed products,

products damaged by Partner's fault,

products which have not been identified during inventory,

products cleared due to lack of cooperation in the reception of the warehouse,

products which have been issued or used wrongly.

Exposure products or test tools damaged by Partner's fault can be accounted for with a 50% discount if such a model results from the Program or individual arrangements.

Non-exposure products damaged, lost or destroyed by Partner may be accounted for without discount unless the Supplier decides otherwise.

Settlement of Partner's liability cannot be treated as a sale with a discount.

8.10. Operating articles and products excluded

Operating articles are excluded from the Sales Result.

Operating articles shall mean products intended for the current consumption, periodic replacement, servicing or replenishment, indicated by the Supplier as excluded from the Sales Result.

The supplier may indicate the operating items in the Catalogue Pricelist, Product Lists Covered by Storage Support or other Program Document.

The supplier may also indicate other products or product groups excluded from the Sales Result.

The exclusion of the product from the Sales Result means that its sales do not increase the Partner's discount level unless the Supplier decides otherwise.

The product excluded from the Sales Result can still be sold by the Partner and invoiced in accordance with the appropriate Pricelist.

If the product is excluded from the Sales Result, this should be indicated in the Pricelist, Product Lists or other Program Document in such a way that the Partner can properly report.

8.11. Discount and FIXON offer

The basic discount resulting from the discount threshold applies in principle to all FIXON products.

However, the supplier may indicate the products, product groups, costs or billing items to which the discount does not apply.

Exemptions may relate in particular to:
delivery costs,

operating articles,

products available on individual terms,

test products,

Prime products,

special products,

additional services,

exposure elements,

the responsibility of the Partner.

Exemptions should be based on Pricelist, Product List, Partner Card, Strategic Permission Card or other Program Document.

If there is no explicit exemption, FIXON is deemed to be subject to a basic discount in accordance with the Partner's discount level.

8.12. Discount a Pricelist

The discount is calculated from the Net Catalog Price of the product, unless the Pricelist, invoice or individual arrangements provide for a different method of calculation.

Catalog Pricelist may indicate:
net price,
gross price,
the cost of delivery, if specified,
product status,
product availability,
exclusion from the Sales Result,
exclusion from discounting,
specific terms of sale.

The prices in force for the relevant Clearing Period remain the basis for invoicing of sales for that Clearing Period.

If the price of the product changes, the update shall apply from the date indicated by the Supplier in accordance with the rules of the Agreement and Program Documents.

Pricelist updates should be communicated to the Partner by the Supplier or Mediator.

The partner should use the current Price list when presenting the price to the client, reporting sales and verification of invoices.

8:13. Additional Strategic Discount

Regardless of the basic discount system, the Strategic Partner can get an Additional Strategic Discount.

Additional Strategic Discount is one of the Strategic Powers.

Additional Strategic Discount may be granted up to and including 5%.

Additional Strategic Discount is intended to enable the Partner to develop sales under special conditions, in particular when the Partner:

built a database of regular recipients,

supports customers with above-average purchasing volumes,

wants to build its own model of customer loyalty support,

conduct wholesale sales,

supports larger investment contracts,

needs greater commercial flexibility with large customers,

generates a significant volume of sales of FIXON products,

carry out activities to increase the continued presence of FIXON products in its sales channel.

Additional Strategic Discount shall not be granted automatically after a certain sale threshold has been reached.

Granting an Additional Strategic Rabat requires a decision of the Supplier and confirmation in the Charter of Strategic Powers or another Program Document.

The Partner can use Additional Strategic Discount to build its own loyalty program, individual conditions for regular customers or service customers with a larger purchasing scale.

Additional Strategic Discount may be limited, suspended or revoked in the event of a breach of the Agreement, the Programme, brand protection rules, reporting rules, payment deadlines or other relevant obligations of the Partner.

The drop in sales does not necessarily automatically mean the withdrawal of the Additional Strategic Discount, but may provide a basis for reviewing the appropriateness of continuing to maintain this power if the loss of volume is of a lasting nature and affects the profitability of cooperation.

8:14. Bonuses, bonuses and special terms

The supplier may grant partners additional bonuses, bonuses or special terms.

Bonuses and bonuses may be:

sales,

promotion,
seasonal,
implementation,
Product
loyalty,
strategic,
related to marketing.

Special conditions may apply in particular to:

a specific product,
a specific product group,
a specific customer,
the specific contract,
a specific sales channel,
the specified period,
a specific promotional action.

Bonuses, bonuses and special conditions shall not be granted automatically unless a separate Program Document clearly defines the terms of their acquisition.

The rules for the award, settlement and loss of bonuses, bonuses or special terms may be specified in the Partner Charter, the Strategic Rights Charter, the Promotion Rules, Pricelist or other Program Document.

8.15. Reporting as a condition for discount

Correct sales reporting is a condition for calculating the discount.

No sales report prevents:

determining the Sales Result,
the application of the appropriate discount threshold,
the correct issuing of the invoice,
updating stock levels,
an assessment of the basis for granting benefits.

If the Partner fails to submit the report within the time limit, The supplier or intermediary may call on the Partner to submit it.

Pending receipt of a proper report The supplier may suspend replenishment of the warehouse and settlement of benefits.

If the absence of a report persists despite a call, the rules set out in the Agreement, the Programme and the Reporting Chapter shall apply.

The discount cannot be properly applied without data to determine sales, returns, complaints, custom products and products excluded from the Sales Result.

8.16. Corrections to Sales Result

The Sales result may be corrected if the report contains errors or if the circumstances affecting the accuracy of the settlement are revealed after its submission.

The amendment may relate in particular to:

the wrong number of units sold,
incorrectly indicated value of products on order,
non-return,
an unclaimed complaint,
misclassification of the product as included in the Sales Result,
mistaking of the in-service article,
mistaking the cost of delivery,

miscalculations in terms of Sales Units,
disclosure of a product damaged or lost by Partner's fault.

Correction of the Sales Result may be made during the current or subsequent Settlement Period.
If the adjustment affects the level of the discount, the Parties shall make an appropriate settlement in accordance with the invoice, correction, compensation or other billing document.
The correction should not be treated as a sanction if it results from a manifest error and has been immediately explained.
Repeated reporting errors may, however, influence the assessment of cooperation and the granting of further benefits.

8:17. Meaning of the Sales Result for other elements of the Programme

Sales result matters not only for the level of discount.

The Sales result may also affect:

the level of stock,

the inclusion of the product in the Warehouse States Support Program,

increasing levels of replenishment,

assessment of the potential of the Partner,

granting strategic partner status,

granting the Extended Storage States Support Programme,

granting an Additional Strategic Rabat,

granting other benefits,

assessing the appropriateness of developing cooperation.

In the case of stocks, the result of the sale of the item is analysed separately for this item.

In the case of a discount scheme, the Sales result is calculated cumulatively for all products covered by the Programme, taking into account the rules for converting products to order. This means that the same data system can be used for different purposes but according to different calculation rules.

The partner should pay particular attention to the correct reporting, as the sales report simultaneously affects invoices, rebates, warehouses and the assessment of cooperation.

8:18. Example of the operation of the discount system

The example is purely explanatory and does not replace the provisions of the Agreement, Pricelist or individual Program Documents.

If the Partner in one of the last twelve Settlement Periods achieved a Sales Result of 85 units, its discount level corresponds to a threshold of 21 to 100 units, or 10%.

If in the following month the Partner reaches the Sales result of 40 units, but the best result from the last twelve Settlement Periods is still 85 units, the Partner maintains the 10% discount level.

If the Partner reaches the Sales result of 130 units in the following month, from the next Settlement Period he may be eligible for the threshold of 101 to 500 units, or 15%.

If the Partner sells products on order, their net value shall be converted to Sales Units in accordance with the principle described in the Programme.

If the Partner loses the warehouse product by his own fault, the product may be invoiced but does not increase the Sales Result and does not increase the discount.

8:19. Summary of the principles of the discount system

The FIXON discount system is progressive and based on the Sales Result.

The basic discount thresholds are:

5-20 pieces - 5%,

21-100 pieces - 10%,

101-500 pieces - 15%,

501 pieces and more - 20%.

The discount is determined on the basis of the best Sales Result with up to twelve previous Settlement Periods.

The Sales result is counted together for the products covered by the Programme.

On-order products are converted to Sales Units by dividing the net value of their sales by the net price of the most expensive product covered by the Warehouse Support Scheme.

The result of the conversion shall be rounded down.

Reimbursements and complaints shall be included in the Sales Result if the sales were actually made and reported.

Products lost, damaged or damaged from Partner's fault may be invoiced but do not build Sales Result.

Operating articles and products indicated by the Supplier may be excluded from the Sales Result.

The additional Strategic Discount may be up to 5% inclusive and requires granting as Strategic Entitlement.

Correct reporting is a condition for calculating the discount.

The sales result affects not only the discount, but also the stock, the development of cooperation and the possibility of granting strategic benefits.

9.1. Nature of the status of Strategic Partner

The FIXON Strategic Partner is the second level of cooperation under the FIXON Partnership Programme.

The status of the Strategic Partner may be granted to the Authorized Partner FIXON, whose mode of operation, sales results, market access, customer base, role in product development or importance for the distribution network justify granting specific conditions of cooperation.

The Strategic Partner is not only a partner with a high turnover. This status may result from different sources of strategic value for FIXON.

The strategic value of the Partner may result in particular from:

permanent sale of FIXON products,

customer service with an above-average volume of purchases,

the acquisition of a significant wholesale customer,

the development of a particular sales channel,

the development of sales in a particular region,

the sale of custom-made products,

participation in the development of a new product,

providing feedback to the implementation of the product,

the organisation of a specific exposure or promotion model,

creating the conditions for launching the FIXON Demonstration Centre.

The status of the Strategic Partner is individual and recognised.

The Partner shall not be entitled to a claim to grant, maintain, extend or change the status of a Strategic Partner unless a separate document expressly provides otherwise.

Granting Strategic Partner status requires a Supplier's decision and confirmation in the Partner's Charter, the Strategic Powers Charter or other Program Document.

The status of the Strategic Partner shall be granted to the Partner as an entity, not as a single facility, unless the Parties individually agree on a specific model of operation of the respective mandate.

9.2. Objective of Strategic Partner status

The goal of the status of Strategic Partner is to allow for the extension of cooperation with the Partner, whose activities bring or can bring overstandard value to FIXON, Partner and final customers.

The status of the Strategic Partner is intended to allow the granting of such a power which corresponds to the actual source of value created by the Partner.

If the Partner generates above average purchase volumes, the appropriate tool may be Additional Strategic Discount.

If there is a restriction of internal competition in a particular channel of sales that is profitable for both parties, Market Protection may be the appropriate tool.

If the Partner continuously achieves high sales results and further development of sales requires greater availability of products, the Extended Storage States Support Program may be the appropriate tool.

If the Partner has contributed to the creation of a new product, the relevant tool may be Product Exclusive or Premier.

The status of the Strategic Partner is therefore functional. It is not an honorary title, but a basis for granting a specific model of further cooperation.

The purpose of the status is to increase the cost-effectiveness of cooperation for both parties by matching the benefits to the real potential of the Partner.

9.3. Strategic Partner as a stage in the development of cooperation

The Strategic Partner is a natural step in developing cooperation after the Authorised Partner level.

As a rule, the Strategic Partner must have the status of Authorised FIXON Partner in advance.

The status of the Strategic Partner can be granted after a period of cooperation allowing to assess results, quality reporting, timely settlements, the use of exposures and the potential for further development.

However, the programme allows a situation in which a particular business event warrants considering granting strategic partner status regardless of a long history of cooperation.

Such an event may in particular be:

acquisition of a significant wholesale customer,

the conclusion of a contract for large repetitive contracts,

launching a significant distribution channel,

Partner participation in the development of a new product,

creating the conditions for the implementation of the premiere product,

carrying out a promotional action of significant importance to FIXON,

propose a model of the Demonstration Centre,

another factor creating a strategic value for the Programme.

The status of the Strategic Partner can therefore result from both the sustainable potential of cooperation and from a one-time event of significant business importance.

In any case, the decision to grant the status requires an assessment of the Supplier.

9.4. Basic conditions for maintaining status

The Strategic Partner should meet the basic conditions for proper cooperation for all Partners.

The condition for maintaining the status of Strategic Partner is in particular:

proper reporting of sales,

proper reporting of stock,

timely payment arrangements,

no significant and unexplained storage gaps,

compliance with FIXON brand protection rules,

compliance with the rules on the use of marketing material,

use of the allocated Strategic Powers in accordance with its objective,

cooperation with the Supplier or Mediator in the implementation of the Programme,

non-use of status in a way contrary to the interests of FIXON.

The Strategic Partner shall conduct the exposure on a general basis unless the nature of its Strategic Power requires specific exposure obligations.

Additional exposure requirements may apply in particular to a Partner benefiting from Product Exclusive, Premier Exclusive, Test Products, Special Products or participation in promotional action.

If the Partner does not meet the basic conditions of cooperation, The supplier may refuse to grant the status of Strategic Partner, limit its scope, suspend the Strategic Entitlement or revoke the status.

9.5. Scenarios for granting Strategic Partner status

The status of the Strategic Partner may be granted in different scenarios, depending on the value created by the Partner.

The programme distinguishes in particular four main scenarios:

the discount scenario,

market scenario,

storage scenario,

product or premiere scenario.

The catalog of scenarios is not closed. The supplier may also grant the status of Strategic Partner in other cases if he considers that this is cost-effective and justified for both parties.

In the future, the Programme can be expanded with additional strategic scenarios, without the need to change the overall logic of the Programme.

9.6. Discount scenario

The discount scenario concerns the Partner, who built a database of regular customers generating above average purchasing volumes.

This scenario may also apply to a Partner who operates a significant wholesale customer, a group of professional customers, repeatable customers or a sales channel requiring more price flexibility.

In this case, the Partner may receive an Additional Strategic Discount.

The aim of the Additional Strategic Rabat is to enable the Partner to:

building your own model of customer loyalty support,

rewarding best recipients,

handling larger orders,

increase competitiveness in contacts with wholesale customers,

maintaining a long-term relationship with clients with high potential,

increase the margin while maintaining an attractive offer to the recipient,

larger-scale sales shares.

The discount scenario should be applied when additional price flexibility can translate into a real increase in sales, maintenance of relevant customers or development of the sales channel.

The award of the Additional Strategic Rabat requires the definition of its scope in the Charter of Strategic Power or other Program Document.

9.7. Market scenario

The market scenario relates to a situation where a specific sales channel, area, customer group, design or segment of the market requires the arrangement of cooperation rules.

In some sales channels, the existence of a number of competitors offering the same products may distort cooperation, reduce its profitability or hinder market development.

If granting protection to a particular market, channel or client brings benefits to both parties, the Partner may obtain Market Protection as Strategic Entitlement.

Market protection may concern in particular:

territory,

industry,

sales channel,

customer groups,
project,
investments,
networks of establishments,
a specific client or group of clients,
another agreed scope.

Market protection does not cover a product group as access to certain products, variants or prime minister is subject to Product Exclusive or Premiere.

Market protection may in particular mean:

no active acquisition of competing partners in the protected range,
preferential referral to the Partner,
limiting competitive activities in a given channel,
agreeing on the terms of service of a specific client or investment,
the protection of the sales model developed by the Partner.

Market protection does not automatically mean full exclusivity.

Full exclusivity may only be granted on the basis of a separate decision of the Supplier and must be clearly specified in the Charter of Strategic Power or another Programme Document.

9.8. Storage scenario

The storage scenario concerns a Partner who generates fixed, above average sales results or whose sales model justifies a higher level of product availability.

If a Partner regularly sells certain products in quantities justifying their larger handling, he may obtain an Extended Warehouse States Support Program.

The main objective of this scenario is to optimise logistics costs, reduce customer service times and increase the availability of products with proven rotation.

The Extended Warehouse States Support Program may consist in particular of increasing the level of state replenishment from 40% to 80% of the highest sales result of a given item from up to twelve previous Settlement Periods.

The authorisation may concern:

all products,
parts of products,
selected product groups,
products available immediately with delivery from the Supplier,
custom products,
special products,
products of significant importance to the Partner's sales channel.

Regular sale of a custom-made product may justify provision of storage support if this is cost-effective for both parties.

The increased storage limits should be indicated in the Product List for Storage Support.

The storage supplements of the Partner using this power shall be carried out on a general basis, unless the individual document expressly provides for another solution.

9.9. Product or premiere scenario

The product or premiere scenario concerns a Partner whose actions have led to the creation of a new product, a product variant or a significant direction in the development of FIXON offer.

The activity itself in collecting feedback from customers is not sufficient to grant Product Exclusive or Premiere.

The basis for granting such a right is that a product or an important product variant has been created on the basis of information, observation, needs or proposals provided by the Partner.

If the idea of a product comes from a Partner or Partner played an important role in its creation, the implementation of the product should generally start with that Partner.

The Partner may be granted Prime Exclusive for the distribution of the newly introduced product for a period of at least 3 months after the product has been placed on the market.

The Prime Minister may include in particular:

priority of receiving test copies,

possibility of placing the product in selected sales channels of the Partner,

the possibility of organising promotional actions,

the possibility to apply for direct handling of selected trading points with a new product,

priority of commercial communication related to the product,

participation in the collection of market opinion after product implementation.

The placement of selected shopping points of the new product as part of the promotional action is not the default and requires agreement with the Supplier.

Failure to provide the required feedback during the test or launch period may result in loss of Product Exclusive or Premiere, without automatic loss of Strategic Partner status.

In this case, the Strategic Partner may apply for a different Strategic Power if the Supplier considers that the continuation of the strategic status is justified.

9.10. Selection of Strategic Powers

The Strategic Partner can obtain one leading Strategic Authority.

As a general rule, the Supplier proposes to the Partner Strategic Entitlement corresponding to the nature of the cooperation, the source of value created by the Partner and the cost-effectiveness of the model for both parties.

The Partner may indicate other preferred Strategic Rights than proposed by the Supplier.

The final selection of Strategic Powers shall be agreed by the Parties.

If the Partner chooses a different rating than proposed by the Supplier, The supplier may: accept the choice of Partner,

propose a modification of the scope of the mandate,

propose other powers,

refuse to grant the chosen power,

make the granting of the power subject to additional conditions.

The Strategic Authority should be confirmed in the Charter of Strategic Powers or other Programme Document.

The lack of confirmation of the power in the relevant document means that the Partner has not acquired a given Strategic Power, even if it carries out activities similar to the description of the power.

9.11. Charter of Strategic Powers

The Strategic Powers Charter is a document defining the individual scope of the mandate granted to the Strategic Partner.

The Charter may specify in particular:

type of Strategic Power,

the date of granting the entitlement,

the scope of the rating,

duration,

products covered by the entitlement,

a sales channel covered by the entitlement,

territory or group of customers,

the level of the additional discount,

increased storage limits,

product testing principles,

rules for the transmission of feedback,

responsibilities of the Partner,
cases of limitation or revocation of the power,
other special conditions.

The Strategic Powers Charter shall take precedence over the individual description of the mandate, unless it violates the FIXON Partnership Agreement.

Where no special condition is specified in the Strategic Powers Charter, the general principles resulting from the Programme and the Agreement shall apply.

9.12. Benefits of the Strategic Partner

The benefits of the Strategic Partner depend on the allocated Strategic Powers.

The Strategic Partner may obtain in particular:

Additional Strategic Discount,

protection of a particular market, channel, client, investment or territory,

increased levels of storage support,

provision of custom storage support for products,

access to test products,

access to premiere products,

Only the Prime Minister,

the possibility of organising promotional actions,

additional test or exposure tools,

the possibility of obtaining the status of the FIXON Demonstration Centre,

individual trading conditions.

The benefits of the Strategic Partner should serve the development of sales, not just the formal exclusion of the Partner.

The Strategic Partner should use the allowances granted in a way that supports the development of FIXON products, customer availability and cost-effectiveness of cooperation.

9.13. The obligations of the Strategic Partner

The Strategic Partner is obliged to fulfil the obligations provided for the Authorized Partner and additional obligations arising from the Strategic Powers granted.

The core duties of the Strategic Partner include:

proper reporting of sales and stock,

timely payment arrangements,

taking care of the image of FIXON brand,

use of marketing material as intended,

compliance with brand protection rules,

failure to use the allowances allocated in a way that destabilises the sales network,

cooperation in the analysis of sales results,

cooperation in inventory,

the implementation of the obligations under the Charter of Strategic Powers.

If the Partner uses Product Exclusive or Premier, he is obliged to provide feedback to the extent required by the Supplier.

If the Partner uses the Extended Storage States Support Program, he is required to report particularly reliable product and stock rotations.

If the Partner uses Market Protection, he should actively develop a protected channel, client, territory or segment.

If the Partner benefits from the Additional Strategic Discount, he should use this discount in a way that supports the sustainable development of sales and not only a short-term price reduction.

9.14. Limit, suspend or withdraw Strategic Partner status

The status of the Strategic Partner may be limited, suspended or revoked in the cases set out in the Agreement, the Programme, the Charter of Strategic Powers or other Program Document. The restriction, suspension or withdrawal of status may be based in particular on:

no reporting,

late payments,

significant storage gaps,

lack of cooperation in clarifying discrepancies,

breach of brand protection rules,

incorrect use of marketing material,

Use of the right not in accordance with the objective,

lack of activity in a protected channel or area,

lack of the required feedback on the test product or the initial product,

permanent loss of economic justification for maintaining the power,

activities contrary to FIXON's interest.

The limitation or withdrawal of a certain Strategic Power does not necessarily mean the automatic loss of the status of a Strategic Partner.

The Supplier may propose to the Partner to change Strategic Powers if the existing power has lost its justification, but the Partner still has strategic value for the Programme.

The withdrawal of the Strategic Partner status may result in the return of the Partner to the Authorized Partner level.

The withdrawal of the status shall be without prejudice to the settlements made before the date of withdrawal, unless the reason for the revocation has been the infringement affecting the correctness of those accounts.

9.15th Strategic Partner and FIXON Demonstration Centre

The Strategic Partner may apply for the status of the FIXON Demonstration Centre.

The status of the Demonstration Centre may be granted to the Strategic Partner, who has the potential to conduct extended presentation, testing and sales of FIXON products.

Granting Strategic Partner status does not mean automatic award of Demonstration Centre status.

The Demonstration Centre is a separate, highest level of cooperation.

A Strategic Partner, who will become a Demonstration Centre, may retain the main benefit of leading Strategic Powers and obtain limited elements of other benefits, in accordance with the Demonstration Centre Charter.

Detailed rules for the operation of the Demonstration Centre are set out in the Chapter on the Demonstration Centre and the FIXON Demonstration Centre Charter.

9.16. Summary of Strategic Partner status

The Strategic Partner is the second level of cooperation in the FIXON Partnership Programme.

The status of the Strategic Partner may be granted to the Authorized Partner, whose activity creates over-standard value for FIXON and the affiliate network.

The Strategic Partner receives one leading Strategic Authority.

Strategic power should correspond to the source of value created by the Partner.

Basic Strategic Powers are:

Additional Strategic Discount,

Market protection,

Extended Warehouse States Support Program,

Product exclusive or Premier exclusive.

The granting of strategic partner status and strategic powers is of a discretionary nature and needs to be confirmed in the relevant document.

The Strategic Partner retains the duties of the Authorized Partner and performs additional

obligations resulting from the privileges granted.

The status of Strategic Partner provides the basis for further development of cooperation, in particular to apply for the status of FIXON Demonstration Centre.

10.1. Nature of Strategic Entitlements

Strategic powers are special benefits granted to the Strategic Partner under the FIXON Partnership Programme.

Strategic Entitlement is a tool for matching cooperation with the specific value created by the Partner.

Strategic Entitlement is not an automatic award for the very fact of participation in the Programme, but a individually awarded mechanism for the development of cooperation.

Strategic powers may serve in particular:

increasing sales,

building loyalty of the Partner's customers,

protecting a viable sales channel,

optimization of logistics costs,

increasing product availability,

implementation of special products,

introduction of premiere products,

development of new products on the basis of market feedback,

building the partner's competitive advantage,

preparing the Partner to become the FIXON Demonstration Centre.

Strategic power should be granted in such a way as to strengthen a cooperation model which is cost-effective for both parties.

Just describing Strategic Powers in the Program does not mean that the Partner acquires the right to it.

Granting Strategic Power requires a decision of the Supplier and confirmation in the Charter of Strategic Powers, Partner Charter, Contract or other Program Document.

10.2. Catalogue of Strategic Entitlements

The FIXON Partnership Programme provides for the following core Strategic Rights:

Additional Strategic Discount,

Market protection,

Extended Warehouse States Support Program,

Product exclusive or Premier exclusive.

The catalogue of Strategic Rights can be expanded in the future if the development of the Programme, products, distribution network or partners' needs warrant new benefits.

The development of the catalogue of Strategic Rights can take place either by updating the Partnership Program, Program Documents or by adopting a separate document describing the new entitlement.

Granting a new type of power to the Partner requires its individual confirmation.

Strategic powers may be:

discount,

market

storage,

Product

Prime Minister,

promotion,

logistics,

Exposure

mixed.

One Strategic Entitlement may combine several elements if the specificity of cooperation so requires, but should be of a specific guiding nature.

10.3. Leading Strategic Entitlement

The Strategic Partner shall in principle receive one leading Strategic Authority.

Leading Strategic Entitlement means the main benefit, which best corresponds to the source of value created by the Partner.

If the Partner creates value primarily through high purchase volumes and a permanent customer base, the leading right may be Additional Strategic Discount.

If the Partner creates value through the development of a particular sales channel, territory, customer, industry or investment, Market Protection may be the leading right.

If the Partner creates value through constant sales requiring higher availability of products, the leading permission may be the Extended Warehouse States Support Program.

If the Partner creates value by participating in the creation of a new product, the leading right may be Product Exclusive or Premier.

The leading Strategic Authority has the widest range of benefits granted to the Partner.

The partner may use additional elements of other powers if they are granted, but their scope may be limited to the leading power.

For example, a Partner whose leading right is the Extended Warehouse States Support Program may receive limited channel protection if justified, but this does not automatically mean full Market Protection.

The scope of the leading and possible additional powers should be specified in the Charter of Strategic Powers or other Programme Document.

10.4. Proposal for Strategic Powers by the Supplier

The Supplier in principle proposes to the Strategic Partner such Strategic Entitlement, which best suits the nature of the cooperation and the source of the value created by the Partner.

When selecting the proposed entitlement, the Supplier may take into account in particular:

Partner Sales Result,

sales structure,

the type of customers served by the Partner,

the scale of procurement,

repeatability of sales,

sale of custom products,

Partner access to the market,

the cost-effectiveness of protecting the channel concerned,

Partner's participation in product development,

activity in the transmission of feedback,

the potential for promotion of FIXON products,

the possibility of launching the Demonstration Centre.

The Supplier's proposal does not preclude the Partner from choosing another power.

If the Partner considers that other Strategic Entitlement is better suited to his model of action, he may make such a proposal to the Supplier or Mediator.

The supplier shall consider the Partner's proposal taking into account the interest of FIXON brand, the cost-effectiveness of cooperation, the impact on the distribution network and the feasibility of the proposed model.

The final scope of Strategic Powers is agreed individually.

10.5. Charter of Strategic Powers

The Strategic Powers Charter is a document defining the individual scope of the mandate granted to the Strategic Partner.

The Strategic Powers Charter may specify in particular:

the name of the Partner,
type of Strategic Power,
the nature of the lead power,
the date of granting the entitlement,
duration,
the scope of the products covered by the authorisation,
territorial scope,
the scope of the sales channel,
a group of customers,
design or investment,
the level of the Additional Strategic Rabat,
increased storage limits,
products covered by storage support,
products covered by the exclusive status of the Prime Minister,
responsibilities of the Partner,
feedback requirements,
the conditions for maintaining the entitlement,
the rules on limitation, suspension or revocation of powers,
other special conditions.

The Strategic Powers Charter does not need to contain all the above elements. The scope of the Charter depends on the type of permission.

If the Strategic Powers Charter contains specific provisions, they shall apply before the general principles of the Programme, unless they infringe the Agreement.

The lack of a Strategic Power Charter or other supporting document means that the Partner does not use a given Strategic Power.

10.6. Additional Strategic Discount

10.6.1. Objective of the Additional Strategic Rabat

An Additional Strategic Discount is a Discount Strategic Entitlement.

The aim of the Additional Strategic Discount is to enable the Partner to increase commercial flexibility in situations where the Partner develops sales of over-standard importance to the Programme.

Additional Strategic Discount may serve in particular:

the construction of the Partner's own loyalty programme,
rewarding the regular recipients of the Partner,
wholesale customer service,
handling large investment orders,
maintaining customers with high potential,
construction of a repetitive volume of purchases,
enhancing the competitiveness of the Partner in large negotiations,
support for larger-scale sales shares,
securing the Partner margin while maintaining the attractiveness of the offer,
building long-term cooperation with professional clients.

Additional Strategic Discount may be particularly justified when a Partner has a database of regular customers whose loyalty can be strengthened by individual sales conditions.

This discount may also be justified when the Partner regularly serves customers with large volumes for which the basic discount system does not provide sufficient commercial flexibility.

The additional Strategic Discount should support the development of sales rather than lead to aggressive price dumping or network destabilisation.

10.6.2. Additional Strategic Rabat

Additional Strategic Discount may be up to 5% inclusive.

The exact level of discount is determined individually by the Supplier.

The level of the discount should be indicated in the Charter of Strategic Powers, Partner Charter or other Program Document.

The award of the maximum level of the Additional Strategic Rabat is not automatic.

The supplier may grant a lower level of discount if this is justified by the scale of cooperation, the nature of the customers, the sales structure, the cost-effectiveness of the model or the stage of development of the Partner.

Additional Strategic Discount may be applied to the entire FIXON offer or to selected products, product groups, customers, sales channels or projects, if specified in the award document.

10.6.3. Application of the Additional Strategic Discount by the Partner

Partner can use Additional Strategic Discount to build its own trade policy towards its customers.

In particular, the Partner may use an additional discount to:

the creation of tenders for permanent recipients,

creating conditions for wholesale customers,

the remuneration of returnees,

strengthening the loyalty of executive teams,

supporting seasonal actions,

handling larger orders,

preparation of investment offers,

increase the partner's own margin.

The Partner should use the Additional Strategic Discount in accordance with FIXON brand protection rules.

The additional Strategic Discount should not be used for activities which could permanently reduce the perceived value of FIXON products or lead to aggressive price dumping.

If the Partner plans to use Additional Strategic Discount in a large-scale price campaign, he should agree such action with the Supplier or Mediator.

10.6.4. Limiting or withdrawing the Additional Strategic Rabat

Additional Strategic Discount may be reduced, suspended or withdrawn in the event of violations on the part of the Partner.

The restriction or withdrawal may be based in particular on:

breach of the Agreement,

violation of the Programme,

no reporting,

late payment,

the use of the discount contrary to its purpose,

aggressive price dumping,

actions affecting the image of FIXON,

granting a discount in a destabilizing way to the network,

lack of cooperation in clearing accounts,

breach of commercial communications rules.

The decline in sales does not result in the automatic loss of the Additional Strategic Rabat.

However, a sustained decrease in sales may form the basis for reviewing the appropriateness of continuing to maintain the discount if the loss of volume affects the profitability of cooperation.

Before changing or withdrawing the discount The supplier may propose to the Partner to change

the strategic model or to choose another Strategic Power if further strategic cooperation is justified.

10.7. Market protection

10.7.1. Objective of Market Protection

Market protection is a market-based strategic right.

The objective of Market Protection is to organise cooperation in a specific area, channel, segment, project or customer relationship if the restriction of internal competition benefits both parties.

Market protection may be granted where the existence of many competitors in the same range could:

disrupt cooperation,

weaken the cost-effectiveness of partner activities,

lead to excessive price competition,

hinder the development of the market,

reduce the quality of customer service,

double sales activities,

hinder the construction of relationships with a large client,

limit the effectiveness of promotional or implementation actions.

Market protection is to support a Partner who actively develops a specific area of cooperation and whose activities require the stability of the sales channel.

Market protection is not granted automatically and requires individual decision of the Supplier.

10.7.2. Scope of market protection

Market protection may include in particular:

defined territory,

specific industry,

a specific sales channel,

a specific group of customers,

a specific project,

the specific investment,

a network of partner facilities,

a specific customer,

a group of related customers,

other agreed market coverage.

Market protection does not apply to the product group as such. Access to certain products, variants or prime minister is regulated by Product Exclusive or Premiere.

The scope of Market Protection must be described in the Charter of Strategic Powers or other Programme Document.

The instrument granting market protection should specify in particular:

as regards protection,

since it applies,

the period of validity,

whether it involves the lack of active acquisition of competing partners,

whether it includes preferential questioning,

whether it includes full exclusivity,

what are the obligations of the Protected Partner.

10.7.3. Forms of market protection

Market protection may vary in intensity.

Basic Market Protection may mean that the Supplier will not actively acquire competing partners in the protected range.

Extended Market Protection may also mean preferential directing queries, lead or customers to a Partner.

Full exclusivity can only be granted if clearly indicated in the Charter of Strategic Powers.

Market protection may also include an agreement on customer, project or investment service rules.

For customers who apply directly to FIXON, The supplier may:
service the customer directly,

redirect the client to a Partner with Market Protection,

service the customer together with the Partner,

establish an individual service model,

use another model justified by the interest of the client and FIXON brand.

The Supplier shall decide on the manner of service of customers directly to FIXON, taking into account the scope of the protection granted to the Partner.

10.7.4. Obligations of the Market Protection Partner

A market-based partner should actively develop a protected scope of cooperation.

In particular, the Partner should:

maintain a protected range of sales activities,

handle customers with due care,

inform the Supplier or the Mediator of market developments,

report sales in accordance with the rules of the Programme,

not use protection only to block the market,

take care of the image of FIXON brand,

avoid activities that may destabilise relations with customers or other partners.

Market protection should not lead to the passiveness of the Partner.

If the Partner does not develop the protected scope, The supplier may review the appropriateness of maintaining the protection.

10.7.5. Limitation or withdrawal of market protection

Market protection may be restricted, suspended or revoked in the case of:

lack of partner activity in the protected range,

not exploiting market potential,

violations of the Programme rules,

violations of the principles of brand protection,

loss of cost-effectiveness of protection for one or both parties,

creating a conflict with the interests of the client,

changes in market conditions,

changes in the development strategy of the FIXON network,

violations of the obligations set out in the Charter of Strategic Powers.

The limitation of market protection may consist in particular of:

reducing the territorial scope,

limiting the range of customers,

excluding a particular project,

changing the form of protection,

the end of preferential guidance,

changing Market Protection to other Strategic Entitlement.

10.8. Extended Warehouse States Support Program

10.8.1. Objective of the Extended Storage States Support Program

The Extended Warehouse States Support Program is a storage strategic power.

The purpose of this Power is to increase the availability of products with the Partner, which achieves stable, above average sales results or regularly sells products requiring a specific storage model.

This authorisation is intended to optimise logistics costs, shorten customer service time and increase sales efficiency.

The Extended Warehouse States Support Program may be particularly justified when:

The partner regularly achieves high sales results,

The partner often launches emergency calls,

the basic level of 40% is not sufficient to ensure the liquidity of sales,

Partner serves wholesale customers,

Partner conducts sales in high-dynamic seasons,

The Partner regularly sells products available immediately with delivery from the Supplier,

Partner regularly sells custom-made products,

a larger stock reduces logistics costs for both parties.

10.8.2. Scope of the Extended Programme

The main benefit of the Extended Warehouse States Support Program is the possibility to increase the level of state replenishment from 40% to 80% of the best sales result.

The increase may concern:

all products,

parts of products,

the selected product group,

products available immediately with delivery from the Supplier,

custom products,

special products,

products relevant to the specific sales channel of the Partner.

The increased limits should be included in the Product List for Storage Support.

The status of the Strategic Partner does not mean automatically increasing the limits of all products.

The scope of the increase depends on the Strategic Rights Charter and the current List of Products covered by Storage Support.

10.8.3. Custom products in the Extended Program

Regular sale of custom-made products may justify placing them under storage support.

This applies especially to products which are not normally stored with Authorized Partners, but their sales to the Partner confirm the existence of constant demand.

Covering the product on order with warehouse support may allow the Partner to shorten customer service time and increase the attractiveness of the offer.

Such inclusion requires individual decision of the Supplier.

The on-order product covered by storage support should be indicated in the List of Products covered by storage support.

10.8.4. Supplements to the Extended Program

A partner benefiting from the Extended Warehouse Support Scheme shall be subject to general supplement rules unless otherwise provided for in the individual document.

FIXON does not, in principle, provide for the separation of the categories of warehouse supplies according to the status of the Partner.

This means that simply having an Extended Storage States Support Program does not automatically mean a separate logistics path or priority delivery.

Partner's benefit is primarily due to higher levels of states rather than different delivery frequencies.

Complementary deliveries are carried out in accordance with the rules of the Warehouse States Support Program.

10.8.5. Limitation of Extended Program

The Extended Warehouse States Support Program may be restricted, suspended or withdrawn if the maintenance of elevated states loses justification.

The restriction may be based in particular on:

decrease in product turnover,

no reporting,

significant storage gaps,

late payment,

lack of cooperation in inventory,

use of products not in accordance with the Programme,

changes in product availability,

the revision of the FIXON storage strategy,

loss of profitability in maintaining elevated states.

The restriction may apply to all products or only parts of products subject to the increased limit.

10.9. Product or Premier Exclusive

10.9.1. Objective of Product Exclusiveness or Prime Minister

Product exclusive or Premiere exclusive is a product-based strategic right.

The purpose of this right is to pay a Partner who has actually contributed to the creation of a new product, product variant or significant FIXON product solution.

The basis for granting this right is not the collection of feedback itself, but the situation where a product or a relevant product variant is produced on the basis of the information provided.

Product exclusive or Premiere is intended to encourage Partners to actively share knowledge from the market, observe performers, customer needs and propose new solutions.

At the same time, this mandate is intended to give the Partner priority to the use of the effect of his cooperation with FIXON.

10.9.2. Moment of creation of permission

If the idea of a product comes from a Partner or Partner has played an important role in the development of a product, the implementation of the product starts in principle with that Partner.

The test or premiere product first goes to the Partner initiating the product.

Only in further stages can the product be made available to other participants of the Programme.

Granting Product Exclusive or Premiere requires a decision of the Supplier and confirmation in the Charter of Strategic Powers or other Program Document.

The supplier may refuse to grant exclusivity if the product was created independently of the Partner, was previously developed by FIXON or the Partner's information had no significant impact on its development.

10.9.3. The Prime Minister's exclusive period

The Prime Minister shall be exclusive for at least 3 months after the product has been placed on the market.

The supplier may set a longer exclusivity period for the product concerned.

The supplier may also set a different product implementation cycle where the nature of the product, seasonality, production, logistics or market strategy so requires.

The exclusivity period should be specified in the Charter of Strategic Powers or other Programme Document.

After the end of the exclusivity period, the product may be made available to subsequent participants in the Programme in accordance with the adopted implementation path.

10.9.4. Order of implementation of the product

In principle, the product developed with the Partner shall be implemented in the following order:

Partner initiating the product,

FIXON Demonstration Center,
Strategic Partners with Product Exclusiveness,
other Partners.

Each stage of implementation should last at least 3 months, unless the Supplier determines a different cycle for a given product.

The supplier may change the order of implementation, if the nature of the product so requires, the safety of the tests, production availability, seasonality or sales strategy.

The originator partner may receive test copies for selected sales channels or facilities.

The partner may apply for a new product to directly place trading points in order to organise a promotional action, but such a promotion is not a default and requires agreement with the Supplier.

10.9.5. Obligation to provide feedback

A partner using Product Exclusive or Premier is obliged to provide feedback on the product.

Feedback may relate in particular to:

customer reactions,

functionality of the product,

quality of performance,

expected changes,

operational problems,

the need for additional options,

purchasing interest,

potential uses,

promotional material,

the price and method of communication of the product.

The scope of the required feedback information may be specified by the Supplier in the Strategic Power Charter or other Program Document.

Failure to provide the required feedback may result in the loss of Product Exclusive or Premiere.

Losing Product Exclusive or Premiere due to lack of feedback does not mean automatic loss of Strategic Partner status.

The Partner may, in such a case, apply for another Strategic Power if the Supplier considers that the continuation of the strategic status is justified.

10.9.6. Confidentiality of test and premiere products

Test, premiere or development products before official implementation may be subject to confidentiality.

The scope of confidentiality is defined by the Supplier.

Confidentiality may concern in particular:

product structure,

photos,

films,

promotional material,

prices,

the date of the opening,

technical parameters,

information on planned production,

information on the direction of the development of the offer.

The Partner may not publish confidential product material without the Supplier's consent.

A breach of confidentiality may give rise to the withdrawal of Product Exclusive or Premiere and other consequences provided for in the Agreement.

10.9.7. Withdrawal of the test product

The supplier may withdraw the test product without placing it on the market.

The withdrawal of the test product may in particular be due to:

insufficient customer interest,

technical notes,

production problems,

lack of cost-effectiveness of implementation,

changes in product strategy,

negative test results,

the need to further develop the product.

The partner is not entitled to a claim to put the test product on sale.

If the test product is withdrawn, The supplier may determine how the samples are returned, settled or used.

10.10. Connecting Strategic Powers

The Strategic Partner generally has one leading Strategic Entitlement.

The supplier may grant the Partner elements of other powers, if this is justified by the course of cooperation.

Additional allowances may be limited.

The granting of an item of another entitlement does not automatically give rise to the full scope of that allowance.

For example:

A partner with a leading Strategic Additional Discount may receive a limited range of protection of a specific client,

Partner with leading Market Protection can receive additional warehouse support for selected products,

A partner with the leading Extended Warehouse States Support Program may receive a share in the product launch,

A partner with leading Premiere Exclusiveness can receive an additional discount for implementation shares.

The merger of allowances requires an individual designation in the Strategic Powers Charter or other Program Document.

10.11. Strategic Powers and the Demonstration Centre

The FIXON Demonstration Centre may combine elements of all Strategic Rights.

A partner who acquires the status of a Demonstration Centre shall retain the full scope of the main benefit of leading Strategic Powers, unless the Charter of the Demonstration Centre provides otherwise.

Other benefits may be granted to the Demonstration Centre to a limited extent.

This means that the Demonstration Centre may have:

a certain range of additional discount conditions,

a certain scope of market protection,

extended stock,

access to special products,

access to test and premiere products,

additional exposure,

specific conditions for direct sales.

The scope of benefits of the Demonstration Centre is determined by the FIXON Demonstration Centre Charter.

A partner whose leading Strategic Entitlement was the Additional Strategic Discount can retain the strongest discount from the Demonstration Centres.

A partner whose leading Strategic Authority was Market Protection may retain the strongest range of protection among Demonstration Centres.

A partner, whose leading Strategic Authority was the Extended Warehouse States Support Program, can retain the widest storage support from the Demonstration Centres.

A partner, whose leading Strategic Entitlement was Product Exclusive or Premiere, can retain the widest access to special, test or premiere products from the Demonstration Centres.

10.12. Limitation, suspension or withdrawal of Strategic Powers

The Strategic Authority may be restricted, suspended or revoked in the cases set out in the Agreement, Programme, Charter of Strategic Powers or other Programme Document.

The restriction, suspension or withdrawal may be based in particular on:

breach of the Agreement,

violation of the Programme,

breach of brand protection rules,

no reporting,

late payment,

lack of cooperation in inventory,

significant storage gaps,

use of the right not in accordance with its purpose,

lack of activity in the protected range,

no required feedback,

breach of confidentiality,

loss of economic justification for maintaining the power,

the revision of the FIXON network development strategy,

an action contrary to FIXON's interest.

The limitation of strategic powers may consist in particular of:

reduction of the level of the discount,

limiting the scope of protection,

reducing storage limits,

exclusion of certain products,

shortening the term of validity,

limiting access to premiere products,

change permissions to others.

The withdrawal of Strategic Powers does not necessarily mean the automatic loss of Strategic Partner status.

The Supplier may propose to the Partner to choose another Strategic Power if the Partner continues to create a strategic value for the Programme.

10.13. Summary of Strategic Entitlement Principles

Strategic powers are special benefits of the Strategic Partner.

Basic Strategic Powers are:

Additional Strategic Discount,

Market protection,

Extended Warehouse States Support Program,

Product exclusive or Premier exclusive.

The Strategic Partner shall in principle receive one leading Strategic Authority.

The supplier proposes a right corresponding to the source of value created by the Partner.

The partner may propose a different mandate and the final scope needs to be agreed.

Additional Strategic Discount may be up to 5% inclusive.

Market protection may cover territory, industry, sales channel, customer group, design, investment, network of establishments or other agreed scope, but does not cover the product group as such.

Extended Warehouse States Support Program can increase the level of replenishment from 40% to 80% of the best sales result.

Product exclusive or Premiere exclusive is granted in particular if a new product or an important product variant has been created on the basis of the Partner's information.

The Prime Minister's exclusive status shall be at least 3 months after the product has been placed on the market unless a different cycle has been established for the product concerned.

The scope of each Strategic Power should be confirmed in the Charter of Strategic Powers or another Program Document.

Strategic powers may be restricted, suspended or revoked if they cease to serve the objectives of the Programme or are misused.

11.1. Nature of the FIXON Demonstration Centre

The FIXON Demonstration Centre is the third and highest level of cooperation provided for in the FIXON Partnership Programme.

The status of the FIXON Demonstration Centre may only be granted to the Strategic Partner.

The FIXON Demonstration Centre is an agreed form of sale, presentation, demonstration, testing and handling of FIXON products under special commercial conditions.

The FIXON Demonstration Centre is not just a point of sale. It is a place or model of operation where the customer can read FIXON products in a broader way than in the standard distribution channel.

As a rule, the FIXON Demonstration Centre takes the form of a physical showroom, a demonstration facility or a separate exhibition and testing space conducted by the Partner.

However, the Programme shall also allow other forms of the Demonstration Centre if agreed with the Supplier, in particular:

mobile demonstration centre,

cyclic field shows,

the seasonal show centre,

the demonstration zone at the Partner's facility,

sector events conducted cyclically,

showroom combined with FIXON magazine,

test point for contractors,

another initiative that allows customers to familiarise themselves with the FIXON offer.

The Demonstration Centre is created on the basis of individual arrangements with the Partner.

The detailed scope of the Centre's operations, its specialization, place of operation, commercial conditions, scope of exposure, warehouses, customer management rules and support from FIXON and other Partners is defined by the FIXON Demonstration Centre Charter or other Program Document.

11.2. Objective of the FIXON Demonstration Centre

The objective of the FIXON Demonstration Centre is to create a place or model of operation in which customers can practically know the fuller range of FIXON products.

The demonstration centre is intended to enable customers to:

View the products,

comparison of products,

testing of products,

evaluation of ergonomics and performance quality,

obtaining information on the use of products,

the submission of a direct contract,

the submission of a wholesale contract,

placing an order for a special or non-standard product,

read products that are not included in the standard exposure of other Partners.

The demonstration centre is to serve as the FIXON reference point.

This means that the Centre should present products in a more extensive, practical and professional way than the standard sales facility.

The demonstration centre shall support:

development of the sale of FIXON products,

customer education,

demonstration of product advantages,

handling of special products,

support for testing and premiere products,

direct sales,

wholesale,

development of the local or industry market,

collecting feedback from customers,

building a stronger partner position in a given area of action.

The Demonstration Centre is also intended to increase the attractiveness of cooperation for the Partner, as it enables the service of customers with more purchasing potential, customers requiring product testing and customers interested in a fuller range of offers.

11.3. Role of the Demonstration Centre in the Partner hierarchy

The FIXON Demonstration Centre functions as the highest level of cooperation between FIXON and Partner.

If the Partner has multiple facilities, the Demonstration Centre may be the only place or model of operation in the internal organization of the Partner, where the full or extended exposure of FIXON products is maintained.

Partner's standard facilities can carry out basic sales, use marketing materials, QR codes, test tools and e-catalogues, while the Demonstration Centre can serve as a place to which customers need a wider presentation.

The Demonstration Centre may maintain:

fuller stock,

exposure of more products,

test samples of products,

products available from other partners only on order,

special products,

Prime products,

test products,

products made on an individual order, if so determined.

The Demonstration Centre can become the main point of service for customers interested in FIXON products in the structure of the Partner.

However, this does not mean that the other sites of the Partner lose the ability to sell FIXON products.

Other facilities may continue to conduct basic sales, direct customers to e-catalogues, accept orders, use marketing materials and transfer customers to the Centre in situations requiring more complete service.

11.4. Demonstration Centre as showroom

The basic form of the FIXON Demonstration Centre is showroom.

Showroom should enable the customer to contact FIXON products directly.

In the showroom, the client should be able to:

See the products,

Touching products,
comparison of options,
checking the operation of the selected products,
to obtain an explanation from the servicer,
understanding in which works the product can be used,
to know the differences between standard, special, test and premiere products.

Showroom doesn't have to take the form of a classic retail store.

It can be part of a warehouse, warehouse, distribution center, production plant, material collection point, commercial office, show zone, exhibition warehouse or other space that allows for presentation and testing of products.

The most important requirement of the showroom is its functionality. The customer should be able to really know the product, not just see it as a decorative element.

Showroom should support a commercial conversation by showing the customer that FIXON products solve specific work problems: fatigue, waste of time, lack of precision, improvisation on construction and difficulties in organising work.

11.5. Alternative forms of the Demonstration Centre

The program allows the creation of a demonstration centre in a form other than a classic showroom.

An alternative form of the Demonstration Centre may be granted if it allows to achieve the objectives of the Programme, in particular demonstration, testing and active sale of products.

Alternative forms may include in particular:

mobile demonstration centre,
a demonstration car,
cyclic field shows,
a demonstration stand at the material square,
the seasonal test zone,
mobile demonstration tool set,
series of events for performers,
training and demonstration centre,
FIXON position at Partner events,
hybrid model combining showroom and field shows.

The supplier may support such initiatives if they are in line with the objectives of the Programme and can effectively increase sales, brand recognition or customer service quality.

The alternative form of the Demonstration Centre should be described in the FIXON Demonstration Centre Charter.

The Charter should specify in particular:

the form of operation of the Centre,
the place or area of demonstration,
product scope,
exposure range,
rules for the storage of products,
principles of customer management,
how to report actions,
support from FIXON and other partners.

11.6. Product scope at the Demonstration Centre

The FIXON Demonstration Centre may have a wider range of products than the Standard Authorized Partner or Strategic Partner.

The Centre may maintain in particular:

standard products,

products covered by the Warehouse States Support Scheme,

products available from other partners exclusively from the catalogue,

products available from other partners only on order,

products made on individual order,

special products,

test products,

Prime products,

pre-prime products,

demonstration products,

Exposure products,

products covered by individual marketing conditions.

The range of products maintained at the Demonstration Centre depends on:

Partner profile,

the allocated leading Strategic Powers,

market potential,

the nature of the customers,

exposure possibilities,

storage capacity,

the planned promotion activities,

The Supplier's decision.

The Demonstration Centre may be the only place within the Partner's organization to maintain the stock of all goods falling within the agreed scope of the Centre.

The Centre may also have test copies of each product from an agreed range so that the customer can check the product before buying.

The detailed list of products of the Demonstration Centre should be specified in the Charter of the Demonstration Centre, the Warehouse Supported Products List or other Program Document.

11.7. Warehouse stock of the Demonstration Centre

The Demonstration Centre can use an extended stock model.

This model may include products that standard Partners do not keep in stock.

The Demonstration Centre may have warehouse stocks of products available from other Partners: only on order,

with a longer deadline,

to a limited extent,

as special products,

as test or premiere products.

The purpose of the extended warehouse states of the Centre is to allow the customer to purchase the product without waiting or with a significantly shorter delivery time than in the standard channel.

The Centre may serve as a regional accessibility point for FIXON products.

The Centre may also serve as a place where the customer can see the product before placing an order with the Partner, Suppliers or other service channel.

The range of storage conditions of the Centre should be specified in the Charter of the Centre for Demonstration or Product Lists for Storage Support.

If the Centre uses the leading Strategic Powers in the form of the Extended Storage States Support Programme, it may have the widest range of warehouses among Demonstration Centres, if specified in individual documents.

11.8. Product testing at the Demonstration Centre

One of the basic functions of the Demonstration Centre is to enable customers to test products.

Testing may consist of:

checking how the tool works,

comparison of several products,

evaluation of ergonomics,

checking the grip, handling, levelling, transport or other function of the product,

presentation by the trader,

a demonstration show,

a field show,

product training.

Testing should be carried out in a safe, orderly and consistent manner.

Test and demonstration products shall remain the property of FIXON unless the Parties agree otherwise.

The Centre should take care of the state of test and demonstration products and report on the need to replace them in the event of normal consumption.

Normal wear resulting from the demonstration function is not treated as a damage on the part of the Partner.

The damage, destruction or loss of the test product from Partner's fault shall be settled in accordance with the Program, the Centre Card or other Program Document.

11.9. Direct sales at the Demonstration Centre

The Demonstration Centre may sell direct FIXON products.

Direct sales may concern both standard products and special products, custom products, premier products or products requiring consultation.

The Demonstration Centre may have a commercial advantage resulting from the possibility of: showing the product to the customer before purchase,

immediate release of selected products,

customer service with greater purchasing potential,

the acceptance of wholesale contracts,

accepting custom contracts,

conducting demonstrations before purchase,

combining sales with advice,

customer service directed by other facilities,

customer service directed by other partners,

sale of products not available in the standard channel.

The centre can obtain a higher margin by providing customer service requiring more complete presentation, wholesale purchases, special products or higher value products.

An additional advantage of the Centre may be the ability to build relations with performers who, after testing the product, return for further orders or direct other teams to the Centre.

The Centre may also serve as a place where the customer makes the purchasing decision after prior contact with the Standard Partner facility.

The specific commercial conditions for direct sales at the Centre shall be determined by the Charter of the Demonstration Centre or another Program Document.

11.10. Wholesale and non-standard contracts

The Demonstration Centre can handle wholesale orders, larger executive orders and custom orders.

Such contracts may relate in particular to:

more standard products,

custom products,
special products,
products with custom parameters,
Prime products,
tool kits for teams,
supplies of many brigades,
investment contracts,
contracts for local distributors,
contracts requiring individual consultation.

The Centre may accept queries concerning products which standard facilities cannot handle themselves.

Questions requiring:
increased availability,
individual calculation,
technical consultation,
presentation of the product,
selecting several products for one work process,
arrangements for the date of production or delivery,
wholesale customer service.

The handling of wholesale and non-standard orders may take place on unique commercial conditions determined individually.

11.11. Directing customers to the Demonstration Centre

The Demonstration Centre may be the place to which customers are addressed requiring more complete service than the one provided by the standard sales channel.

Customers may be directed to the Centre by:

Partner facilities,
Trade representatives of the Partner,
other partners without a demonstration centre,
Mediator,
Supplier,
marketing materials,
e-catalogue,
QR code,
promotion campaigns.

Partners not holding the status of a Demonstration Centre may include information on the nearest Centre, if agreed in the Program Documents or in activities organised by the Supplier.

The Customer may be referred to the Centre in particular where:

wants to test the product before buying,
wants to compare a few tools,
is interested in a special product,
is interested in the premiere product,
He wants to place a wholesale order,
needs a product not immediately available in the standard facility,
requires technical consultation,
conducts a larger investment,
I want to get the tools for the whole crew,

has questions beyond the basic commercial service,
He wants to see a product he knows only from the catalog,
needs a custom product,
requires a presentation to several decision-makers,
is a customer with high purchasing potential.

The directing of customers to the Centre should not be treated as a loss of the client by the managing authority, but as a way to increase the chance to sell the product in a model better suited to the needs of the client.

The rules for assigning the client, sales settlement, commissions, participation of the managing authority or other benefit-sharing may be specified in the Charter of the Demonstration Centre, Partner Charter or other Program Document.

11.12. Support for the Centre by FIXON and other Partners

The Demonstration Centre can be supported by FIXON, Mediator and other Partners participating in the Programme.

Support may include in particular:

marketing materials,

additional exposure,

test products,

demonstration products,

Prime products,

special products,

training,

lead,

information about customers interested in the test,

support for the organisation of demonstrations,

support for promotional actions,

directing customers to the Centre,

online communication materials,

Participation of FIXON representative or Mediator in selected events.

Other Partners without the status of a Demonstration Centre may support the Centre by informing customers about the possibility of testing, consulting or purchasing special products in the Centre.

The Centre's support by other partners should be organised in a way that does not undermine their commercial interests, but increases the efficiency of selling the entire network.

The rules on the mutual management of customers, participation in sales or settlements may be laid down in separate Program Documents.

The Demonstration Centre should be seen as an element of the sales infrastructure of the FIXON network and not only as an individual point of one Partner if such a model is adopted in the area concerned.

11.13th Demonstration Centre and Strategic Powers

The Demonstration Centre may combine the elements of all Strategic Rights.

A partner gaining the status of a Demonstration Centre retains the main benefit of leading Strategic Power, unless the Demonstration Centre Charter provides otherwise.

This means that:

A partner whose leading mandate was Additional Strategic Discount may retain the strongest discount advantage among the Centres,

A partner whose leading power was Market Protection may retain the widest range of market protection among the Centres,

A partner whose leading mandate was the Extended Storage States Support Program may retain the widest range of storage support from Centers,

A partner whose leading right was Product Exclusive or Premier may retain the widest access to special, test or premiere products from the Centres.

Other benefits may be granted to the Centre to a limited extent.

The Demonstration Centre may therefore have at the same time:
a specific additional discount,

specific protection of the impact area,

extended stock,

access to special products,

access to premiere products,

specific exposure rules,

the possibility of serving customers operated from other channels.

The scope of these benefits needs to be determined individually.

11.14th Demonstration Centre and Testing and Premiere Products

The Demonstration Centre may participate in the testing and implementation of new FIXON products.

As a general rule, the product created by a specific Partner goes first to the Partner initiating the product.

The product can then be made available to the Demonstration Centre, Strategic Partners with Product Exclusive and then to other Partners.

The Demonstration Centre may receive test, launch or demonstration products to:

meeting customer opinions,

conducting demonstrations,

an assessment of the potential for sales,

preparation of demonstration materials,

support for product launch,

promotion.

Test and premiere products may be covered by confidentiality to the extent specified by the Supplier.

The Centre using test products should provide feedback according to the Supplier's requirements.

Lack of feedback may affect the Centre's continued participation in testing and premiere programmes.

11.15. Responsibilities of the Demonstration Centre

The Demonstration Centre performs the responsibilities specific to the Strategic Partner and additional responsibilities resulting from the conduct of the extended exposure, demonstration and sales.

The Centre's primary duties include:

maintenance of the agreed exposure,

enabling customers to test products,

ensuring the status of test and demonstration products,

selling according to Pricelist and Program,

reporting of sales and stock,

reporting of demonstration activities where required by the Programme Documents,

support for clients headed to the Centre,

compliance with brand protection rules,

providing feedback from customers,
cooperation on promotion actions and product premieres,
maintaining the presentation standard agreed with the Supplier.

The Centre should carry out demonstrations in a professional, safe and consistent manner.
The Centre should inform the Supplier or Mediator about customer needs, questions repeated during presentations, product problems and offers to develop the offer.
If the Centre serves customers led by other establishments or Partners, it should provide such service in a transparent and consistent manner with the agreed settlement model.

11.16th FIXON Demonstration Centre Card

The FIXON Demonstration Centre tab is a document defining the individual scope of the Centre.
The Charter may specify in particular:

Partner data,
form of the Demonstration Centre,
location or area of activity,
product scope,
exposure range,
a list of test products,
list of demonstration products,
the range of stocks,
direct sales rules,
rules for handling wholesale orders,
rules for handling special products,
the impact area of the Centre,
principles of customer management,
principles of cooperation with other partners,
specific commercial conditions,
FIXON support rules,
reporting rules,
rules on limitation or withdrawal of status.

The Charter of the Demonstration Centre may also specify which elements of Strategic Rights are fully available to the Centre and which are limited in scope.

If the Charter of the Demonstration Centre does not regulate the matter, the rules of the Programme, the Agreement and the relevant Programme Documents shall apply.

11.17. Limitation, suspension or withdrawal of the status of the Demonstration Centre

The status of the Demonstration Centre may be restricted, suspended or revoked in the cases specified in the Agreement, Programme, Charter of the Demonstration Centre or other Programme Document.

The restriction, suspension or withdrawal of status may be based in particular on:

no agreed exposure,
failure to test products,
non-use of demonstration products,
no reporting,
late payment,
significant storage gaps,
breach of brand protection rules,
breach of confidentiality of test or pre-emptive products,

the lack of cooperation in the handling of clients addressed to the Centre,
Use of the Centre contrary to the objective,
loss of economic justification for the maintenance of the Centre,
change the development strategy of the FIXON network.

Withdrawal of the status of the Demonstration Centre does not necessarily mean the automatic loss of the status of the Strategic Partner.

After withdrawing the status of the Supplier Center, it may change the scope of the exposure, stock, test products, benefits and customer management rules.

The products, materials and exposure elements transferred to the Centre shall be accounted for in accordance with the Programme, Agreement and Charter of the Demonstration Centre.

11.18. Benefits of the Partner Demonstration Centre

The Demonstration Centre can be a tool for the Partner to build a commercial advantage.

The main benefits of the Centre are:

the possibility of presenting a fuller offer,
the possibility of customer testing of products,
access to special products,
access to test and premiere products,
greater availability of products,
the possibility of handling wholesale orders,
the possibility to serve customers with more potential,
the possibility of obtaining a higher margin in direct sales,
the possibility of building an expert position,
the possibility of organising demonstrations and training,
the ability to direct customers from other establishments,
the possibility of creating a local FIXON reference point.

The center can increase customer confidence in the products, as the customer can check the product before buying.

The Centre can also increase the efficiency of selling more expensive, special or less obvious products that require demonstration.

For Partner, the Centre may be a way to build a lasting relationship with performers who need not only purchase but also advice, testing and practical comparison of solutions.

11.19. Benefits of the Exhibition Centre for FIXON Network

The Demonstration Centre supports the development of the entire FIXON network.

The Centre may serve as:

the reference point,
the test point,
implementation point,
the training point,
place of product primer,
places for collecting customer opinions,
place of service of special products,
locations of customer service requiring demonstration,
regional centre of knowledge about FIXON products.

The Centre may relieve standard sites of Partners that do not have the ability to carry out a full presentation of products.

The centre can increase the efficiency of sales of the entire network as it allows customers to test products that would otherwise only be available from the catalogue.

The Centre can also accelerate the implementation of new products as it provides a place of contact with customers and the ability to collect feedback.

11.20. Summary of the principles of the FIXON Demonstration Centre

The FIXON Demonstration Centre is the highest level of cooperation in the FIXON Partnership Programme.

The status of the Centre may only be granted to the Strategic Partner.

The Centre is generally a showroom, but can also take another form agreed with the Supplier.

The centre allows customers to test, compare and purchase FIXON products in an extended model.

The Centre may maintain wider exposure, larger stock, special products, test products, premiere products and products available only on request from other Partners.

The Centre may conduct direct sales, operate wholesale and custom orders and accept customers led from other channels.

The Centre can be supported by FIXON, Mediator and other Partners.

The detailed rules of operation of the Centre shall be determined by the FIXON Demonstration Centre Charter.

The status of the Centre may be restricted, suspended or revoked if the Centre no longer fulfils the objectives of the Programme.

The Demonstration Centre is to be the place where FIXON products are presented as professional solutions to real problems of contractors, not just as catalogue items.

12.1. Importance of reporting in the FIXON Partnership Programme

Reporting is one of the main duties of a Partner participating in the FIXON Partnership Programme.

Correct reporting allows Supplier, Mediator and Partner to determine:

the sale of FIXON products,

current stock,

Partner discount level,

Sales result,

the level of storage replenishment,

products requiring complementary delivery,

returns,

complaints,

damaged products,

products lost,

demonstration and exhibition products,

custom products,

the relevance of further development of cooperation.

Reporting is not just an administrative activity. It is the basis of the entire model of cooperation, as the report depends on invoicing, discount, stockfilling, sales assessment and the possibility of granting benefits.

The partner should treat reporting as an element of the current operation of the Program, as important as selling products and maintaining warehouse states.

Failure to report or report falsely may prevent the correct operation of the Programme and result in interruption of the supplements, interruption of settlements, loss of benefits or termination of the Agreement on the terms specified therein.

12.2. Monthly report

The Partner shall forward the monthly report to the 5th day of the month following the end of the Settlement Period.

The monthly report shall be submitted by the Partner headquarters or by another organisational unit indicated by the Partner.

The monthly report shall be forwarded to the Cooperation Agent or directly to the Supplier, if

so determined.

If the Partner has multiple facilities, the report should include the aggregate data of the Partner, unless the Parties agree to report by facility, sales channels or other organisational units.

The monthly report should contain data allowing a full settlement of the Settlement Period.

The monthly report should include in particular:

the sale of FIXON products,

current stock,

products sold from the starting warehouse,

products sold from the Warehouse States Support Program,

products sold from the catalogue,

products available immediately with delivery from the Supplier,

custom products,

returns,

complaints,

damaged products,

products lost,

demonstration products,

Exposure products,

test and premiere products, if they have been given to the Partner,

information on the achievement of alert thresholds,

other data required by the Supplier or Mediator.

The monthly report should comply with the current list of Products covered by Warehouse Support, Pricelist and Program Principles.

The report may be transmitted in the form of a sheet, form, e-mail, CRM system, B2B system or any other form agreed with the Supplier or Mediator.

A detailed template for the report may be specified in the Reporting Procedure or other Program Document.

12.3. Scope of sales data

The sales data indicated in the report should make it possible to determine the actual Partner Sales Result.

As regards storage products, the report should indicate the number of units sold per product.

In the field of order products, the report should indicate the net sales value of the products to be calculated per Sales Unit.

In terms of products available immediately with delivery from the Supplier, the report should indicate how the order is executed and the sales value according to the Price list.

For returned products, the report shall indicate:

product name,

number of pieces,

date of sale,

the date of refund,

the reason for the refund, if known,

the method of settlement of the refund.

In the field of complaint, the report shall indicate:

product name,

number of pieces,

the date of notification,

the basic description of the notification,

the status of the complaint, if known,
whether the product has been returned, replaced, repaired or remains with the customer.
For damaged or lost products, the report shall indicate:
product name,
number of pieces,
description of the event,
date of disclosure,
whether the event concerns a storage, display, demonstration or testing product.
The partner should report the data reliably and in a way that allows verification.
If the Partner does not have all the data at the time of submitting the report, he should indicate the available data and inform him of the need to complete the report.

12.4. Alert

An alert may be filed by the Partner at any time of the Settlement Period if at least one item covered by the Warehouse Support Program reaches the Alarm Threshold.

An alert does not replace a monthly report.

An emergency notification should contain the current storage status of all items covered by the Storage States Support Program.

The requirement to indicate the status of all items results from the fact that a supplement after an emergency notification may cover the entire warehouse, not only the product that reached the Alarm Threshold.

An alert shall include in particular:

Partner data,
the date of notification,
indication of the product which has reached the Alarm Threshold,
current status of all products supported,
indication of the products sold since the last report,
indication of returned products,
indication of products damaged or lost,
information on the products advertised,
information on products blocked or not released,
other data required by the Supplier or Mediator.

If the emergency call is incomplete, The supplier or intermediary may call on the Partner to supplement it before completing the complementary delivery.

The supplier may suspend the execution of the complementary supply until complete data is received.

An emergency notification should be submitted in a form agreed with the Supplier or Mediator.

12.5. No monthly report

The lack of a monthly report prevents the proper functioning of the Programme.

In the absence of a monthly report:

it is impossible to charge a discount,
proper invoicing is impossible,
the completion of the warehouse is suspended,
the update of stock levels is suspended,
the assessment of the Sales Result is suspended,
the assessment of the grounds for granting benefits is suspended.

In the absence of a monthly report, the Supplier or Mediator calls on the Partner to submit a report.

Until a proper report is submitted, the Supplier may suspend the additional deliveries, the

transfer of additional products, the processing of increases in stock and other activities requiring sales data.

If the Partner fails to report within 30 days of the request, The supplier may terminate the Agreement in accordance with its provisions.

If the Agreement is terminated due to lack of reporting, the Supplier may collect the warehouse at the Partner's expense and settle the actual final stock.

If the Partner does not cooperate on the reception of the warehouse, The supplier may invoice the entire warehouse transferred without applying a discount.

Failure to report may also form the basis for withdrawing the status of Strategic Partner, limiting Strategic Entitlements or refusing to grant further benefits.

12.6. Invoices and accounts

The invoice shall be issued on the basis of a monthly report, sales declarations, storage documents or other documents proving the sale or event to be settled.

The invoice may include in particular:

products sold by the Partner,

products sold from the starting warehouse,

products sold from the Warehouse States Support Program,

products available immediately with delivery from the Supplier,

custom products,

products lost,

damaged products,

products destroyed,

products accounted for by Partner,

delivery costs, if billed,

other items resulting from the Agreement or Program Documents.

Products sold to customers are invoiced taking into account the Partner's discount in accordance with Sales Results and Pricelist.

Exposure, demonstration or test products lost, destroyed or damaged by Partner's fault may be invoiced with a 50% discount on the catalogue price, unless Program Documents provide otherwise.

Non-exposure products lost, damaged or damaged by Partner's fault may be invoiced without discount unless the Supplier decides otherwise.

The settlement of products lost, destroyed or damaged by Partner's fault is not treated as Sales Result and does not increase the Partner's discount level.

The deadline for payment of the invoice is 7 days unless the Agreement, the Partner Card or other Program Document provides for another deadline.

Electronic invoices are a standard form of billing documentation.

After implementation of the existing KSeF system, invoices may be issued and delivered in accordance with the rules of that system.

The billing of the cost of delivery of the products on order may be recorded on the invoice if this results from Pricelist, sales model or rules of the product concerned.

12.7. Accounting corrections

Clearances may be adjusted if, after the invoice has been issued, the circumstances affecting its regularity become apparent.

The amendment may relate in particular to:

misreported sales,

omitted sale,

incorrectly indicated product,

an incorrect price,

an incorrect discount,

mistaking the cost of delivery,
reimbursement,
complaints,
storage gaps,
damaged or lost product,
accounting error,

misclassification of the product as being included or not included in the Sales Result.

The correction may be made by an adjustment invoice, compensation, note, correction of the report or other document relevant to the event.

The Partner should immediately inform the Supplier or the Mediator of the circumstances which may lead to the need for correction.

Repeated reporting errors may affect the assessment of the Partner and the possibility of using the benefits of the Program.

12.8. Complaints - General Principles

Complaints of FIXON products are handled by the Supplier or manufacturer in accordance with the FIXON Complaint Procedure.

The Partner may accept a complaint from the Customer and forward it to the Supplier.

The Customer may also submit a complaint directly to the Supplier if such a notification is available.

The complaint risk of the product shall be borne by the manufacturer if the complaint is justified and the defect is not due to Partner's fault.

The Partner shall not bear the costs of the accepted complaint if the defect of the product is not due to his fault, improper storage, misrelease, mechanical damage on the Partner's side or any other act or omission of the Partner.

Complaints should be submitted and documented in such a way as to assess the appropriateness of the notification.

Detailed rules for the acceptance, documentation, processing and settlement of complaints shall be laid down in a separate Complaint Procedure.

12.9. Complaint

Complaints should contain data enabling product identification and assessment of the application.

The notification may include in particular:

product name,

date of sale,

customer data or order number, if available,

description of the defect reported,

the circumstances of the failure,

photographs of the product,

a video showing the problem, if needed,

the sales document,

information on whether the product is at the customer, Partner or has been returned,

the customer's expectation if it has been notified.

The supplier may request additional information or documents if they are needed to handle the complaint.

The Partner should cooperate with the Supplier in explaining the complaint.

The lack of data necessary for the handling of the complaint may prolong its processing time.

12.10. Procedures for handling complaints

After considering the complaint, the Supplier may in particular:

accept the complaint,
refuse to accept the complaint,
request additional information,
propose repair of the product,
propose the exchange of products,
propose the provision of the missing element,
propose another solution justified by the nature of the case.

If the complaint is accepted, the manner in which it is implemented shall be determined in accordance with the Complaint Procedure and the rules applicable to the sales concerned. If the defect is due to Partner's fault, improper storage, mechanical damage or incorrect use of the product by Partner, The supplier may refuse to cover the costs of the complaint. Complaints should be included in the monthly report in order to allow proper settlement of stock stocks and Sales Result. A recognized complaint does not burden the Partner unless the defect is due to his fault.

12.11. Refunds

The product returns shall be recorded in sales and settlement reports in accordance with the rules of the Programme, the Agreement and the relevant Programme Documents.

The refund of the product should be indicated in the monthly report.

The phrase shall indicate:

the product,
number of pieces,
date of sale,
date of refund,
the state of the product,
the reason for reimbursement, if known,
the method of further settlement.

Reimbursements shall be taken into account in the Sales Result if the sales of the product were actually made and reported.

The financial consequences of reimbursement may be accounted for separately in accordance with accounting documents and rules agreed by the Parties.

The returned product in a condition allowing for further sale may be reintroduced into the Partner's warehouse.

Returned product damaged or incomplete shall be assessed in accordance with the rules on complaint, liability of the Partner or return procedure.

12.12. Products damaged, lost and destroyed

The partner should immediately report damaged, lost or destroyed products.

The notification shall contain a description of the incident and an indication of whether the product was:

storage product,
the product from the starting warehouse,
the exposure product,
a test tool,
a demonstration product,
Test or Premier Product.

Products lost, damaged or damaged by Partner's fault shall be accounted for in accordance with the Program and the Agreement.

Exposure, demonstration or testing products accounted for by the Partner may be accounted for with a 50% discount on the catalogue price, unless otherwise specified.

Non-exposure products accounted for by Partner can be cleared without discount.

The settlement of such products is not the result of the sale.

Normal consumption of exposure or test products resulting from their demonstration function is not considered as a damage on the part of the Partner.

12.13. Program Documents

Program documents are complementary documents to the FIXON Partnership Programme, specifying detailed cooperation rules, price lists, procedures, product lists, status cards and other operational elements.

The list of Program Documents is open.

The programming documents shall include in particular:

FIXON Partner Programme,

Price list Catalog FIXON,

List of products covered by Warehouse Support,

Partner card,

The Department Card,

The Exhibition Card,

The Strategic Powers Charter,

The FIXON Demonstration Centre card,

Reporting procedure,

Complaint procedure,

FIXON brand policy,

FIXON Exposure Standards,

Regulations of Test and Premier Products,

Return procedure,

The Warehouse Collection Procedure,

Protocol for the transmission of products,

Inventory Protocol,

other documents published or transmitted by the Supplier.

Program documents may be expanded in the future without the need to change the entire Programme, unless this violates the Partnership Agreement.

If the Programme Document defines the individual conditions of the Partner, it should be submitted to the Partner in a form that allows it to be recorded.

Documents submitted to the Partner under the FIXON Partner Programme, in particular the Partner Card, Catalog Pricelist, List of Products Covered by Storage Support, Product Status, Procedures, Forms, Instructions, Information Cards, Updates of Cooperation Principles and Other Documents related to the current implementation of the Program, may be transmitted to the Partner in document form, in particular by email, CRM system, B2B system, communicator, message from the Cooperation Agent or otherwise enabling the Partner to read the content of the document. The document submitted to the Partner in this way does not require personal signature if the Partner does not object to its content within 7 days of its delivery. The absence of reservations within this deadline means the adoption of a document for information and use in the framework of current cooperation in the FIXON Partnership Programme. Documents transmitted under the Programme may also bear an electronic signature, a digital signature, a trusted signature, a qualified electronic signature or another form of electronic confirmation accepted by the Parties. If a Partner raises objections to any document within 7 days of its delivery, that document shall not be adopted in the absence of reservations in the scope of the notification and the Parties shall clarify its content, remove any discrepancies or prepare the final agreed version of the document. The final version of the document to which reservations have been made shall be approved by both Parties in the form of personal signatures or electronic signatures accepted by the Parties, unless otherwise agreed by the Parties in document correspondence. Pending approval of the final version of such a document,

the existing version of the document or the existing rules shall apply unless the Parties agree on a provisional solution in documentary form. A statement of objections to one document shall not suspend the validity of other documents submitted under the FIXON Partnership Programme, unless the scope of the objections prevents their proper application.

12.14. Partner Card

The Partner Charter is an individual document setting out the basic conditions for cooperation with the Partner.

The Partner Card may indicate in particular:

Partner data,

the date on which the cooperation began,

Partner status,

discount level,

Additional Strategic Discount granted, if any,

the range of the starting warehouse,

the scope of the Warehouse States Support Programme,

contact persons,

Manager,

method of reporting,

specific trade arrangements,

documents in force of the Partner.

The Partner Card can be updated with a change in the status of Partner, discount, scope of cooperation or other conditions.

The Partner Charter does not need to repeat all the rules of the Programme, but defines individual cooperation parameters.

12.15. Charter of Strategic Powers

The Strategic Powers Charter defines the individual scope of Strategic Powers granted to the Strategic Partner.

The Strategic Powers Charter may cover in particular:

Additional Strategic Rabat,

Market protection,

Extended Warehouse States Support Program,

Product or Premier Exclusive,

another power granted in the future.

The Charter should indicate the scope of the mandate in a way that avoids doubts about what the Partner can expect and what obligations it must perform.

If the Strategic Power is not confirmed in the Charter or other document, A partner cannot rely on his admission.

12.16th FIXON Demonstration Centre Card

The FIXON Demonstration Centre tab sets out individual rules for the operation of the Demonstration Centre.

The Charter may indicate in particular:

the form of the Centre,

location or area of activity,

product scope,

exposure range,

the range of stocks,

testing and demonstration products,

principles of customer management,
principles of cooperation with other partners,
specific commercial conditions,
direct sales rules,
reporting rules,
the scope of FIXON support,
rules on limitation or withdrawal of status.

The Charter of the Demonstration Centre is a key document for determining the actual scope of the status of the Centre.

The very description of the Centre in the Programme does not mean that the Partner is automatically granted all the benefits indicated in the Programme.

12.17. Partner's Brands Policy and Own Materials

The partner can create their own advertising, promotional material, photos, videos, graphics, product testing and campaigns for FIXON products, subject to the supplier's approval.

Partner's own materials should be in line with FIXON brand image, current product information and fair commercial communication principles.

The Partner may publish its own FIXON product tests if their content has been accepted by the Supplier or if The supplier agreed to this form of publication.

The Partner can compare FIXON products with competitive products, but such comparisons require the Supplier's consent.

Comparisons should be fair, justified and should not violate the good name of the FIXON brand or third parties.

Once accepted, the advertising campaign may be repeated without the need to obtain further acceptance, provided it is conducted in the same content, in the same communication sense and without changes that may affect the reception of the message.

Changing content, graphics, passwords, prices, technical parameters, comparisons or the scope of the campaign may require re-acceptance.

The Partner may use the FIXON logo only in accordance with the materials and guidelines provided by the Supplier.

Detailed rules for brand communication, creation of own materials and obtaining acceptance are set out in FIXON Brand Policy.

12.18. Changes to the Partnership Programme and Program Documents

The supplier may update the FIXON Partner Programme and Program Documents.

Updates may result in particular from:

changes in product offer,

Pricelist changes,

the introduction of new products,

changes in the delivery model,

e-catalogue development,

implementation of QR codes,

changes in exposure rules,

changes in reporting rules,

development of the Warehouse States Support Program,

introduction of new Strategic Entitlements,

changes in network development strategies,

legal or organisational changes.

Changes to the Programme and Program Documents shall enter into force from the date indicated by the Supplier, but not earlier than the next Settlement Period.

The beneficial or technical changes shall also enter into force from the date indicated by the

Supplier, but not earlier than the next Settlement Period, unless the individual agreement with the Partner provides otherwise.

The current version of the Partnership Program can be published on the FIXON website.

The Partner should be informed of changes to the Program or Program Documents by the Supplier or Mediator.

Information on changes may be communicated in particular:

by email,

through the Mediator,

through the CRM system,

via the B2B system,

by publication on the website,

in another document form.

The program may be updated, but updates should not impair the individual conditions of the Partners resulting from existing Agreements, Partner Cards or other individual documents.

The individual terms of the Partner remain binding insofar as they are confirmed in the Agreement, the Partner Charter, the Charter of Strategic Powers, the Charter of the Demonstration Centre or other individual document.

12.19. Priority of Documents

In the event of a discrepancy between the Partnership Programme and the Partnership Agreement, the provisions of the Partnership Agreement shall prevail.

In the event of a discrepancy between the Programme and the Partner's individual document, priority shall be given to the individual document insofar as it sets out specific terms of cooperation and does not violate the Agreement.

In the event of a discrepancy between the General Program Document and the Partner Card, the Strategic Permission Card or the Demonstration Centre Card, priority shall be given to the individual document.

In case of interpretation doubts, documents should be interpreted in accordance with the objective of the Programme, the interest of FIXON brand, the stability of cooperation and the principle of transparency towards the Partner.

12.20. Final provisions of the Programme

The FIXON Partnership Programme lays down general principles of cooperation in the FIXON Partnership Network.

The Programme is an annex to the Partnership Agreement and is accepted by the Partner when signing the Agreement.

The program can be published on the FIXON website to allow partners and potential partners to get acquainted with the cooperation model.

Public provision of the Program does not mean that each Partner is entitled to all described statuses, rebates, allowances, limits and benefits.

The individual terms of the Partner result from the Agreement, Partner Charter, Strategic Rights Charter, Demonstration Centre Charter, List of Products Covered by Storage Support, Pricelist and other Program Documents.

The program should be used in a way that supports the development of a professional distribution network, FIXON brand protection, product availability, customer service quality and cost-effectiveness of cooperation for both parties.

In matters not regulated in the Programme, the Partnership Agreement, the relevant Programme Documents and the individual arrangements of the Parties shall apply.

The FIXON Partnership Programme shall enter into force either on the date indicated by the Supplier or on the date of its adoption as an annex to the Partnership Agreement.

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